

REPUBLIQUE DU CAMEROUN
Paix-Travail-Patrie

MINISTÈRE DE L'AGRICULTURE ET DU
DÉVELOPPEMENT RURAL

SECRETARIAT GENERAL

DIRECTION DES ENQUÊTES ET DES
STATISTIQUES AGRICOLES



REPUBLIC OF CAMEROON
Peace-Work-Fatherland

MINISTRY OF AGRICULTURE
AND RURAL DEVELOPMENT

SECRETARIAT GENERAL

DEPARTMENT OF AGRICULTURAL
SURVEYS AND STATISTICS

COLLECTION OF LEGAL INSTRUMENTS ON AGRICULTURAL INPUTS 2021 Edition

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Produced by the Department in charge of Agricultural Surveys and Statistics



PREFACE

In order to better understand the use of agricultural inputs, the Minister of Agriculture and Rural Development created a working group to set up an agricultural inputs observatory in Cameroon. Coordinated by the Department in charge of Agricultural Surveys and Statistics (DESA), the working group aims at contributing to the development of agriculture through the gradual establishment of an information desk for agricultural inputs in Cameroon. Specific objectives include (i) producing reliable data on the availability, accessibility and use of agricultural inputs in order to periodically monitor market conditions and identify potential impediments and necessary policy changes; and (ii) allowing users to access statistical, regulatory and documentary information on agricultural inputs on a single platform.

The Observatory's first task was to provide the stakeholders in the sub-sector, with the legislative and regulatory instruments governing their activities, so that no one would be ignorant of the law.

This collection of legislative and regulatory instruments on agricultural inputs results from the compilation and formatting of instruments in force as of 31 December 2021. It is divided into 4 parts, namely:

- Legal instruments on phytosanitary products, fertilisers, seeds and seedlings;
- Legal instruments on seeds and seedlings;
- Legal instruments on the fertiliser sub-sector;
- Legal instruments on phytosanitary products.

In each part, the instruments are classified according to the hierarchy of legal norms: international conventions, laws, decrees, orders, decisions and circulars. In each of these categories, the instruments are classified in chronological order.

These instruments will enable actual and potential stakeholders in the field of agricultural inputs (farmers, importers, researchers, distributors, users and controllers) to better master the domain. They are guidance tools to enable an optimal use of inputs in agricultural production and ensure food security.

This collection is the outcome of a collaboration between the Department in charge of Agricultural Surveys and Statistics (DESA), the Department in charge of Regulation and Quality Control of Agricultural Inputs and Products (DRCQ), as well as other partners.

We would like to take this opportunity to thank them.

Le Ministre de l'Agriculture et
du Développement Rural



[Signature]
Gabriel MBAIROBE

PRESENTATION OF THE COLLECTION

This collection provides the various stakeholders involved in agricultural input, with the legal instruments governing their activities, while protecting consumers, users, as well as the environment. There are three types of agricultural inputs: seeds and seedlings, fertilisers and phytosanitary products.

This collection comprises four parts as follows:

1. Common legal framework for phytosanitary products, fertilisers, seeds and seedlings;
2. Legal framework for seeds and seedlings;
3. Legal framework for fertilisers;
4. Legal framework for phytosanitary products.

In each part, the hierarchy of legal instruments is observed as follows: International Conventions, Laws, Decrees, Orders, Decisions, Letters and Circulars.

Lengthy instruments such as the Stockholm Convention on Persistent Organic Pollutants (POPs) and Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development have been inserted as hyperlinks.

1.PART ONE: COMMON LEGAL FRAMEWORK FOR PHYTOSANITARY PRODUCTS, FERTILISERS, SEEDS AND SEEDLINGS

1.1. CONVENTION

1.1.1 Stockholm Convention on Persistent Organic Pollutants (POPs) texts and annexes (revised in 2017)

This revision of the convention is accessible under the following addresses

www.pops.int

Secretariat of the Stockholm Convention

United Nations Environment Programme (UNEP)

International Environment House

11-13 Chemin des Anémones

CH-1219 Châtelaine GE - Switzerland

Tel : +41 22 917 82 71 –

Fax : +41 22 917 80 98

Email : brs@brsmeas.org

1.2. LAW

1.2.1. Law No. 2018/20 of 11 December 2018 Framework Law on Food Safety

The Parliament deliberated and adopted,
the President of the Republic hereby enacts the law set out below:

CHAPTER I: GENERAL PROVISIONS

1- Purpose and Scope of Application

Section 1: This law lays down the principles and bases for regulating food products, feed for animals intended for human consumption and food additives and supplements, in order to ensure a high level of consumers life and health protection and environmental soundness.

Section 2: The provisions of this law shall apply to the production, manufacturing, preparation, handling, parcelling, storage, transportation, packaging, preservation, import, export, distribution and sale of food products or any other related activity.

Section 3: This law seeks

- ensure consumer food safety;
- prevent and control food-borne diseases;
- make the declaration of food poisoning mandatory;
- promote national and international food trade by establishing an effective safety system based on scientific principles;
- contribute to establishing specific standards for food products consumed and marketed in the c country, and ensure their application in control and monitoring plans;
- improve the quality of food produced domestically by implementing good production, manufacturing and hygiene practices, and a sanitary and phytosanitary risk control system;
- facilitate the integrated management of food safety at the various stages of the food chain;
- promote mechanisms for coordination between the various relevant food sector authorities and gradually prepare then to incorporate their activities into regional or international organizations, notably Codex Alimentarius (CODEX), the World Organization for Animal Health (OIE), the International Plant Protection Convention (IPPC), the International Food Safety Authorities Network (INFOSAN).
- develop an efficient official inspection and control system based on standards, technical regulation and, as appropriate, scientific data;
- support and stimulate the development of the food industry and encourage competitiveness on the domestic and international market;
- promote the participation of consumers and various stakeholders in the food chain with respect to the consumption, processing and marketing of food products, as well as in the application and conduct of the national food safety policy;
- establish a framework to facilitate the implementation of national and international food requirements;
- strengthen the responsibility of any producer, processor or distributor in the protection
- of consumers health by setting up self-checking systems and release for consumption authorizations;
- ensure communication on risks, in conjunction with epidemiological surveillance networks and early warning or health surveillance systems;
- set up a national system of authorizations for the consumption of foodstuff, animal feed, food additives and supplements.

II - Definitions

Section 4: For the purposes of this law, the following definitions shall apply:

intended for human consumption, and includes drink, chewing gum and any substance which has been used in the manufacture, preparation or treatment of "food" but does not include cosmetics or tobacco or substances used only as drugs;

Adulterated food: any food to which any substance is added, removed or substituted

to change its composition, weight or volume for fraudulent purposes or to conceal or correct any defect in its quality or properties;

Food unfit for human consumption: any primary product or food which, without being spoiled or intoxicated, does not have all the necessary hygienic guarantees, taking into account certain undesirable elements that it contains, either by contamination or by degradation of its microbiological and/or chemical quality;

Animal feed: any substance or product, including food additives, whether processed

or unprocessed, intended to be used for oral feeding of animals;

Processed food: any food colored, dyed, pulverized, polished, coated, mixed, canned, flavored, diluted or thickened with any substance; intended for human consumption, and includes drink, chewing gum and any substance which has been used in the manufacture, preparation or treatment of "food" but does not include cosmetics or tobacco or substances used only as drugs;

Adulterated food: any food to which any substance is added, removed or substituted

to change its composition, weight or volume for fraudulent purposes or to conceal or correct any defect in its quality or properties;

Food unfit for human consumption: any primary product or food which, without being spoiled or intoxicated, does not have all the necessary hygienic guarantees, taking into account certain undesirable elements that it contains, either by contamination or by degradation of its microbiological and for chemical quality;

Animal feed: any substance or product, including food additives, whether processed

or unprocessed, intended to be used for oral feeding of animals; from risk assessment, of weighing policy alternatives, in consultation with all interested parties considering risk assessment and other factors relevant for the health protection of consumers and for the promotion fair trade practices, and, if needed, selecting appropriate prevention and control options

Risk communication: the interactive exchange of information and opinions throughout the risk analysis process concerning hazards and risks, risk-related factors and risk perceptions, among risk assessors, risk managers, consumers, industry, the academic community and other interested parties, including the explanation of risk assessment findings and the basis of risk management decisions;

Pest risk analysis: the process of evaluating biological or other scientific or economic

evidence to determine whether an organism is a pest, whether it should be regulated, and the strength of any phytosanitary measures to be taken against it;

Self-control: all measures taken by farmers, whether carried out by themselves or

by a third party, to ensure that the products they manage at all stages of production, processing and distribution meet the legal requirements for food safety, product quality and traceability, as well as the monitoring actual compliance with these requirements;

Processing aid: any substance or material not including apparatus or utensils, and not consumed as a food ingredient by itself intentionally used in the processing of raw materials, foods or their ingredients, to fulfill a certain technological purpose during treatment or processing and which may result in the non-intentional but unavoidable presence of residues or derivatives in the final product;

Food chain: all stages from primary production of food to consumption through handling, transport, processing, packaging, distribution and storage;

Food supplement: foodstuff that is a concentrated source of nutrients, substances with a nutritional or physiological effect, plants or plant extracts that are intended to overcome the deficiencies of a person's regular diet. These supplements can be in various forms including: capsules, lozenges, tablets, pills, powder sachets, fluid filled ampoules, flasks with a dropper, solution;

Contaminant: any substance not intentionally added to food, which is present in such food as a result of the production (including operations carried out in crop husbandry, animal husbandry and veterinary medicine), manufacture, processing, preparation, treatment, packing, packaging, transport or storage of such food or as a result of environmental contamination. The term does not include insect fragments, rodent hairs and other extraneous matter;

Official control: any form of control that the competent authority conducts to check compliance with regulations,

Parcelling: an object which, regardless of the nature of materials that constitutes it, is intended to contain and protect the foodstuff to allow their handling and their transportation, as well as to ensure their presentation;

Label: any indication mark, sign or design or any other written description, printed painted marked, etched or tamped on the food packaging or any other feature related to packaging;

HACCP (hazard analysis and critical control point): a system which identifies evaluates and control hazard which are significant for food safety;

Food hygiene: all conditions and measures necessary to ensure food security and safety at all stages of the food chain;

Ingredients: any substance, including food additives, used in the manufacture or preparation of food and present in the final product although in a modified form;

Food safety: assurance that food will not cause damage to the consumer when prepared and /or eaten according to its intended use;

Inspection: official examination of institutions, food and their treatment, companies of the food sector their production and the management system, including documents, tests on finished products and food practices, the origin and destination of incoming and outgoing products, to verify their compliance with legal standards;

Official laboratory: Accredited laboratory per se in conformity with this law;

Phytosanitary measures: any legislation, regulation or official procedure having the purpose to prevent the introduction of and/or the spread of quarantine pests, or to limit the economic impact of regulated non-quarantine pests;

Sanitary measures: any measure applied to protect human life or health within the territory of the country from risks arising from additives, containing, toxins or diseases –causing organisms in food or feedstuffs or risks arising from diseases carried by foods which are animals, plants or products thereof or from risks arising from any other hazards in foods;

Food standards: documents approved by a recognized body which provides a common and the regular use, of rules, guidelines or characteristics for products or related processes and production methods of which the observance is not compulsory. Prescriptions in terms of terminology, symbol, packaging, mark, marketing and labelling relating to a product, the process and production methods may equally treat only these services;

Nutrients: fatty acids, amino acids, proteins, simple sugars, probiotics, vitamins and minerals;

Economic operator: any natural or legal person in the field of production, manufacturing, preparation, manipulation, treatment, packaging, transportation, packing, conservation, import, export, distribution, food sales or any other related activity;

Entry and exit point: airport, ports and inland ports, parcel post centers or officially designed land border points;

Pre-packaging: packing a product in a package without the knowledge of the buyer, such that the quantity of the product in the package has a given value beforehand and which cannot be modified without notice;

Production: farming, harvesting, capturing, treatment or food processing including the acquisition, the treatment, the rearing of farm animals before slaughter until they are released for consumption;

Quality: All properties and characteristics of a product which makes it fit to satisfy the hidden or expressed needs of the users. Food quality comprises the following four components: hygienic, nutritional, organoleptic and use;

Risk: a function of the probability of an adverse health effect and the severity of that effect, consequential to a hazard (s) in food;

Surveillance: scheduled observation or evaluation of a parameter, with respect to a particular point or time, which is later compared to a reference;

Traceability: the ability to trace and follow a food, feed and food-producing animal or substance intended to be or expected to be incorporated into a food or feed, through all stage of production, processing and distribution;

Utensil: the whole or part of a tool, instrument, machines, appliances and other instruments used for that could be used for the production, the manufacturing, the preparation, the manipulation, the packaging, the transportation, the packing, the conservation, the import, the export, the distribution, the sales, the serving or storage of any food.

CHAPTER II: GENERAL PRINCIPLES OF FOOD SAFETY

Section 5: In accordance with the food safety principle, food products and objects that come in contact with food products, including ingredients, packaging, and utensils used for their production, manufacturing and preparation should not constitute a risk factor to human health.

Section 6: (1) The applicable legislation and the intervention of competent authorities and economic operators with regards to food shall be based on the principles of risk analysis.

(2) Risk assessment shall comply with scientific criteria and be carried out independently and transparently.

(3) Risk management and communication on risk shall be based on risk assessment.

Section 7 :(1) Hygienic measures taken shall be based on available scientific evidence.

(2) They shall not apply in a manner as constitute arbitrary or unjustified discrimination or a disguised restriction to commerce, in accordance with the principles of free exchange.

Section 8: The food legislation shall seek to protect the interest of consumers and provide them with essential conditions for making a well-informed choice of food products to consume

In this regard, it shall be responsible for preventing:

1. fraudulent and misleading practices;
2. the marketing of defective and for adulterated food products;
3. any practice that may mislead the consumer.

Section 9: (1) The implementation of the principle of precaution shall enable decision makers to take action where scientific data is insufficient, inconclusive or uncertain, but where, according to information gathered from an objective and preliminary scientific assessment, there are reasonable grounds to be worried about potentially dangerous health hazards resulting from a phenomenon, a product or a process.

(2) Its implementation may be required to maintain the level of health protection chosen.

Section 10: All food related activities shall be carried out in accordance with the provisions standards ,guidelines and other national and international recommendations contained in regularly ratified international treaties governing food safety ,notably those of Codex Alimentarius ,the World Trade Organization (WTO),the International Plant Protection Convention(IPPC),the World Organization for Animal Health (OIE),the Worldwide Organization of Consumers (OIC) as well as those established by the Cartagena Protocol on Biotechnological Risk Protection.

Section 11: (1) Economic operators of the food sector shall ensure that their activities comply with the provisions of the food legislation.

(2) They shall be responsible for protecting consumer health in relation to the product they release for consumption.

Section 12: As part of the health inspection procedures, economic operators shall enjoy the guarantees of transparency, impartiality, and proportionality granted to persons subject to an inspection measure.

Section 13: On the proposal of health security entities, the competent authority shall:

- take appropriate measure to ensure that the actors concerned participate in food safety decision making process;
- depending on the nature, the seriousness and scope of food safety risks, take appropriate measures to inform the actor concerned of the nature of these risks and the measures taken to prevent, reduce or eliminate them. To this end, economic operators as well as relevant government services, each in his own sphere of competence as laid down for the implementation of this law, shall be bound to provide monthly data required for monitoring;
- provide access to information in its possession relating to food safety, including information on hazardous substances and activities.

CHAPTER III: ORGANIZATION AND FUNCTIONING OF THE FOOD SAFETY SYSTEM

1. Organization

Section 14: A food safety policy and strategy paper shall define the Government vision of food safety and outlines each stakeholder's responsibilities and activities.

Section 15: Special instruments shall lay down the conditions for organizing the food system.

2. Functioning

Section 16: The food control procedure shall take the following elements into account:

- visual and documentary inspection;
- food chain inspection;
- inspection of the production environment;
- collection of samples;
- Physico-chemical and microbiological analysis;
- interpretation of the results of the analyses of samples collected.

Section 17: Control operations shall be carried out in compliance with the following principles:

- transparency between the economic operator and the government service(s);
- impartiality, honesty and confidentiality in the part of authorized officers;
- complementarity and effectiveness of the action of each competent authority;
- use of nationally and internationally recognized standards.

Section 18 :(1) Laboratories accredited and/or approved by the competent authority shall be responsible for supporting food safety entities.

(2) A separate instrument shall be lay down the conditions for accrediting and/or approving laboratories.

Section 19 :(1) Any substance added to a food product must be subject to prior authorization by the competent authority, or authorized by a national or international standard.

(2) Special instruments shall establish the list of authorized food substances and lay down conditions for their use.

Section 20: In case of emergency or force majeure, the competent authority may, through a duly reasoned act:

- impose a total ban on the production, manufacturing, preparation and sale of any food product;
- impose conditions for producing, manufacturing, preparing and selling food products;
- request the analysis and examination of any food product;
- require that any food should be kept or isolated in a location and restricted from use for a period deemed necessary;
- request the destruction or disposal of any foodstuff;
- order any necessary measure;
- request the treatment of any foodstuff, as appropriate.

Section 21:(1) Any economic operator in Cameroon involved in the production, preservation, processing, transportation, packing, packaging, import, export, distribution and sale of foodstuff must be registered with the competent authority.

(2) The competent authority shall proceed with registration, where the economic operator complies with the national and international legislation in force in his area of activity.

Section 22: The self-control of a production or distribution establishment must be based on a guide duly validated by the competent authority, to ensure product compliance before its supply for consumption.

Section 23: The principle of traceability shall be applied to all activities relating to human food and feed for animals intended for human consumption.

Section 24: (1) Economic operators, as well as food producing companies and their staff must comply with all the rules of hygiene provided for the implementation of this law, in line with the standards of Codex Alimentarius or the guidelines of any other international organization involved in food safety.

(2) The competent authority and, its behalf, its official food control and monitoring services, shall ensure compliance with hygiene rules and practices.

Section 25: Any economic operator, who manufactures, processes or distributes food products must develop and implement a hazard analysis, critical control point (HACCP) system or another recognized system in compliance with the terms defined by international standards.

Section 26: Any pre-packaged foodstuff must be labelled in accordance with the legislation in force.

Section 27: Public sensitization and food safety promotion activities shall be organized by the entities responsible for food safety.

3. Application for Authorization to Release Foodstuff, Animal Feed, Food Additives and Supplements for consumption

Section 28:(1) The authorization to release for consumption (ARC) shall be issued by the competent authority.

(2) It shall comprise the following elements:

- the report on the sanitary control of the production site, using the BPF/BPH, HACCP or other quality system;
- the self-control system;
- the results of analysis carried out by the accredited or approved laboratories;
- expert opinion on the product concerned;
- the status or knowledge and current control of the risks associated with these foodstuffs.

Section 29: The following shall be subject to ARC:

- foodstuff produced at national level;
- imported foodstuffs;
- feed for animals intended for human consumption;
- food additive and processing aids;
- food supplements.

Section 30: The validity of authorization for release for consumption of foodstuffs and animal feed shall be three (3) years renewable.

CHAPTER IV: FOOD INSPECTION

Section 31: Inspections carried out pursuant to this law concern:

- imported, exported, and locally marketed foodstuffs;
- food processing companies and their environment, as well as transportation means the equipment and materials used for involved at the different stages of the food chain;
- food processing company staff,
- the various principles and methods used.

Section 32: The general organization of food inspection in Cameroon shall be lay down by a separate instrument.

CHAPTER V: FINANCING FOOD SAFETY ACTIVITIES

Section 33: Food safety activities may be financed through:

- State subsidies;
- any support from development partners;
- any other form of financing in compliance with the legislation in force.

Section 34: The condition for collecting, mobilizing and using funds intended to finance food safety activities shall be lay down in a separate instrument.

CHAPTER VI: ADMINISTRATIVE AND CRIMINAL PENALTIES

Section 35: Without prejudice to criminal proceedings, the competent authority may, in the event of failure by companies to fulfil their obligations under this law, or where a serious or immediate danger is established, impose one of the following penalties:

- suspension or cancellation of the registration of the company;
- seizure or destruction of any food, utensil, material, substance or other object in connecting with an offence committed or used in the commission of an offence;
- suspension of the approval of any laboratory, equipment or professional authorized by this law;
- temporary closure of the company, temporary or permanent banning of the use of company equipment or some company premises;
- temporary or permanent banning of the official of the defaulting food processing company from participating in any other food processing company.

Section 36: Without prejudice to the punishment of offences already provided for with respect to public health offences, a prison term of from three (3) months to three (3) years and a fine of from CFAF one hundred thousand (100 000) to CFAF two million (2000 000) shall be imposed on :

- whoever supplies adulterated food or food unfit for human and /or animal consumption;
- the sworn officer who seizes foodstuff for reasons other than those provided for under this law,
- the sworn officer who, without authorization, discloses information gathered in the discharge of duties conferred by this law.

CHAPTER VII: MISCELLANEOUS AND FINAL PROVISION

Section 37: Implementing instruments shall, as appropriate, supplement the provision of this law.

Section 38: All previous provisions repugnant to this law are repealed.

Section 39: This law shall be registered, published according to the procedure of urgency, and inserted in the Official Gazette in English and French.

Yaoundé, 11 December 2018.

Paul Biya,
President of the Republic.

1.3. DECREES

1.3.1. Decree No. 2005/118 of April 15, 2005 lay down the organization of the Ministry of Agriculture and Rural Development

The organization chart in force of the Ministry of Agriculture and Rural Development is accessible under the link, <http://www.minader.gov.cm>.

1.3.2. Decree No.2005/171 of 26 May 2005 lay down the Ratification of The Stockholm Convention

1. The Stockholm Convention on Persistent Organic Pollutants adopted on 23 May 2001 is ratified.
2. This decree shall be registered, published according to the procedure of urgency, and inserted in the Official Gazette in English and French.

Yaoundé, 26 May 2006

Paul BIYA,
President of the Republic

1.3.3. Decree No. 2011/2584 /PM of 23 August 2011 lay down conditions for the protection of soils and the sub-soil

CHAPTER I: GENERAL PROVISIONS

1. This decree lays down the conditions for the protection of soils and the sub-soil.

2. For the purposes of implementation of this decree, the following definitions shall apply:

distribution: supply to the market, transportation, storage or sale of pesticides or fertilizers or any chemical products.

harmful effect to the environment: any effect which is noxious or which renders the environment hazardous to human, animal or plant life.

fertilizer: any substance or material containing one or more nutritive plant elements approved and used as such for the purpose of enhancing plant growth and production.

bulk fertilizer: fertilizer distributed without packaging or in any other unpackaged form.

compound fertilizer: fertilizer containing at least two nutritive elements in its chemical composition.

custom-made fertilizer: mixed fertilizer, pre-pared following the individual specifications supplied by the consumer.

label: indication of everything in a written, printed or graphic form on the immediate packaging or during a specific message on a fertilizer.

operator: a natural or legal person exercising commercial and/or industrial activities which may lead to soil degradation.

manufacturing: preparing, composing, creating active ingredients, adding substances, mixing, formulating, packaging or repackaging, labelling or treating in any form the active ingredient for the purpose of sale.

noxious body: any species, strain or plant or animal biotype, as well as the pathogenic agent, harmful to plants and plant products.

pesticide: any substance or compound substances intended for repelling, destroying or controlling pests, vectors of diseases and undesirable plant or animal species causing damage and also harmful during the production, processing, storage, transportation or marketing of food, agricultural products, timber and non-Wood Forest products.

body of water: any part of the territory which is occupied or is likely to be occupied comprising the sea, a river, stream, brook, lake, marshland or backwater.

chemical product: a product obtained by processes or chemical combination.

adulterated product: a product which Contains any poisonous or noxious substance in such substantial quantity as to render it harmful to plant, animal, human, aquatic life, the soil or water when used following the mode of usage indicated on the label.

advertising: offer of sale and use of pesticides by the print or electronic media, notice boards, presentations, gifts, shows or by word of mouth.

mulching: agricultural technique which consists in covering young plants with straw or manure, to avoid evapotranspiration and other parasites.

arable land: surface part of the soil suitable for agricultural activities.

erosion zone: part of the land where, due to the nature of soils or conditions of their occupancy, lack of plant cover or hedge, their declivity, the agricultural activities and the other human activities leading to soil degradation.

CHAPTER II: SPECIAL CONDITIONS FOR THE PROTECTION OF SOILS AND THE SUB-SOIL

I- Protection against Erosion and Desertification

3. Any activity relating to the exploitation of soils must be such as to avoid or reduce soil erosion and desertification.

4. (1) Exploitation shall be prohibited in high-risk erosion zones.

(2) An order of the Senior Divisional Officer enacted on the proposal of technical services with territorial jurisdiction, shall delimit the high-risk erosion zones and lay down safety Conditions.

II. Protection against the Loss of Arable Lands.

5. Any activity which degrades or modifies the quality and/or structure of arable lands or contributes to the loss of such lands shall be prohibited.

III. Control of the Pollution of the Soil and its Resources by Chemical Products, Pesticides and Fertilizers

6. Any natural or legal person who uses fertilizers, pesticides or chemical products shall be bound to comply with national and international standards.

7. The intensive use of fertilizers in agricultural exploitation shall be subject to prior assessment of the physical and chemical conditions of the soil.

8. Besides the conditions laid down by the regulations in force in Cameroon, the distribution of fertilizers, pesticides or chemical products shall be subject to the sticking of a label comprising the following indications:

- net weight of the packaging content;
- mark or name of the product;
- name and address of the manufacturer or the approved distributor;
- specifications relating to the quality and guarantee;
- indications concerning the product toxicity level;
- risks to public health and the environment;
- active principle of the product;
- product usage notice.

9. Any natural or legal, private or public person who possesses an agricultural holding and is involved in the intensive use of fertilizers and/or pesticides or soil conditioning apparatuses, shall be bound to regularly conduct an assessment of their impact on the environment, in accordance with the regulations in force.

10. Any natural or legal person who desires to manufacture or package fertilizers and /or pesticides on the national territory, shall be bound to carry out an environmental impact assessment, in accordance with the regulation in force.

CHAPTER III: LIST OF THE FERTILIZERS, PESTICIDES AND OTHER CHEMICAL SUBSTANCES SUBJECT TO AUTHORIZATION

11. (1) The list of fertilizers, pesticides and other chemical substances subject to the provisions of this decree shall be that whose use is authorized by regulation in force.

(2) Any other chemical product not featuring on the approval list, shall be prohibited save for research purposes.

12. (1) The insecticides, rongicides, fungicides, herbicides and metal bromides of the Customs Code N°2093 30;2903 3000;3808 10;3808 20;3808 30;3808 40;3808 90 which contain the substance depleting the ozone layer, as regulated by the Montreal Protocol, shall be controlled jointly by the Ministries in charge of environment and agriculture.

(2) The control referred to under paragraph (1) above concerns the fertilizers and/or pesticides not in conformity with the provisions of the Carthage and Montreal Protocol the Bale, Bamako, Rotterdam, Stockholm and Rio on Convention on biodiversity. It is aimed at:

Avoiding the importation, production and/or use on the national territory of fertilizers and/or pesticides not conformity with the statutory provisions;

Ensuring the prevention of the importation, production, distribution and/or use on the territory of the fertilizers containing noxious substances or harmful properties, even when used in accordance with the prescribed doses and likely to effect the development of plants, human and animal health and the environment.

CHAPTER IV: QUANTITY AUTHORIZED AND CONDITION OF USE OF FERTILIZERS, PESTICIDES AND OTHER CHEMICAL SUBSTANCES

13. the quantity authorized and the conditions of use of fertilizers, pesticides and other chemical substances, shall be those laid down by the regulations in force.

CHAPTER V : MISCELLANEOUS AND FINAL PROVISIONS

14. (1) any infringement of the provisions of this decree shall be liable to the sanctions laid down by law N°96/12 of 5 August 1996 relating to environmental management, law N°2003/3 to regulate the activities of the fertilizer subsector in Cameroon and law N° 2003/3 of 21 April 2003 relating to phytosanitary protection.

(2) However, the compromise and arbitration provided for in the abovementioned framework law shall be implemented as and when necessary.

15. All previous provisions repugnant to this decree are hereby repealed.

16. The Ministers in charge of the environment, agriculture, State property, mines and technological development and forestry are responsible, each in his own sphere, implementation of this decree, which shall be registered, published according to the procedure of urgency, and inserted in the Official Gazette in English and French.

Yaoundé, 23 August 2011.

Prime Minister
Philemon YANG

2.PART TWO: LEGAL FRAMEWORK FOR SEEDS AND SEEDLINGS

2.1. LAWS

2.1.1. Law N° 2001/14 of 23 July 2001 relating to seed production and marketing

The National Assembly deliberated and adopted
the President of the Republic hereby enacts the law set out below:

PART I: GENERAL PROVISIONS

Section 1- (1) This law shall lay down the conditions for carrying out seed production and marketing activities in Cameroon.

(2) It is aimed at fostering agricultural development by:

- optimizing the use of agricultural research findings to improve seed varieties;
- protecting the seed sector against unfair competition;
- guaranteeing the quality of seeds intended for farmers;
- protecting breeders against imitation;
- preserving national photogenetic resources.

(2) The Seed Fund shall be financed from certification fees as well as from any other appropriate resources.

(3) The establishment as well as the organization and management of the Seed Fund shall be laid down by decree of the President of the Republic

Section 2- For purposes of this law and its instruments of implementation, the following shall mean:

“Seed” all or part of plant organism enabling the multiplication or production thereof, namely grain, cutting, plant, shoot, tuber, bulb, spore or vitro- plant;

“Seed authority” public service charged with formulating and implementing State policy on seeds, notably, the Ministry in charge of Agriculture;

“Seed production and marketing activities”: any operation consisting in producing, processing, importing, exporting, or marketing seed;

“breeder»: a person who has discovered and grown a new variety. The term shall not include a person who has redeveloped or rediscovered a variety whose existence is widely known or is a topic of common knowledge;

“new variety” plant varieties created or discovered resulting from a special genetic process or from a special composition of hereditary processes and different from any other plant group and which constitute a distant entity in respect of their ability to multiply;

“nurseries” plantation and farms reserved for the production notably of seedling of plant and fruits trees, cocoa trees, oil palms, coffee trees, ornamental plants, forest trees and vegetables.

Section 3-(1) Seed production and marketing activities governed by this law and defined in section 2 above shall be carried out under State control. To this effect the State shall stipulate recognized technical standard relating to seeds, and ensure quality control and certification of seeds.

(2) The duty of defined technical standards quality control and certification of seed incumbent on the State may be instructed to a specialized institution set up for this purpose by decree of the President of the Republic.

(3) Seed related research shall remain subject in this law and regulations in force.

PART II SEED PRODUCTION AND MARKETING ACTIVITIES

Section 4-Seed production and marketing activities may concern one, more or all of the activities defined in Section 2 above.

CHAPTER I: GENERAL CONDITIONS FOR CARRYING OUT SEED PRODUCTION AND MARKETING ACTIVITIES

Section 5-(1) Any individual or corporate body shall be free to carry out seed production or marketing activities in any part of the country, subject to compliance with the law and regulations in force, with the applicable technical standards as well as with international commitment subscribed to by Cameroon notably the International Convention on Biodiversity.

(2) Seed production and marketing activities shall however be subject to prior declaration under condition laid down by regulations.

Section 6-The importation, production and marketing of seeds shall be subject to the conditions defined in specifications fixed by joint order of the ministers in charge of agriculture and of trade.

Section 7- Any individual or corporate body carrying out a seeds production or marketing activities shall keep a register or transaction per species, variety and category under condition defined by regulations.

Section 8-(1) A national Seed and New Plants Varieties Council shall give an advisory opinion on all matters relating of production, marketing, quality control and certification of seeds and new plant varieties.

(2) A decree of the President of the Republic shall define the setting up, organization and functioning of the National Seeds and New Plant Varieties Council.

CHAPTER II: CLASSIFICATION, QUALITY CONTROL AND CERTIFICATION OF SEEDS

Section 9-(1) Seeds of all plant species and varieties shall be classified in three categories:

- Basic seeds;
- Certified seeds;
- Standard seeds.

(2) The criteria for classification shall be laid down by regulation.

Section 10 – (1) An official Catalogue of Species and Varieties in which the plant varieties developed in or introduce into Cameroon shall be registered under conditions laid down by regulation is hereby instituted.

(2) The featured of the official catalogue of species and varieties as well as the conditions for its keeping shall be defined by regulations.

Section 11 – (1) basic seeds and certified seeds produced in Cameroon shall be certified by the seeds authority.

(2) All seeds marketed in Cameroon shall be subject to quality control by the seeds authority.

(3) The seed certification and quality control mechanism and procedures provided for in subsections (1) and (2) above shall be defined by regulation.

Section 12-(1) Officers in charge of seed certification and seed quality shall take the oath in accordance with the law in force.

(2) A separate instrument shall fix the technical power and lay down the rules and regulation of the officers referred to in subsection (1) above.

Section 13 – Seed certification activities, separation homogeneity- stability (SHS) and agricultural and technological value (ATV) tests for the entry varieties into the catalogue referred to in section 12 above as well as the conformity shall be subject to payment of a fee whose amount and collection conditions shall be lay down by joint order of the minister in charge of agriculture and the minster in charge of finance.

Section 14-(1) Only seeds or plant varieties registered in the Official Catalogue of Species and Varieties in one of the categories referred to in section 9 of this law shall be sold in Cameroon.

(2) The seed marketed must meet general standard of chemical treatment, storage, packaging and labelling fixed by joint order of the minister in charge of agriculture and the minister in charge of trade.

Section 15-(1) Seed quality control and certification analysis shall be conducted in the referral national laboratory or in any other laboratory approved for this purpose by joint order of the minister in charge of agriculture and the minister in charge of scientific and technical research.

(2) Where test results are challenged, second analysis may be conducted at the expense of the plaintiff, in another approved laboratory.

CHAPTER III: SEED PRODUCTION DEVELOPMENT

Section 16 - (1) Incentives must be provided notably in the areas of finance, customs duties and taxes, real estate, land and logistics in order to promote private investment in the seed sector and make national seed production more competitive.

(2) Indirect aid to seed development in the private sector may be granted by the Government to facilitate personal training.

Section 17 - (1) A seed fund is hereby established in order to support seed production, seed research as well as local seed development and preservation

(2) The Seed Fund shall be financed from certification fees as well as from any other appropriate resources.

(3) The establishment as well as the organization and management of the Seed Fund shall be laid down by decree of the President of the Republic.

CHAPTER IV: PROTECTION OF NEW PLANT VARIETIES

Section 18 - The protection of new plant varieties as defined by this law shall be governed by the provisions of Annex X to the 19 February 1999 Agreement on the Revision of the Bangui Accord of 2 March 1977 to institute the African Intellectual Property Organization (AIPO).

PART III: OFFENCES AND PENALTIES

Section 19 - (1) Without prejudice to action for third party liability that may be instituted and notwithstanding certain administrative penalties provided for by Law No. 90-31 of 10 August 1990 governing commercial activity in Cameroon that may be inflicted by the minister in charge of agriculture on persons undertaking activities governed by this law whoever

- fails to keep a register of transactions by species and by variety.
- objects to seed quality control markets substandard seed
- markets species and varieties not registered in the catalogue of species and varieties:
- falsifies seeds,
- in general, undertake seed-related activities in violation of the provisions of this law, shall be punished with imprisonment for from 1(one) to 3 (three) months or with fine of from 50,000 (fifty thousand) CFA francs to 2,000,000 (two million CFA francs, or with both such imprisonment and fine.

(2) In the event of a repetition of the offence, the penalties provided in subsection (1) above shall be doubled.

Section 20 -The penalty provided for by this law shall apply without prejudice to the provisions of the Penal Code.

Section 21 - (1) Without prejudice to the recognized prerogatives of the legal department and general criminal investigation officers, sworn officials of the seed authority shall be responsible for detecting, establishing and prosecuting violations of the provisions of this law.

(2) While performing their duties, sworn officials must carry their professional cards.

Section 22 - (1) Any violation established shall be recorded in a normal report. The detection and establishment of violations shall be carried out by 2 (two) officers who shall draw up reports. Such report shall have the force of prima facie evidence.

(2) The report thus drawn up shall be countersigned by the accused. Where the latter refuses to do so, this shall be mentioned in the margin of the report.

Section 23 - (1) Any report establishing an offence shall be notified to the offender by any written means. The latter shall have 20 (twenty) days from the date of such notification, within which to challenge it. Beyond such period no complaint shall be admissible.

(2) The complaint shall be lodged with the seed authority which shall decide within 15 (fifteen) days following reception of the petition. Beyond such period, the petition shall be deemed to have received a favorable response and report establishing the offence shall become null and void.

(3) Where after considering the petition, the seed authority deems it justified, it shall accede to the plaintiff's request and the establishment of the offence disregarded. Otherwise, the seed authority shall institute legal proceeding in accordance with the laws in force.

Section 24 - (1) Violations of this law and its implementation instruments may give rise to a settlement between the seed authority and the offender, where the latter so requests.

(2) The settlement referred to above shall be registered at the expense of the offender and shall put an end to public prosecution where it is reached prior to pronouncement of the judgment on the merits by a competent court.

(3) The fines resulting from the settlement provided for above shall be subject to the same conditions of collection as the fines imposed by ordinary law courts.

Part IV: Miscellaneous and Final Provisions

Section 25 - The Minister in charge of Agriculture shall enter in the Official Catalogue of Species and Varieties, the species and varieties already known and grown in Cameroon, after updating their descriptive card indexes provided by persons operating in the sector.

Section 26 - The various stakeholders of the seed sector shall have a period of (1) one year with effect from the date of enactment of this law within which to comply with its provisions.

Section 27 - All previous provisions repugnant hereto are hereby repealed

Section 28 - This law shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French.

Yaoundé, 23 July 2001

President of the Republic

Paul BIYA

2.2. DECREES

2.2.1. Decree N° 2005/153 of 4 May 2005 bearing the creation, organization and functioning of a national seeds and new plant variety council.

THE PRESIDENT OF THE REPUBLIC

Mindful of the Constitution;

Mindful of Law N°2001/014 of July 2001 on Seed Activity;

Mindful of Decree N°2004/320 of 8 December 2004 organization the Government;

Mindful of Decree N°2005/118 of 15 April 2005 bearing the organization of the Ministry of Agriculture and Rural Development;

DECREES

Article 1 – A National Seeds and New Plant Variety Council, under the Minister in charge of Agriculture, abbreviated as: NSNPVC is hereby created.

Article 2- NSNPVC shall be a consultative organ charged with giving an opinion on all matters relating to the production, the commercialization, quality control, certification of seeds and plants, and on plant varieties susceptible to developing and orienting the implementation of nation seed policy.

In this regard, it shall:

- advise the government on all subjects concerning the sustainable development of the seed sector;
- give an opinion on the legal and regulatory draft texts relating to seed activity;
- propose the insertion or the radiation of species and varieties in the official catalogue of species and varieties;
- give an opinion on applications for financial support addressed to the Seeds Fund;
- Give an opinion on the introduction into the national territory of new technologies, including genetically modified organisms relating to plant material.

Article 3 – (1) NSNPVC shall comprise the following:

- President: The Minister in charge of Agriculture or his representative;
- Members
- Two (02) representatives of the Ministry in charge of Agriculture;
- One (01) representative of the Ministry in charge of Finance;
- One (01) representative of the Ministry in charge of public health;
- One (01) representative of the Ministry in charge of development programme;
- One (01) representative of the Ministry in charge of research;
- One (01) representative of the Ministry in charge of Environment;
- One (01) representative of the Ministry in charge of Forest;
- One (01) representative of the Ministry of Livestock;
- One (01) representative of the Ministry in charge of Commerce;
- The Director General of the Institute for Agricultural Research;
- Two (02) representatives of State University Institutions in Cameroon;
- three (03) representatives of seeds establishments including one (01) for cereals, grain vegetables, fodder and market garden seeds, one (01) for producers of multiplication plant seeds and one (01) for nurseries;
- One (01) representative of agricultural multipliers of seed and plants;
- Three (03) representatives of farmers;

- One (01) representative of professional importers and exporters of seeds;
- One (01) representative of industries of agricultural products transformation;
- Two (02) representatives of seeds and plants distributors;
- One (01) representative of financial institutions of the seed sector;
- One (01) representative of the chamber of agriculture, livestock and Forests;
- One (01) representative of the chamber of commerce, Industry, Mines and handicraft.
- (2) The President of NSNPVC may appeal to all other persons by reason of their competence on the questions inscribed on the agenda, who shall participate in the work of NSPVs with a consultative voice.

Article 4- (1) the members of NSNPVC from the public and private sectors shall be designated by the Administrations and the socio-professional Organization where they belong.

(2) The composition of NSNPVC shall be fixed by an order of the Minister in charge of Agriculture.

(3) The duration of the mandate of the President and members of the NSNPVC shall be three (03) years renewable.

Article 5- (1) the secretariat of the NSNPVC shall be ensured by the Department in charge of regulation, quality control and certification of seeds and plants.

(2) The secretariat shall:

- prepare meetings;
- draft opinions, proposals and recommendations of the NSNPVC;
- ensure the monitoring and implementation of conventions in the field of competence of NSNPVC;
- draft reports and minutes of meetings;
- conserve the documentation of NSNPVC;

Article 6- (1) a commission for the approval of species and varieties is hereby created under the NSNPVC. The commission, on the basis of the results of the **Distinction, homogeneity and Stability (DHS)** and the **Agronomic and Technology Values (ATV)** tests, shall give its opinion on the species and the applicant varieties to be inscribed on the Official Catalogue of Species and Plants.

(2) However, the NSNPVC may establish, where necessary, Special Committees by topic, species or group of species to study the specific technical aspects relevant to their area of competence.

(3) The presidents of release commission and the Special Committees cited in paragraphs (1) and (2) above shall be chosen by the NSNPVC from among its members.

Article 7 – The functions of the President and members of NSNPVC shall be gratuitous. However, the President and the members as well as the persons invited in consultative capacity, shall benefit from sitting allowances the amount of which shall be fixed by an Order of the Minister in charge of Agriculture.

Article 8- (1) NSNPVC shall meet on the convocation of its President at least two (02) times per year or at the request of the Minister in charge of Agriculture.

(2) The NSNPVC may validly deliberate only in the presence of at least two thirds (2/3) of its members.

Article 9 - (1) The NSNPVC shall give its opinion by a simple majority of members present. In case of a tie, the vote of the President shall be decisive.

(2) The Reports or minutes of meetings shall be transmitted to the Minister in charge of Agriculture within fifteen (15) days from the date of the meeting.

Article 10 -The NSNPVC shall address a report to the Prime Minister, Head of Government, on month after the closure of the budgetary year.

Article 11-The running expenses of the NSNPVC shall be supported by the budget of the Ministry in charge of Agriculture.

Article 12-All other previous provisions contrary to this Decree, especially those of Decree N°90/10009 of 13 June 1990, bearing the creation of the Seed Council, are hereby repealed.

Article 13-The Minister of Agriculture and Rural Development is charged with the implementation of this decree which shall be registered and published following the urgency procedure, then inserted in the Official Gazette in French and English.

Yaoundé, the 4 may 2005

President of the Republic

Paul BIYA

2.2.2. Decree N° 2005/169 of 26th May 2005 on the creation, the organisation and management of the seed fund.

THE PRESIDENT OF THE REPUBLIC

Mindful of the Constitution,

Mindful of Ordinance N°62/OF/4 of the 7th February 1962 to regulate the presentation, the conditions of executing the budget of the Republic of Cameroon, her incomes, her expenditures and all other forms of related operations, modified by law N° 2002/001 of 19th April 2002;

Mindful of Law N°2001/014 of 23rd July 2001 on seed activity;

Mindful of Decree N°2004/320 of 8th December 2004 organizing the Government;

DECREES

PART I: GENERAL PROVISIONS

Section 1: The present decree creates and fixes the conditions for the organization and management of the seed fund, hereinafter referred to as “the Fund”.

Section 2: (1) The seed fund is a special account in the treasury meant to support the development of seed activity, carry out research on seed-related issues, as well as the development and preservation of local seeds.

(2) This fund is placed under the authority of the Ministry in charge of Agriculture.

PART II: RESOURCES AND EXPENDITURES OF THE FUND

Section 3: (1) the annual resources of the Fund, according to the Finance law are made up of:

- revenue from operations of seeds certification and conformity tests;
- registration charges of seed varieties in the official catalogue;
- rents from seed multiplication farms and the dissemination of plant material;
- charges for issuing seed activity certificates;
- State subventions;
- All other resources authorized by the finance law.

The resources of the Fund are public property hence, as such, they must be checked annually and controlled by competent state authorities.

Section 4: (1) expenditures to be handled by the Fund include:

- Support to the development of seed activity;
- Seed-related research operations;
- The development and preservation of local seeds.

(2) All expenditures involved in the Fund must first of all be checked and approved by the controller of finance appointed under the Ministry in charge of Agriculture.

PART III: THE MANAGEMENT OF THE FUND

Section 5: the Fund is managed by:

- a manager;
- an accountant.

Section 6: The Ministry in charge of Finance delegates by order, his power of budget prescription to the Minister in charge of Agriculture with the aim of proper of the Fund created by this decree. To this effect, the Minister in charge of Agriculture:

- ensures the engagement, the liquidation and the prescription of all expenditures;
- authorizes the creation of proper bank accounts for the fund;
- takes all necessary measures pertaining to the management of the Fund.

Section 7: (1) The Minister in charge of Agriculture sets up an administrative account for every period that makes precision of all income and expenditure effected.

(2) The administrative account is transmitted to the Minister in charge of Finance and also to competent State control agency of such accounts.

Section 8: The accountant is in charge of:

- ensuring financial recovery and the liquidation of the expenses of the Fund;
- handling all the transactions involving cash and other assets of the Fund;
- setting up a management account for each period;
- preparing the annual administrative account to be submitted for signature by the Minister in charge of Agriculture;
- Ensuring and certifying the sincerity and accuracy of all documents pertaining to the Fund.

Section 9: The accountant is appointed among other accountants of the treasury by an Order of the Minister in charge of Finance, he is a public accountant, hence he is subject to all disciplinary rules, expected to manage and keep the account as per the accounting system of the Treasury Department.

Section 10: The accounting system of the Fund must follow the rules of the public account system. The system of all public financial operations is applicable to the Fund.

Section 11: (1) All projects and programs submitted for funding from the resources of the FUND must present the following:

- priorities with respect to science and seed technology;
- studies and research works to be carried out;
- The cost of operations to be carried out.

(2) Disbursing the funds for the execution of projects provided for in sub-section (1) above is done in conformity with the regulations in force.

Section 12: the following can benefit financially from the resources of the Fund:

- charges related to the control and certification of seeds;
- seed companies operating in Cameroon who are in conformity with the seed law;
- local farmers involved in the multiplication of seed and plants;
- Private or public research in the domain of science and seed technology.

PART IV: MISCELLANEOUS AND FINAL PROVISIONS

Section 13: (1) the Minister in charge of Agriculture is responsible for the technical follow up and control of all public or private programmes and projects financed by the Fund.

(2) The programmes and projects of the public sector are prioritized in the use of the resources of the Fund.

Section 14: the conditions for returning the resources of the Fund are provided for in a joint text from the Minister in charge of Agriculture and the Minister in charge of Finance.

Section 15: this decree shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French.

Yaoundé 26 May 2005

President of the Republic

Paul BIYA

2.2.3. Decree N°2005/3090/PM of 29th august 2005 to fix the quality and the duties of sworn officials in charge of control and seed certification

THE PRIME MINISTER HEAD OF GOVERNMENT

Mindful of the Constitution;

Mindful of Law N°2001/014 of 23rd July 2001 related to seed activity;

Mindful of Decree N° 92/089 of 4th may 1992 prescribing the attributes of the Prime Minister modified and completed by decree n° 95/145 of 4th august 1995;

Mindful of Decree N° 2004/320 of 8 December 2004 to organize the Government;

Mindful of Decree N° 2004/321 of 8 December 2004 appointing the Prime Minister;

DECREES

PART I: THE QUALITY OF THE AGENTS IN CHARGE OF QUALITY CONTROL AND SEED CERTIFICATION

Section 1: The present decree states the quality and the missions of the sworn staff in charge of the control and certification of seeds.

Section 2. (1) Under the reserve of their competence and their experience on seed science and seed technology could be the following staff of the seed administration as staff in charge of control and seed certification:

- Seed inspector: civil servants of category A or contract officers of administration of categories 10 to 12:
- Seed Analyst: civil servants of category A or contract officers of the administration of categories 10 to 12:
- Seed Controller or seed laboratory technician: civil servant of at least Category C or contract officer of at last category 7.

(2) The officers in charge of quality control and seed certification are appointed by the minister in charge of Agriculture.

Section 3. Before getting in to activity, and at the request of the Minister in charge of Agriculture, the agents referred to in Section 2 above shall take oath before the court of First instance of their various places of work according to the regulations in force.

PART II - THE MISSION OF AGENTS IN CHARGE OF CONTROL AND SEED CERTIFICATION

Section 4. (1) Seed inspectors have the duty to carry out seed certification on the field and the control of the quality of seeds on sale.

(2) Seed Analysts have the duty to carry out seed sample analyses in the laboratory. They are assisted by seed laboratory technicians.

Section 5. (1) Seed inspectors and controllers have the authority to:

- Visit nurseries, multiplication plots and seed packaging centres;
- take seed samples for laboratory analyses to ensure that seeds that are placed for certification or on sale respect the norms and conditions laid down in the seed law and the regulations in force;
- Visit seed storage and seed sales structures:
- proceed to the examination of the documents of the seed establishments and seeds merchants in view of checking that the seeds distributed in the country respect the standards defined by the law and regulations in force:
- take note of all disorder, proceed to conservatory confiscation, order for quarantine control and request the degrading or the destruction of seeds which do not meet the standard:
- follow-up the transaction procedures.

(2) The destruction of seeds referred to in (1) above is executed by a commission designated by the Minister in charge of agriculture at the expense of the defaulter.

Section 6. (1) During their mission of control and seed certification, seed inspectors and controllers are fortified with a warrant issued by the Minister in charge of agriculture.

(2) During their mission of control, and where need arises, the seed inspectors and controllers can appeal to the judiciary police officers according to regulations in force.

PART III - GENERALS PROVISIONS.

Section 7. Advantages attached to the functions of seed inspectors, analysts, and controllers and laboratory technicians are fixed by a joint Order of the Minister of Finance and the Minister of Agriculture with respect to recommendations from the National Seeds Council.

Section 8. Any sworn agent transferred or dismissed from his functions loses his status.

Section 9. The Ministers in charge of agriculture and Finance are charged with the implementation of this decree which shall be registered, published according to the emergency procedure and inserted in the Official Gazette in English and French.

Yaounde the 29 august 2005

Prime Minister, Head of Government

INONI Ephraim

2.3. ORDERS

2.3.1. Joint Order No. 381/MINADER/MINCOMERCE of 7 August 2006 to lay down the general standards for chemical treatment, storage, packaging and labelling of seeds.

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT AND THE MINISTER OF TRADE

Mindful of the Constitution,

Mindful of Law No. 90/031 of 10 August 1990 on commercial activities;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2004/320 of 8 December 2004 to organise the Government;

Mindful of Decree No. 2004/321 of 8 December 2004 to appoint a Prime Minister, Head of Government;

Mindful of Decree No. 2004/322 of 8 December 2004 to form the Government;

Mindful of Decree No. 2005/089 of 29 March 2005 to organise the Ministry of Trade;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development,

HEREBY ORDERS AS FOLLOWS:

Article 1: This Order lays down the general standards for chemical treatment, storage, packaging and labelling of seeds.

Article 2: Marketed seeds shall be subject to the provisions of Law No. 90/031 of 10 August 1990 on commercial activities, Law No. 2001/014 of 23 July 2001 relating to seed activities, as well as their implementing instruments and the general standards laid down by this joint order.

Article 3: Seeds shall be stored under good conditions to maintain adequate moisture, temperature as well as good health conditions. The storage facilities shall be isolated from any warehouse that may contain seeds for consumption or products that may alter the quality of the seeds.

Article 4: Raw seed lots shall be identifiable from the point of transportation to the packaging stage. In this regard, the transportation equipment or storage container shall be labelled with the producer's reference, the name of the specie, the name of the variety, the category and the lot number and, if necessary, a certificate of origin for the parent seeds.

Article 5: Seed treatments shall comply with the seed and phytosanitary regulations in force in Cameroon.

Article 6: (1) Each package containing any category of seed and, where necessary, starting genetic material shall bear an official label issued by the seed certification authority.

(2) A duplicate label shall be placed inside the package, in case the name of the species, variety, lot number, or production date are not permanently printed on the package or on the outer label.

Article 7: (1) The official labels shall have the following colours:

- white with purple stripes for pre-basic seeds;
- white, for basic seeds;
- blue, for first generation certified seeds (R1);
- red, for certified seeds of subsequent generations, specifying the serial number of the generation starting with R2 certified seeds;
- brown for standard seeds.

(2) The colours of the labels or stickers of any category of seed authorised to be marketed shall be approved by decision of the Minister of Agriculture upon opinion of the consulting the National Council for Seed and Plant Varieties.

Article 8: (1) Unless there is a special authorisation for some species, the mixture of seeds of different species, varieties or categories shall not be marketed.

(2) However, the marketing of mixed seeds of species intended for sowing lawns and meadows, shall be authorised provided that the composition is mentioned on the package.

Article 9: The information on the package and the label for each species or group of species shall comply with the relevant regulations in force.

Article 10: In cases where officially sealed seed packages containing "certified seeds" or "basic seeds" have been opened by the company for compelling reasons, the seed certification authority shall permit re-sealing at the request of the company, which shall carry out all relabelling and resealing operations under its supervision. During the new sealing, a new official quality control of the seed shall be carried out and a new number shall be assigned.

Article 11: The Secretaries General of the Ministry of Agriculture and Rural Development and of the Ministry in charge of Trade are responsible, each in their respective capacities, for the implementation of this joint order, which shall be registered, published according to the procedure of urgency, and then inserted in the Official Gazette in English and French.

Yaounde the 7 August 2006

**The Minister of Agriculture and Rural
Development**

CLOBERT TCHATAT

The Minister of Trade

LUC MAGLOIRE ATANGANA

2.3.2. Order No. 0938/MINADER/SG/DRCQ/SDRSQV of 12 September 2012 relating to the organisation and functioning of the Species and Varieties Approval Commission within the National Council for Seed and Plant Varieties

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution;

Mindful of Law No.2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No.2011/408 of 9 December 2011 to organise the Government;

Mindful of Decree No. 2011/410 of 9 December 2011 to form the Government;

Mindful of the recommendations of the National Council for Seed and Plant Varieties during its meeting held on 22 September 2009,

Considering service needs,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I: GENERAL PROVISIONS

Article 1: This Order lays down the organisation of Species and Varieties cultivated or marketed in Cameroon (CHEV), established within the National Council for Seed and Plant Varieties (CONSOV).

Article 2: (1) The Species and Varieties Approval Commission shall, on the basis of the DUS and VAT test results, provide technical advice on species and varieties to be registered in the Official Catalogue of Species and Varieties. In this capacity, it shall be responsible for:

- Evaluating the appropriate measures to take for the improvement of national agricultural production through the use of certified seeds and seedlings.
- Developing protocols (guidelines) for technical tests of distinctness-uniformity-stability (DUS) and agronomic and technological value (VAT) of species or groups of species cultivated and/or marketed in Cameroon and updating them as necessary.
- Giving advice on the introduction of new technologies, including genetically modified organisms, into the national territory, based on scientific, technical and economic results.
- Directing and coordinating probationary testing activities (technical tests of Distinctness, Uniformity, Stability (DUS) and Agronomic and Technical Value (VAT) on the field for new varieties, bearing in mind that Article 25 of Law No. 2001/014 of 23 July 2001 relating to seed activities is applicable for the already known species and varieties, cultivated and marketed in Cameroon.
- Examining applications to be registered in the Official Catalogue of Species and Varieties, based on the information forms submitted by the economic operator and/or the result of the DUS and VAT tests.

(2) The deliberations of the Species and Variety Approval Commission shall be sent to the President of CONSOV.

CHAPTER II: ORGANISATION AND FUNCTIONING

Article 3: (1) The Species and Variety Approval Commission shall comprise the following:

- **President:** The Director of Regulations, Quality Control and Certification of Agricultural Inputs and Products of the Ministry in charge of Agriculture and Rural Development;
- **Vice-President:** the Director General of Agricultural Research for Development;
- **Secretary:** the Sub-Director of Seed Regulation and Plant Quarantine of the Ministry in charge of Agriculture and Rural Development.

- **Members:**

- the Sub-Director of Seeds and Seedlings of the Department in charge of Agricultural Development;
- the Sub-Director of Agricultural Extension of the Department in charge of Professional Agricultural Organisations and Support to Agricultural Holdings;
- the Representative of the Institute of Agricultural Research for Development (IRAD);
- the Representative of private sector breeders for the species, or group of species concerned;
- the applicant to be registered in the official catalogue or their representative;
- the President of the Seed Trade Association (ACOSEC);
- the Representative of producers of the species, or group concerned.

(2) The President of the Species and Variety Approval Commission shall request any other person with expertise in the relevant species to take part in the work of the CHEV as a consultant.

(3) The members of the CHEV shall be appointed by the administrations and socio-professional bodies to which they belong.

(4) Representatives of public or private breeders and producers shall only be invited to the CHEV session if the species studied or the subject on the agenda falls within their field of competence.

Article 4: The members of the CHEV are appointed by decision of the Minister of Agriculture and Rural Development.

Article 5: The secretariat of the CHEV shall be the responsibility of the Secretary of CONSOV.

Article 6: (1) The CHEV shall meet as convened by its President or at the request of the President of CONSOV.

(2) The invitations to which the required working documents specifying the date, place and agenda of the meeting are attached, shall be sent to the members of the Commission at least seven (7) days before the date of the meeting.

(3) Opinions and recommendations issued by the committee shall be adopted by a simple majority of the members present. In the event of a tie vote, the vote of the President shall have the casting vote.

(4) At the end of each session of the Commission, a report shall be sent to the President of CONSOV.

CHAPTER II: MISCELLANEOUS AND FINAL PROVISIONS

Article 7: The services of the President and the members of the CHEV are free of charge. However, travel and subsistence expenses incurred for the sessions shall be covered by the CONSOV.

Article 8: The term of office of the President and the members of the CHEV shall be three years, renewable.

Article 9: Operating expenses of the CHEV are borne by the budget of the Ministry in charge of Agriculture and Rural Development.

Article 10: The President of CONSOV is responsible for the execution of this Order, which shall be registered and published according to the procedure of urgency, and then inserted in the Official Gazette in English and French.

Yaounde the 12 September 2012

The Minister of Agriculture and Rural Development

Lazare ESSIMI MENYE

2.3.3. Order No. 0072/MINADER/SG/DRCQ/SDRSQV of 22 April 2019 to lay down procedures for the approval of species and varieties.

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/001 of 4 January 2019 to appoint a Prime Minister, Head of Government;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Joint Order No. 380/MINADER/MINCOMMERCE of 7 August 2006 to lay down the specifications for seed production, import and marketing;

Mindful of Joint Order No. 381/MINADER/MINCOMMERCE of 7 August 2006 to lay down the general standards for chemical treatment, storage, packaging and labelling of seeds, and considering the service needs,

HEREBY ORDERS AS FOLLOWS:

CHAPTER I: GENERAL PROVISIONS

Article 1: This Order sets out the procedures for the approval of plant species and varieties.

Article 2: For the purpose of this Order, the following definitions shall be accepted:

- **Seeds:** all or part of a plant that allows for its multiplication or reproduction, including: seed, cuttings, seedlings, shoot, tuber, bulb, spore, vitro-plant.
- **Approval:** process whereby the competent authority approves the import, distribution and use of a new variety based on a comprehensive scientific data showing that the variety is effective for its intended uses and does not present a risk on human, animal, or environmental health.
- **DUS:** Distinctness-Uniformity-Stability
- **VAT:** Agronomic and Technological Value.
- **Request for DUS and VAT testing:** procedure carried out to include a new plant variety in the list of candidate species and varieties for DUS and VAT testing.
- **Administrative costs:** costs relating to the introduction of any request to examine plant species and varieties candidates for DUS and VAT testing.
- **DUS and VAT tests fees:** fees incurred for the payment and performance of DUS and VAT tests conducted in accordance with the regulations in force. For hybrid varieties, DUS fees are applied to the hybrid and to each of its components.
- **Experiments:** Date and place from which the trials necessary for the DUS and VAT tests are set up.

CHAPTER II: APPROVAL PROCEDURE

Article 3: Any new variety shall be subject to the approval procedure prior to its registration in the official catalogue of plant species and varieties.

Article 4: Varieties eligible for approval must meet the following requirements:

- Bear a name that cannot be confused with those of already existing varieties;
- Be recognised as distinct, uniform and stable (based on the DUS test results);
- Have a relevant agronomic and technological value (based on the VAT test results).

Article 14: These charges shall be set in line with Joint Order MINADER/MINFI.

Article 15:

- Pro forma invoices corresponding to the administrative costs and the test costs shall be sent to the applicant, specifying the deadline for payment from the issue date of the invoice.
- Proof of payment of the fees shall be required to initiate any further procedure.

CHAPTER IV: FINAL PROVISIONS

Article 16: The provisions of this Order shall repeal all other prior contrary provisions.

Article 17: The Secretary General of the Ministry in charge of Agriculture shall be responsible for the implementation of this Order, which shall be registered and published according to the procedure of urgency, and then inserted in the Official Gazette in English and French.

Yaounde, 22 April 2019

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

2.4. DECISIONS

2.4.1. Decision No. 538/MINAGRI/SG/DRCQ/SDRSQV of 7 September 2006 to approve the official technical regulations for the production, quality control and certification of seeds of some legumes (groundnuts, soybeans, cowpeas and beans).

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2004/320 of 8 December 2004 to organise the Government;

Mindful of Decree No. 2004/322 of 8 December 2004 to form the Government;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down modalities for seed production, quality control and marketing, particularly Article 22 thereof,

HEREBY DECIDES AS FOLLOWS:

Article 1: The production, quality control and certification of seeds of the following legumes: groundnut (*Arachis hypogea*), soybean (*Glycine max*), bean (*Phaseolus vulgaris*) and cowpea (*Vigna unguiculata*) shall be organised in line with the provisions of Law No. 2001/014 of 23 July 2001 relating to seed activities, as well as those of its implementing instruments and the technical regulations approved by this Decision.

Article 2: (1) At the beginning of each season, declarations of leguminous seed crops, detailed on relevant forms, shall be sent to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

The obligation to produce these declarations shall be for leguminous seed crops that are to be inspected and certified for marketing within the country.

Any modification on the crop declarations shall be communicated to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture, no later than one month after sowing.

Article 3: The complete official technical regulations in the appendix on all categories of leguminous seeds is approved.

Article 4: The Director in charge of Regulation and Quality Control of Agricultural Inputs and Products of the Ministry in charge of Agriculture shall be responsible for the implementation of this Decision, which shall be registered and published in English and French, wherever necessary.

Yaoundé, 7 September 2006

The Minister of Agriculture and Rural Development

Clobert TCHATAT

APPENDIX

OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, QUALITY CONTROL AND CERTIFICATION OF SEEDS OF SOME LEGUME S (GROUNDNUT, SOYBEAN, BEAN AND COWPEA)

SCOPE

The production of certified cowpea seeds (*Vigna unguiculata*), groundnut (*Arachis hypogea*), soybean (*Glycine max.*) and beans (*Phaseolus vulgaris*) based on the of the conservation (genealogical) selection of the variety (of each species), registered in the Official Catalogue of Species and Varieties, over successive generations, and on maintaining the seed in good physical, physiological and health conditions.

ORGANISATION OF THE PRODUCTION

Production system: The production system is based on the principle of the breeding line, from a starting genetic material corresponding to that approved and registered in the Official Catalogue of Species and Varieties. The multiplication of the pre-basic seeds is under the responsibility of the breeder or the maintainer and coordinated by the Department in charge of regulations, quality control and certification of the seeds and seedlings of the Ministry in charge of Agriculture.

Starting genetic material (line): these are plants selected by the breeder or maintainer, which enable the variety's continuous conservation (genealogical) breeding each year. These plants are called G0 (generation 0).

Pre-basic seed: the pre-basic seeds or G1, G2 and G3 refer to successive generations resulting from the multiplication of the starting genetic material:

- the seeds harvested from the starting genetic material, form the first generation known as G1 (generation 1);
- the product obtained from the sowing of the first generation forms the second generation; that is G2 (generation 2) ;
- the product obtained from the sowing of the second generation forms the third generation; known as G3 (generation 3).

The production of G1, G2, and G3 pre-basic seeds is placed under the responsibility of the breeder or maintainer or the duly authorized party and under the official supervision of the Department in charge of regulations, quality control and certification of seeds and seedlings of the Ministry in charge of Agriculture.

Basic seeds: the product obtained from the sowing of the third generation, forms the fourth generation G4 (generation 4), which are the basic seeds. The basic seeds always refer to only one generation. At the breeder's request and after the approval of the Department in charge of regulations, quality control and certification of seeds and seedlings at the Ministry in charge of Agriculture and Rural Development, the G3 generation can be certified as basic seed.

Certified seeds: Certified or R1 seed is the first generation of basic seed propagation. Certified seeds can have two generations, that is R1 certified seeds, R2 certified seeds.

Production requirements

Genus

Sowing: a genus is a set of all the plants sown from one or more pods of a single plant.

Previous cropping: the propagation farm must not have grown legumes or oilseeds in the previous season.

Sowing: the product of each seedling is sown in rows according to the plant genus.

Isolation: the G0 and G1 production field can be surrounded by a production of G1, G2, G3 or G4 with 1m between them or be separated from a crop of the same species by a minimum distance of 5m, for the same variety and 30m, for a different variety, or planted in a field of different species.

Purification:

- varietal: any aberrant or doubtful genus will be eliminated upon identification. If the plant has already blossomed, the doubtful genus must be removed, as well as at least one row on each side.
- Health: any plant affected by disease shall be uprooted. The doubtful genus must be carefully removed in order to avoid contaminating the remaining healthy plants.

Harvesting: the selected genera are harvested for a dual purpose:

- the most representative plants of the variety are harvested separately to serve as G0 for the following year, to make up the security stock and to continue the pedigree selection;
- all other genera (plants) can be harvested either separately or together to constitute the G1;
- security stock: security stocks are of two kinds: in plants (or pods from the same plant); a number of the most representative self-pollinated plants are kept (plant/pods G0) and in seeds; half of the seeds obtained from the separate harvesting of rows are kept (seeds G0), the other half is used to continue the pedigree selection.

Basic seed

Sowing: the production of G2 is carried out in a single field. The production of G3 and basic seed may be carried out in several fields provided each field has a minimum area of 0.5 ha. In a case where specialised farmer- seed growers are contracted to produce G2 and G3 (pre-basic seed) and basic seed (G4), the fields must be sufficiently close to the specialised seedling company to enable normal monitoring of production.

Isolation: the plots sown with G1 and earmarked for the production of G2, and those sown with G2 to produce G3, can be surrounded respectively, by a production of G1, G2, G3 or G4 with a separation distance of 1 m, or be separated from the crop by a minimum distance of 10 m with the same variety and from 10 to 20 m with a different variety

Certified seeds

Conditions for multiplication: certified seed producing companies can multiply only one variety of the same species for the same farmer- seed grower. Each propagation farm cannot be less than one hectare. A company cannot submit less than 5 ha per variety to control.

Isolation: the certified seed production plot is separated from any crop of the same species by a minimum distance of 1 m for the same variety and 5 m for a different variety.

CULTIVATION RULES

During plant controls and harvest, the cultivation of soy, groundnut and cowpea, must follow these rules:

- **Plot identification:** Propagation farms shall be marked from the onset by a signpost or some other notice to identify the plot, crop, variety, and possibly the category. The crops must be sown in rows at least 40 cm apart. Each plot must be sown with a single lot of parent seed.
- **Preceding crop:** Leguminous crops or oleaginous plants should not have been cultivated in the plot intended for seed cultivation, during the previous season.

- **Minimum area:** The area of a seed farm must not be less than 0.5 ha for basic seed and 1 ha for certified seed.
- **Isolation:** The isolation of the plot from any other crop of the same species must comply with the requirements for the category of the seed to be produced. Non-conformity is grounds for rejection.
- **Crop Condition:** The production farms must be well maintained: that is, density, absence of weeds in the production plots and around the plots, enabling the scoring and control of varietal identity and purity. The poor state of a field can be grounds for rejection
- **Species purity:** The presence of other species in the propagation plot, whose grains cannot be eliminated under normal sorting conditions, is grounds for rejection.
- **Varietal purity:** An impurity is considered to be any plant significantly different from the varietal type or an aberrant plant. In this context, the varietal impurities considered may be plants of a different variety, plants showing non-conformities with one or more characteristics considered important in the definition of the variety or aberrant plants. Soya and groundnut fields must not contain a rate of impurities higher than 1% for the production of pre-basic and basic seed, and 2% for the production of certified seed. Beans and cowpeas must not contain a rate of impurities higher than 3% for the production of pre-basic and basic seed and 5% for the production of certified seed.
- **Diseases:** The inspection should focus on harmful cryptogamic viral and bacterial diseases. The importance of the presence of these diseases which reduce the utility value of seeds can be grounds for rejection of the crops. The proportion of plants infected by these diseases must be less than 0.1% and 0.5% for basic and certified seed farms respectively.
- **Hazardous Weeds:** Propagation farms must be free of weeds. The tolerance threshold for the presence of weed is 0.05% for pre-basic/basic seed farms and 0.1% for certified seed farms.

INSPECTION OF SEED FARMS

Prerequisites

The inspection must be carried out in the presence of the seed grower or a representative. The seed inspector/controller must be provided with satisfactory evidence of the grade and origin of the parent seed. The seed inspector / controller shall also be informed of the crop grown during the previous season.

Number of Inspections and Crop Grading

Number of inspections: The propagation farms must be inspected at least twice for certified seed and three times for basic seed:

- the first inspection shall be carried out before blossoming occurs, to check for isolation, absence of new sprouts;
- the second, during blossoming, to check for impurities and the condition of the crop; and
- the third shall be conducted at full maturity, to re-check the purity and health of the crop.

Further inspections shall be required during harvest and, if possible, upon delivery of raw seed.

Crop Grading: The compliance of the crops with the tolerance threshold set by this regulation shall be assessed by counting, following the modalities specified on Inspection forms by the Department in charge of regulations, quality control and certification of seeds and seedling of the Ministry in charge of Agriculture and Rural Development.

The approval or the partial or total downgrading of the crop shall be based on the plot sampling method in homogeneous counting units for the characteristic under consideration.

After each inspection, the Seed Inspector/Controller shall fill the Inspection Form, that will support the proposal to reject or accept the propagation field, or recommend some corrective measures before a final decision is taken.

The Inspection Form shall be co-signed by the seed inspector/controller and the seed grower or a representative. In case the latter refuses to sign, this shall be mentioned on the refusal Inspection form and notified to the seed grower concerned within 15 days following the inspection.

SEED LOTS

A seed lot is a specified quantity of seed, physically identifiable, for which a test report may be issued.

Sampling:

Samples taken upon delivery of raw seeds: An official sample, earmarked for prior control is taken by the seed inspector/controller from a single harvest during the delivery of raw seeds and kept at the disposal of the Department in charge of regulations, control and the certification of seeds and seedlings at the Ministry in charge of Agriculture and Rural Development.

Sampling of lots for certification: In order to verify that the seed lots presented for certification meet the pre-established standards, official seed samples for analysis shall be collected by the seed inspector/controller. Two samples shall be taken from each lot and kept at the disposal of the Department in charge of regulations, quality control and certification of seeds and seedlings of the Ministry in charge of Agriculture and Rural Development: one shall be destined for the National Seed Testing Laboratory or any other approved seed analysis laboratory; the other for post control. The minimum weight of a sample to be taken from a seed lot is 1000 g for laboratory tests and 1000 g for post control.

Lot size

Basic seed: A lot of basic seeds is a amount of seeds that is homogeneous in terms of identity, specific purity, germination capacity, moisture content and size and whose weight does not exceed ten (10) tonnes, unless an exemption is granted by the Department in charge of regulations, quality control and certification of seeds and seedlings of the Ministry in charge of Agriculture and Rural Development

Certified seeds: Certified seed lots shall not exceed twenty-five (25) tonnes; they shall be homogeneous in terms of identity, specific purity, germination capacity, moisture content and size.

Mixing of varieties: The product of several basic and certified seed producing plots may be mixed, provided that the different propagation plots have been sown with seeds of the same origin, and graded by the same inspector/controller. In this case, the company or the seed producer must declare the fields from which the product has been mixed, indicating the numbers transferred from the crop declaration of each of these fields to the Department in charge of regulations, quality control and certification of seeds and seedlings at the Ministry in charge of Agriculture and Rural Development. A new number shall definitely be assigned to the new lot.

CERTIFICATION RULES AND STANDARDS

Lots presented for certification must meet the requirements of these regulations and the following acceptable standards:

Characteristics	Basic seeds	Certified seeds
Minimum varietal purity:		
Soybean, groundnut	99 %	98 %
Beans and cowpeas	97 %	95 %
Minimum species purity:		
Soybean, Groundnut,	99 %	98 %
Beans and cowpeas	98%	97 %
Minimum germination capacity	70 %	70 %
Maximum humidity	12 %	12 %
Minimum number of other plant species seeds in a 1,000 g sample	4	10
Maximum weed seed content	0.0 5%	0.1 %
Maximum content of inert materials (stones, earth, straw...)	2 %	3 %

LEGUME SEED MARKETING CONTROL

Lots of locally produced or imported seeds put on the market for sale shall be inspected and if necessary, samples shall be taken by seed inspectors/controllers for analysis at the National Seed Testing Laboratory or any other approved seed analysis laboratory, to ensure that they meet the standards and rules set by the laws and regulations in force in Cameroon.

2.4.2. Decision No. 00654/MINADER/SG/DRCQ/SDRSQV of 7 September 2006 to approve and make enforceable the official technical regulations for the production, quality control and certification of seeds and grafted citrus fruit seedlings (*Pessea americana* Mill)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree. No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Following the recommendations of the National Council for Seed and Plant Varieties during its session of 25 September 2020 (9th session)

HEREBY DECIDES AS FOLLOWS:

Article 1: The Official Technical Regulations for the production, quality control and certification of citrus fruits seeds and seedlings (*Citrus spp*) attached in Appendices I, II and III are as from the date of signature of this Decision approved and made enforceable.

Article 2: (1) At the beginning of each farming season, declarations of citrus seed and seedling production indicated on the relevant forms shall be addressed to the Department in charge of regulations, quality control and certification of seeds and seedlings of the Ministry in charge of Agriculture.

(2) These declarations shall be prepared by seed producing companies, as well as nurserymen producing seeds and citrus seedlings to be controlled and certified prior to their sale on the national territory.

(3) The department in charge of regulations, quality control and certification of seeds and seedlings of the Ministry in charge of Agriculture shall be informed about any changes made to the declaration of crop production, no later than one month after production.

Article 3: The Department of Regulation and Quality Control of Agricultural Inputs and Products shall be responsible for the execution of this decision, which shall be published in English and French, wherever necessary.

Yaounde, 7 September 2006

The Minister of Agriculture and Rural Development

Clobert TCHATAT

2.4.3. Decision No. 539/MINADER/SG/DRCQ/SDRSQV of 7 September 2006 on the approval of official technical regulations for the production, quality control and certification of the seeds of some vegetative propagation species (potato, banana, cassava and sweet potato).

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution,

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2004/320 of 8 December 2004 to organise the Government;

Mindful of Decree No. 2004/322 of 8 December 2004 to form the Government;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down modalities for seed production, quality control and marketing and in particular Article 22,

HEREBY DECIDES AS FOLLOWS:

Article 1: The production, quality control and certification of the seeds of the following vegetative propagation species: potato (*Solanum tuberosum*), banana (*Musa sp*), cassava (*Manihot esculenta*) and sweet potato (*Pomea batatas*) are organised in accordance with the provisions of Law No. 2001/014 of 23 July 2001, relating to seed activities, with the provisions of its implementing instruments and with the official technical regulations approved by this Decision.

Article 2: (1) At the beginning of each season, the seed crop shall be subject to a crop declaration, detailed on a form issued for that purpose and sent to the Department in charge of regulations, quality control and certification of seeds and seedlings at the Ministry in charge of Agriculture.

These declarations shall be made for seed crops of all categories which are subject to quality control and certification for marketing on the national territory.

The Department in charge of regulations, quality control and certification of seeds and seedlings at the Ministry in charge of Agriculture shall be informed about any changes made to the declaration of crops, no later than one month after sowing.

Article 3: The appended complete official technical regulations concerning the seeds of vegetative propagation species (potato, banana, cassava and sweet potato) of all categories, is approved.

Article 4: The Director in charge of the Regulation and Quality Control of Agricultural Inputs and Products at the Ministry in charge of Agriculture shall be responsible for implementing this decision, which shall be registered and published in English and French, wherever necessary.

Yaounde, 7 September 2006

The Minister of Agriculture and Rural Development

Clobert TCHATAT

APPENDIX: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, CONTROL AND MARKETING OF BANANA SEEDLINGS (MUSA SPP).

Scope

The production of plant materials for banana is achieved through vegetative propagation of clones developed by the breeder after several selections. This vegetative propagation method ensures the maintenance and conservation of the genetic and morphological features of the variety. During all these propagations, focus is mostly on the health conditions of the plant material.

Organization of production

Production system: The production of plantain seedlings should be based on pedigree selection according to the following:

- The starting genetic material for plant propagation are healthy seedlings and the resulting seedlings. Together they form the **B0** family (parent seed or starting genetic material);
- The successive descendants of each **B0** constitute 1st generation (**B1**), 2nd generation (**B2**), 3rd generation (**B3**) up to **B6** families, respectively.

Production requirements

Starting genetic material: the absence of parasites on each B0 plant (nematode and weevils) and any other particular disease, notably (*fusariosis*, *virosis*) shall be verified at the National Laboratory for Seed Analysis or in any other approved laboratory using an appropriate method, following a protocol proposed by the breeder or the maintainer and approved by the Department in charge of regulations, quality control and certification of seeds and seedlings at the Ministry in charge of Agriculture.

Breeding material: B0 or B1 material shall be grown in a research station or by a private individual with the required experience, all of them having the necessary equipment to carry out the disease detection tests. It shall be placed under the responsibility of the breeder or maintainer and subject to verification by the Department in charge of regulations, quality control and certification of seeds and seedlings of the Ministry in charge of Agriculture.

B2 to B6 material shall be grown by the seedling company in its geographical area. It shall be subject to various tests conducted at the National Laboratory for Seed Analysis or in any other approved laboratory, on samples taken by the seed inspectors/controllers.

Families are individualised up to B1. They may remain so thereafter or be mixed in B2 when they are produced in the same plot. From B2 onwards, families of the same age, if they remain individual species, will successively constitute the selection material (pre-basic) of the 2nd generation B2, the 3rd generation B3, etc. The B0 and B1 families lose their individual state when they are mixed. The B2 to B6 material must comply with the disease standards for the 'Elite' class following three growing inspections.

The pre-basic seedling is harvested from B0 to B2 material. The health of B0 starting seed, as well as B1 and B2 breeding material, is controlled by seed inspectors/controllers of the Department in charge of regulations, quality control and certification of seeds and seedlings of the Ministry in charge of Agriculture.

Basic seedlings:

- Class "SE" (Super Elite): harvested from B3 to B6 material;
- Class "E" (Elite): harvested from a single generation of Super Elite seedlings.

Certified seedlings: Class "A": harvested directly from basic seedlings (Class SE or E).

Cultivation rules

During the inspections of seed farms and propagation nurseries, banana seedlings must comply with the following rules:

Plot identification

Seed farms or propagation nurseries shall be marked at the outset with a signpost or some other indication to identify the plot, crop, variety and category.

Site Preparation: The plot intended for seedling production must not have grown a banana crop for at least 3 years, or must be treated to avoid specific diseases.

Health condition: The inspection should focus on diseases and pests of bulbs, roots and leaves such as nematodes and weevils and fusarium that spread with the use of infected plant materials. In any case, any farm or nursery with very high severity and incidence of these diseases and pests during growth should be rejected. To this end, the proportion of infected seedlings, cannot be greater than zero (0) for the starting seedlings and 0.5% for the pre-basic seedlings.

Minimum area: The minimum area of a seed farm presented for inspection cannot be less than 0.5 hectares. The area must be larger for the production of plant material ready to be distributed to farmers.

Isolation: Isolation is not a problem for plantain, with the plant propagation method.

However:

- seed farms of pre-basic (B0 to B2) and basic (B3 to B6) categories with various varieties must be separated from each other by a minimum distance of 5 m. The same distance is to be applied between the purified variety intended for the production of seedlings and the same variety intended for the production of bunches;
- seed farms of the basic and certified seed categories bearing various varieties must be separated from each other by a minimum distance of 3 m to avoid mixing seedlings at harvest. The same distance must be applied between the purified variety intended for the production of seedlings and the same variety intended for the production of bunches.

In the nursery, beds bearing the same variety or various varieties must be separated from each other by a minimum distance of 1m.

The homogeneity of the varieties and the sizes of the seedlings.

The seed farms or nursery beds must have seedlings of the same variety and the same size at the time of the planting.

Purification

Purification is obligatory, in seed farms and nurseries, from the beginning of planting until the seedlings are harvested. It consists in uprooting the roots affected by nematodes, weevils, cercosporiose and fusariose, virosis as soon as the symptoms appear. They must be completely eliminated from the field.

Seed farms must be well maintained, especially during the first 4 months of seedling growth.

In the propagation nursery of mini-seedlings, it is necessary to weed sick seedlings, as well as those which do not develop well.

Crop Condition: It must allow for proper inspection. The bad state of a woodlot or a nursery, especially the presence of weeds and diseases or pests, can result in refusal or downgrading.

Conservation of seedlings**Methods of conservation**

After treatments with approved pesticides, the seedlings are packaged in 17 cm x 24 cm x 40 µm polyethylene bags or other local materials. They must guarantee the viability of the seedlings and limit the losses resulting from dehydration (caused by the direct exposure of plant materials to sunlight) or excess humidity causing the buds to break.

Seedlings put in the bags or pots must be placed in a trench in vertical position under a well-ventilated shelter.

Seedlings from wood lots intended directly for planting can be transported in bulk after treatment and sun exposure.

Storage life

Under storage conditions as described above, naked seedlings may be stored for up to 2 weeks.

Nurseries

Inspections must be carried out in the presence of growers or their representatives. Seed inspectors/controllers shall be provided with satisfactory evidence of the grade and origin of the seeds used. They shall also be informed about the crops grown during the previous three seasons.

Number of Inspections and Crop Grading

Crops in wood lots shall be inspected at least three times for basic (Super Elite class) and at least twice for basic (Elite class) and certified (Class A) seeds:

- the first inspection shall be carried out after planting, to check compliance with the isolation rules, the condition of the plot (cleanliness of the farms) and the seedlings (density, health status);
- the second inspection of the wood lots shall be carried out within 2 to 3 months after planting in order to identify off-types and infected seedlings to be purified and/or destroyed;
- the third shall be conducted just before or during the harvesting of seedlings to help determine the right time of harvesting and to ensure the quality of harvested seedlings. In this case, samples shall be taken for laboratory testing.

In all cases, the purpose of the final inspection is to ensure appropriate decisions at harvest time and to ensure the good quality of harvested seedlings. Seedlings put in the bags or pots must not contain those belonging to a different variety or infected seedlings.

Crops grown in a nursery for the production of mini-seedlings shall be subjected to at least one control. This control shall be carried out before the digging of the seedlings, that is, after 2 to 3 weeks in the nursery, to check the farming and health condition of the seedlings, as well as their variety purity.

During the last inspection, the seed controller shall note the number of seedlings likely to be put on sale.

Parasites, diseases and foreign or non-compliance to variety shall be assessed by counting.

Crop Grading

The compliance of crops with the tolerance threshold set by this regulation shall be assessed by counting, following conditions specified in Inspection forms by the Department in charge of the regulation, control, quality and certification of seeds and seedlings of the Ministry in charge of Agriculture and Rural Development.

The approval or the partial or total downgrading of a wood lot or nursery, for a given characteristic, is based on the plot sampling method in countable homogeneous units,

After each inspection, the Seed Inspector/controller shall complete the Inspection Form, based on which he/she will propose the rejection or acceptance of the wood lot or propagation nursery, or recommend some corrective measures before the final decision..

The Inspection Form shall be co-signed by the seed inspector/controller and the grower or a representative. Any refusal by the grower to sign shall be mentioned thereon. The total or partial rejection of a wood lot or propagation nursery shall be noted on the Inspection Form and notified to the grower within 15 days following the inspection.

Certification standards

The plant material presented for certification shall meet the requirements of these technical regulations and the following standards during the harvest period.

Description (Maximum content)	Basic seedlings (Class SE and E)	Certified seedlings (Class A)
Off-types	1%	2%
Injured seedlings	10%	15%
Drying of the seedlings	0.5%	1%
Deformed germinated injured mini-seedlings	1%	5%
Diseases and parasites:		
- Nematodes	1%	2%
- Weevils	1%	2%
- Cercosporiosis	2%	5%
- Fusarium	1%	2%
Homogeneity:		
- Variety	0.5%	1%
- Calibre	5%	10%

Marketing control

Locally produced or imported seedlings put on sale shall be inspected and, if necessary, samples shall be taken by seed inspectors/controllers for analysis at the National Seed Testing Laboratory or any other approved seed testing laboratory, to ensure their compliance with the standards and rules defined by the laws and regulations in force in Cameroon.

2.4.4. Decision No. 540 /MINADER/SG/DRCQ/SDRSQV of 7 September 2006 to approve the official technical regulations for the production, control and certification of seeds of some cereals (composite maize, hybrid maize, rice and open-pollinated sorghum).

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 on seed activities;

Mindful of Decree No. 2004/320 of 8 December 2004 to organise the Government;

Mindful of Decree No. 2004/322 of 8 December 2004 to form the Government;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing, particularly Article 22 thereof,

HEREBY DECIDES AS FOLLOWS:

Considering the recommendations of the National Council for Seeds and Plant Varieties.

Article 1: The production, control and certification of composite maize (*Zea mays*), hybrid maize (*Zea mays*), rice (*Oryza sativa*) and sorghum (*Sorghum vulgare*) seeds, with open pollination are organised in line with the provisions of Law No. 2001/014 of 23 July 2001 on seed activities, with its implementing instruments, and with the official technical regulations approved by this decision.

Article 2: (1) At the beginning of each farming season, declarations of seed crops of each species listed in a relevant form issued, shall be sent to the Department in charge of regulations, control and certification of seeds and seedlings of the Ministry in charge of Agriculture.

These declarations shall be submitted for the cultivation of seeds of each of the species to be controlled and certified for marketing on the national territory.

The Department in charge of Regulations, Control and Certification of Seeds and Seedlings at the Ministry in charge of Agriculture and Rural Development shall be informed about any changes made to the declaration of crops.

Article 3: The attached official technical regulations relating to seeds of all species in all categories are approved in their entirety.

Article 4: The Director in charge of Regulations and Quality Control of Inputs and Agricultural Products at the Ministry in charge of Agriculture and Rural Development shall be responsible for implementing this decision which shall be registered, and published in English and French, wherever necessary.

Yaounde, 7 September 2006

The Minister of Agriculture and Rural Development

Clobert TCHATAT

APPENDIX I: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, CONTROL AND CERTIFICATION OF COMPOSITE MAIZE SEED (ZEA MAYS)

Scope of Application

The production of certified seeds of composite maize varieties is based on the maintenance of the result of the combinations made by the breeder between lines, cultivars (varieties), in order to obtain a composite, as described during its registration in the Official Catalogue of Species and Varieties, and to maintain good physical, physiological and health conditions.

Production Organisation

Production System: This involves the multiplication of approved composite that are registered in the Official Catalogue of Species and Varieties. The propagation scheme for pre-basic seeds from starting material G0 shall be under the responsibility of the plant breeder or maintainer and subject to official verification by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

Basic seeds shall correspond to the generation of pre-basic seed proposed in the conservation breeding protocol by the plant breeder or maintainer from the starting material G0 and set by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

Certified seeds shall be derived directly from basic seeds.

Production Requirements

Origin of Pre-basic and Basic Seeds: the origin of such seeds shall be proven on presentation of invoices or certificates of origin.

Previous cropping: composite varieties of maize for the production of basic seeds shall only be propagated on fallow plots or those cultivated during the previous season with species belonging to other families (pulses, solanaceous plants, tuber crops, etc.)

Maize should not have been sown on the certified seed propagation farm in the previous year, unless it is the same variety, the same generation or a previous generation that has successfully met the standards for seed propagation.

Isolation: an isolation distance of at least 300 metres for basic seeds and 200 metres for certified seeds shall be observed from farms of other varieties or farms of the same variety that do not comply with varietal purity standards.

To reduce the risk of sexual pollution in the farming environment, it is recommended to propagate only one variety in a growing area.

Purification

In-growth purification: all aberrant and off-type plants shall be removed before pollination.

Post-harvest cob sorting: cob sorting shall be carried out before drying. Aberrant or doubtful cobs of maize and those in poor health shall be removed.

Among the cobs inspected, there shall be no more than 0.5% of off-types or more than 1% of cobs with seeds of different colours for basic seeds; more than 1% and 2% of the same impurities for certified seeds.

Cultivation Rules

During in-growth inspections, composite maize seed crops shall comply with the following rules:

- **Plot Identification:** propagation farms shall be marked from the outset with a sign or other indications to identify the plot.
- **Minimum Area:** the area of a propagation plot shall be no less than 0.5 ha, or at least 1 ha for basic and certified seeds, respectively.
- **Crop Condition:** propagation farms shall be well maintained from a planting point of view: appropriate density, absence of weeds in the propagation plots and in their immediate vicinity, thus contributing to the grading and control of purification. Poor crop condition may be a cause for rejection.

- **Varietal Purity:** impurities shall be removed as soon as possible. An impurity is any plant differing in at least one characteristic from the inspected variety.

A farm which, during any inspection, shows more than 2% of off-types or doubtful plants having released pollen when more than 5% of the plant in the farm have receptive silks, shall be rejected.

- **Health Condition:** the inspection shall focus on seed-borne cryptogamic and viral diseases.

A farm with more than 0.1% of plants infected with these fungi and viruses shall be rejected.

- **Hazardous Weeds:** seed propagation farms shall be free of all hazardous weeds.

Inspection of Seed farms

Prior Arrangements: inspection shall be carried out in the presence of the seed grower or a representative. The seed inspector/controller shall be provided with satisfactory evidence of the category and origin of the seeds used. He/she shall also take note of the crop grown in the previous season.

Number of Inspections: propagation farms shall be inspected at least twice for certified seeds and three times for basic seeds:

- The first inspection before flowering shall be carried out to check the isolation, the previous cropping and the absence of regrowth;
- The second one, during flowering, shall be carried out to check the crop condition, purification and other unfavourable factors;
- The third one shall precede the harvest to identify diseased and off-type cobs.

Further inspections shall be required at harvest time and if possible, on delivery of raw seeds.

Crop grading: the compliance of crops with the standards laid down by these Regulations shall be graded by counting, in line with the procedures specified in the inspection forms prepared by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development.

The approval or the partial or total downgrading of the crop, for a given characteristic, shall be based on the plot sampling method in countable homogeneous units,

After each inspection, the seed inspector/controller shall complete the inspection form, based on which he/she will propose the rejection or approval of the propagation farm, or recommend some remedial measures before the final decision.

The inspection form shall be co-signed by the seed inspector/controller and the seed grower or a representative. Any refusal by the grower to sign shall be mentioned thereon. The rejection of a propagation farm shall be recorded in the inspection form and notified to the seed grower concerned within 15 days of the inspection.

Seed Lots: Sample Collection

Sample collection on delivery of raw seeds: a sample for prior control, shall be taken from the cobs and placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development.

Sample collection for certification: in order to check compliance of the seed lots submitted for certification with defined standards, official seed samples for analysis shall be taken by seed inspectors/controllers. These samples shall be taken in duplicate from each lot and placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development: one sample for the National Seed Testing Laboratory or any other approved seed testing laboratory, and the other for post-control.

The minimum weight of a sample to be collected from a seed lot shall be 1,000 g for laboratory tests and 1,000 g for post-tests.

Lot Size

Basic Seed: a basic seed lot is a maximum quantity of ten (10) tonnes of homogeneous seeds in terms of identity, species purity, germination capacity, moisture content and size.

Basic seed lots may be produced by mixing the products of several plots in some proportions, provided that the plots have been sown with basic seeds of the same origin. The seed grower shall declare to the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development, the plots whose product are intended to be mixed, specifying the numbers on the crop declaration for each plot. A new lot number shall then be assigned to the mixed product.

Certified Seeds: certified seed lots shall not weight more twenty (20) tonnes. They shall be homogeneous in terms of identity, species purity, germination capacity, moisture content and size.

Certification Rules and Standards

Lots submitted for certification shall meet the requirements of these Regulations, and the following standards or acceptance rules:

Description	Basic Seed	Certified Seeds
Varietal purity (minimum)	98%	98%
Minimum species purity	98%	98%
Minimum germination capacity	90%	80%
Moisture in woven bags (maximum)	12%	12%
Moisture in hermetic vacuum packaging (maximum)	8%	8%
Maximum seed content of other crop species	0%	0.1%
Maximum weed seed content	0%	0%
Maximum content of inert materials (stones, earth, straw, etc.)	2%	2%

Seed Marketing Control

Lots of locally produced or imported seeds for sale shall be inspected and, if necessary, samples shall be taken by seed inspectors/controllers for analysis at the National Seed Testing Laboratory or any other approved seed testing laboratory, in order to ensure that they comply with the standards and rules defined by the laws and regulations in force in Cameroon.

APPENDIX II: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, CONTROL AND CERTIFICATION OF HYBRID MAIZE SEED (*Zea mays*)

Scope of Application

The production of hybrid maize seeds shall be based on the maintenance of lines, the production of hybrid combinations declared at the time of registration in the Official Catalogue of Species and Varieties, and good physical, physiological and health conditions.

Production Organisation

Production System

Basic Seeds: this shall be pure lines or single cross hybrids resulting from the cross breeding of pure lines.

Certified Seeds: certified seeds shall be derived directly from basic seeds. These may be single, three-way hybrids, double cross hybrids or, where appropriate, any other hybrid registered in the Official Catalogue of Species and Varieties. There shall be only one generation of certified seeds.

Production Conditions

Basic Seeds

Line

Isolation: a line propagation shall be carried out in an isolated plot. The distance between the plot and any other maize farm of a different variety shall be at least 300 m.

Purification: all aberrant plants shall be removed as soon as they are detected, before pollination. Purification shall continue after harvest. Aberrant or doubtful cobs and grains, as well as those with poor health conditions, shall be eliminated.

Single Hybrid

Sowing: it shall be carried out in line with the instructions given by the plant breeder, during the registration of the variety in the Official Catalogue. The rows of the male parent shall be marked. The plot shall be bordered as from 2 m by at least two rows from the male parent.

Isolation: the plot meant for the production of single hybrid basic seeds shall be isolated from any maize crop by at least 300 m, unless that crop is the same hybrid or a hybrid using the same male parent.

In-growth purification: in both the male and female parents, “aberrant” plants and regrowth shall be eliminated as soon as they are detected in any case, before pollination. Plants contaminated with a pest that may reduce the seed value shall also be eliminated.

Castration: all panicles identified as female parents shall be eliminated before pollination. This applies to both main stem and tiller panicles.

Harvesting: male and female parents shall be harvested separately following instructions given by the basic seed-producing company. The male parent shall either be eliminated after flowering or harvested separately from the female parent, shall be delivered for consumption.

Sorting of Cobs: it must be conducted before drying. If necessary, this is done before ginning. Aberrant or doubtful cobs, are eliminated, as well as those in poor health conditions.

Certified Seeds

Sowing: it shall be carried out in line with instructions given by the plant breeder, at the time the variety is registered in the Official Catalogue of Species and Varieties. The rows for the male parent shall be marked and the plot shall be bordered as from 2 m by at least two rows of the male parent.

Isolation: the plot for the production of certified seeds shall be isolated by at least 200 m from any maize crop of a different variety or from any undesirable source of pollen.

In-growth purification: in both the male and female parents, “aberrant” plants and regrowth shall be eliminated as soon as they are detected in any case, before pollination. Plants contaminated with a pest that may reduce the value of the seed shall also be eliminated.

Castration: all panicles of the line or single hybrid selected as female parents shall be eliminated before pollination. This applies to both main stem and tiller panicles.

Harvesting: male or female parents must be harvested separately. The male parents harvested first and delivered for consumption. The seed shall be harvested from the female parent. In case the producer provides storage, he/she shall take all necessary steps to ensure good preservation of cobs and to avoid mixing.

Sorting of Cobs: it must be carried out before drying, and if necessary, completed before ginning. Aberrant or doubtful cobs, as well as those in poor health conditions, shall be eliminated.

Cultivation Rules

Maize seed crops shall comply with the following rules, during crop and harvest inspections:

Previous cropping: maize should not have been sown in the previous year, unless it is the same variety, of the same generation or a previous generation that has itself met the standards for seed propagation.

For basic and certified seeds, the areas of the farms shall not be less than 0.5 ha and 1 ha respectively.

Isolation: the isolation of the plot from any other maize crop shall comply with the conditions laid down for the category of seeds to be produced.

Pollination: farms for hybrid maize seed multiplication shall be sown so as to enable both the male and female parents to grow in separate rows and avoid mixing. A proportion of male rows in the entire farm shall also be maintained in accordance with the instructions given by the seed breeder, at the time the variety is registered in the Official Catalogue of Species and Varieties.

Genetic Purity (Varietal): impurities and regrowth shall be eliminated as soon as they are detected. Any plant that is obviously different from the variety in one or more traits in the description of the parent plant or variety is considered an impurity.

In-growth

Basic Seed: line propagation: a maximum of 0.1% of impurities shall be tolerated;

Hybrids: A maximum of 0.1% of impurities shall be tolerated, in the male and female parents respectively.

Certified Seeds: a maximum of 0.2% of impurities shall be tolerated, in the male and female parents respectively.

Castration: male panicles of the line or hybrid selected as female parent shall be eliminated before pollination.

A plant is considered to have produced pollen when it includes, before its silks wither, more than 10 flowers whose anthers are outside the glumes, counted on both stem and tiller panicles.

Basic Seeds: a maximum of 0.3% of pollinating plants in the female parent shall be tolerated during any inspection, and a maximum of 1% at the end of all inspections.

Certified Seeds: a maximum of 0.5% of pollinating plants in the female parent shall be tolerated during any inspection, and a maximum of 1% at the end of all inspections.

During Harvest: a maximum of 0.1% of aberrant cobs shall be tolerated after sorting.

Health Condition: the presence of a cryptogamic disease reducing the value of seeds may be a reason for refusal when the acceptable infestation threshold is exceeded. A maximum of 0.1% of infected plants shall be tolerated.

Inspection of Seed farms

Prior Arrangements: inspection shall be carried out in the presence of the seed grower or a representative. The seed inspector/controller shall be provided with satisfactory evidence of the category and origin of the seed used. He/she will also take note of the crop grown in the previous season.

Number of Crop Inspections and Grading

Basic Seeds: the basic seed propagation farm shall be inspected at least three times:

- The first inspection shall be carried out before flowering to check the isolation distance, the absence of regrowth, the crop condition, purification and respect for the proportion of male and female rows (for single hybrids);
- The second shall be carried out during flowering to check purification, and to ensure that castrations are carried out in time, particularly in the case of single hybrids;
- The third inspection shall be carried out before harvest to identify diseased and off-type cobs; this is the most appropriate time to observe varietal features.

Further inspections may be carried out during harvest and if possible, on delivery.

Certified Seeds: the certified seed propagation farm shall be inspected at least three times:

- The first inspection shall be carried out before flowering to check the isolation distance, the absence of regrowth, crop condition, purification and respect for the proportion of male and female rows;
- The second shall be carried out during flowering to check purification, and to ensure that castrations are carried out in time;
- The third shall be carried out before harvest to identify diseased and off-type cobs; this is the most appropriate time to observe varietal features.

Further inspections may be carried out during harvest or on delivery.

Crop Grading

The compliance of crops with the standards laid down by these Regulations shall be graded by counting, in line with the procedures specified in the inspection forms prepared by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in of Agriculture and Rural Development.

The method of sampling the plot into countable homogeneous units, for the feature under consideration, shall allow for the acceptance or partial or complete downgrading of the crop.

After each inspection, the seed inspector/controller shall complete the inspection form based on which he/she shall propose the rejection or acceptance of the propagation farm, or recommend some remedial measures before the final decision.

The inspection form shall be co-signed by the seed inspector/controller and the seed grower or a representative. Any refusal by the grower to sign shall be mentioned thereon. The rejection of a propagation farm shall be mentioned in the inspection form and notified to the seed grower concerned within 15 days of the inspection.

Seed Lots

Sample Collection

Sample collection on Delivery: a sample, shall be collected from the cobs for prior control and placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development.

Sample collection for certification: seed samples for analysis shall be collected by the inspector/controller from each lot submitted for certification, in order to check the conformity of the seeds with certification standards. These samples shall be taken in duplicate and placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development: one for the National Seed Testing Laboratory or any other approved seed testing laboratory, and the other for post-control.

Lot Size

Basic Seeds: basic seed lots shall not exceed ten (10) tonnes in weight. They shall be homogeneous in terms of identity, species purity, germination capacity, moisture content and size.

Basic seed lots may be produced by mixing the products of several plots in specific proportions, provided that these plots have been sown with basic seeds of the same origin. The seed company shall declare to the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development, the plots whose products are mixed, specifying the numbers on the crop declaration for each plot. A new number shall be assigned to the mixture.

Certified Seeds: certified seed lots shall not exceed twenty (20) tonnes in weight. They shall be homogeneous in terms of identity, species purity, germination capacity, moisture content and size.

Certification Standards

Lots submitted for certification shall meet the requirements of these Regulations, and the following standards or acceptance rules:

Description	Basic Seeds	Certified Seeds
Minimum germination capacity	90%	90%
(Maximum) moisture in woven bags	8%	8%
(Maximum) moisture in woven bags	12%	14%
Varietal purity (% of maximum impurity tolerated)	0.1% (line propagation and single hybrid)	0.2% (male and female parents)
Minimum species purity (% of the weight)	98%	98%
Maximum seed content of other plant species	0%	0.1%

Seed Marketing Control

Lots of locally produced or imported seeds for sale shall be inspected and, if necessary, samples shall be collected by seed inspectors/controllers for testing at the National Seed Testing Laboratory or any other approved seed testing laboratory, in order to ensure their compliance with the standards and rules defined by the laws and regulations in force in Cameroon.

APPENDIX III: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, CONTROL AND CERTIFICATION OF RICE SEEDS (*Oryza sativa*)

Scope of Application

The production of certified rice seeds shall be based on cultivars (varieties), as described at the time of its registration in the Official Catalogue of Species and Varieties, and on good physical, physiological and health conditions.

Production Organisation

Production System: basic seed production shall be carried out in three (3) seasons, using pedigree, based on the following scheme:

- The panicles from the initial plants shall be called G0 and shall be sown according to lines;
- The product obtained by threshing lines (after re-selecting the lines to form G0) constitutes the first generation known as G1;
- The product obtained by sowing the first generation constitutes the second generation (G2);
- The product obtained by sowing the second generation forms the third generation (G3) which constitutes the basic seed.

The classification as basic seeds of G3 shall be subject to the results recorded on the sample(s) taken from G2 and the quantities of certified seeds required to be produced.

The production of pre-basic seeds G1 and G2 shall be placed under the responsibility of the plant breeder or maintainer or the duly accredited delegate and under the official supervision of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

In order to maintain the breeding of a variety, delegates shall obtain all the necessary propagating material in the form of panicles from the plant breeder or a representative. For each new line, the delegate shall request the plant breeder or a representative at least every three (3) years to supply at least ten (10) reference panicles.

Production Requirements

Lines

Sowing: A line consists of all the plants harvested from the sowing of one or more panicles of a single plant.

Previous cropping: rice should not have been sown on the propagation farm in the previous season.

Sowing: the rows shall be sown in pedigree lines, with one panicle per row (panicle-row). The number of lines sown by a basic seed-producing company depends on the tonnage it intends to produce per variety. The minimum number of lines to be sown shall be 300 per variety.

Isolation: G0 and G1 production plots shall be isolated from any rice farm (regardless of variety) by a minimum distance of five (5) m.

Purification:

- **Varietal:** any aberrant or doubtful line shall be eliminated as soon as they are detected;
- **Health:** any disease-infected plant shall be eliminated. Wild rice, weeds and any disease-infected plants shall be eliminated as soon as they are detected and ultimately before heading and harvesting. The diseased plant shall be eliminated so as to avoid contaminating the remaining healthy plants.

Harvesting: the selected lines shall be harvested for two purposes:

The most representative self-pollinated plants of the variety shall be harvested separately to establish the following year's G0, build up the security stock, as well as continue the pedigree selection.

All other lines (plants) may be harvested either separately or together to form G1.

Plant family grouping: the plants harvested from the line shall be sown in panicle-rows, in as many rows as necessary.

This nursery shall be carried out by each family (set of plants from the same panicle-row), with the possibility of always returning to the initial panicle.

The family may be sown irrespective of the plant origin, or subdivided into subfamilies (subfamily: set of panicle-rows resulting from the sowing of one or more panicles of a single plant). This subdivision makes it easier to eliminate hybrid plants.

The minimum number of rows for all families shall always be 300 per variety.

The minimum number of families shall be 10, with no more than 100 panicle-rows in each family.

Security stock: security stocks shall be of two kinds. In panicles, a number of panicles (the most representative of the initial panicle) identical to the one used to sow the families shall be kept in good condition (panicles G0); and in seeds, half of the seeds obtained by separate harvesting of the lines shall be maintained (seed G0), the other half shall be used for further pedigree selection.

Basic Seeds

Sowing: G1 shall be produced in a single farm. Production of **G2** and basic seeds may be carried out in several farms, provided that each farm has a minimum area of 0.5 ha. In case the production of **G1** and **G2** (pre-basic seeds) and basic seeds are sub-contracted to specialised agri- growers, farms shall be sufficiently close to the institution (research station, specialised pre-basic and basic seed farm) to contribute to the smooth monitoring of production. For **G1**, **G2** and basic seed categories, farmers may normally multiply only one variety per farm.

Isolation: plots sown with G1 for the production of G2, as well as those sown with G2 to produce G3, may be surrounded by a production of G1, G2, or G3 respectively, separated by 1 m, or 10 m minimum from the crop, for the same variety, and 20 to 30 m for a different variety.

In-growth purification: all aberrant or doubtful plants, wild rice, weeds, and disease-infected plants shall be eliminated as soon as they are detected and ultimately before heading and harvesting. The diseased plant shall be eliminated so as to avoid contaminating the remaining healthy plants.

Certified Seeds

Multiplication Requirement: seed companies may only multiply one variety of the same species with one seed grower.

Each propagation farm may not be less than 1 ha. Companies shall not submit less than 5 ha per variety for control.

The seed grower shall only multiply the contracted variety and shall not multiply for several companies.

Isolation: the certified seed production plot shall be separated from any crop of the same variety by a minimum distance of 1 m and 5 m for a different variety.

In-growth purification: all aberrant or doubtful plants, wild rice, weeds, and disease-infected plants shall be eliminated as soon as they are detected and ultimately before heading and harvesting. The infected plant shall be eliminated to avoid contaminating the remaining healthy plants.

Cultivation Rules

During in-growth inspections and harvest, rice seed crops shall comply with the following rules:

Plot Identification: propagation farms shall be marked from the outset with a sign or other indications to identify the plot, variety and generation.

Minimum Area: the area of a seed farm shall not be less than 0.5 ha for basic seeds, and 1 ha for certified seeds.

Crop Condition: Production farms shall be well maintained as per farming conditions: appropriate density, absence of weeds in production plots and around the vicinity of the plots, thus contributing to the grading and control of purification. Poor crop conditions of a farm may be a reason for refusal.

Varietal Purity: impurities shall be eliminated as soon as possible. Any aberrant plant, or one that is significantly different from the varietal type, shall be considered an impurity. The rice seed production farm shall not have an impurity level higher than 1% for basic seed production, and 2% for certified seed production.

Diseases: the inspection shall focus on harmful cryptogamic diseases (especially rice blast). The extent to which the presence of this disease reduces the usefulness of the seed, may cause crops to be rejected. The proportion of plants infected by this disease shall be less than 0.1% and 0.5% for basic and certified seed farms respectively.

Hazardous weeds: propagation farms shall be free of wild rice and other weeds. The maximum tolerance for the presence of wild or red rice plants is zero (0) for basic seed farms and 1/50 m² for certified seed farms.

Inspection of Seed Farms

Prior Arrangements: the inspection shall be carried out in the presence of the seed grower or a representative. The seed inspector/controller shall be provided with satisfactory evidence of the category and origin of the seed used. He/she shall also note the crop grown in the previous season.

Number of Crop Inspections and Grading

Number of Inspections: the propagation farm shall be inspected at least twice for certified seeds and thrice for basic seeds:

- The first inspection shall be carried out before heading to check isolation, absence of regrowth and the origin of basic seeds;
- The second shall be carried out immediately after heading to check impurities and crop condition;
- The third shall be carried out at full maturity to check purity and health condition of crops.

Further inspections shall be carried out during harvest and if possible, on delivery of raw seeds.

Crop Grading

The compliance of crops with the standards laid down by these Regulations shall be graded by counting, in accordance with the procedures specified in the inspection forms prepared by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development.

The method of sampling the plot into countable homogeneous units, for a given feature, shall determine the acceptance, or partial or complete downgrading of the crop.

After each inspection, the seed inspector/controller shall complete the inspection form based on which he/she shall propose the rejection or acceptance of the propagation farm, or recommend some remedial measures before the final decision.

The inspection form shall be co-signed by the seed inspector/controller and the seed grower or a representative. Any refusal by the grower to sign shall be mentioned thereon. The rejection of a propagation farm shall be mentioned in the inspection form and notified to the seed grower concerned within 15 days of the inspection.

Seed Lots

A seed lot shall be a specific, physically identifiable quantity of seeds for which a test report may be issued.

Sample Collection

Sample collection on delivery of raw seeds: the seed inspector/controller shall take an official sample, for prior control, from specific harvest on delivery of raw seeds. It shall be placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development.

Sample collection for certification: in order to check that seed lots submitted for certification meet the defined standards, official seed samples for testing shall be taken by the seed

inspector/controller. These samples shall be taken in duplicate from each lot and placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development: one for the National Seed Testing Laboratory or any other approved seed testing laboratory, and the other for post-control. The minimum weight of a sample to be collected from a seed lot shall be 1,000 g for laboratory tests and 1,000 g for post-tests.

Lot Size

Basic Seeds: basic seed lots shall not exceed ten (10) tonnes in weight. They shall be homogeneous in terms of identity, species purity, germination capacity, moisture content and size.

Certified seeds: certified seed lots shall not exceed twenty-five (25) tonnes in weight. They shall be homogeneous in terms of identity, species purity, germination capacity, moisture content and size.

Mixing of varieties: mixing the products of several plots producing pre-basic or basic seeds shall be prohibited.

The products of several plots producing certified seeds may be mixed, provided that the various multiplication plots have been sown with seeds of the same origin and recorded by the same seed inspector/controller. In this case, the company or producer shall indicate to the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development, the farms with mixed products, specifying the numbers stated on the crop declaration for each of these farms. A new number shall be permanently assigned to the new lot.

Certification Rules and Standards

Lots submitted for certification shall meet the requirements of these technical regulations, and the following rules and standards:

Description	Basic Seeds	Certified Seeds
Minimum varietal purity (% of grains)	99%	98%
Minimum specific purity	98%	98%
Minimum germination capacity	75%	75%
Maximum moisture	12%	12%
Maximum content in number of seeds of other plant Species in a 500 g sample	5	10
Maximum Weed Seed Content	0	1/50 m ²
Maximum content of inert materials (stones, earth, straw, etc.)	2%	2%

Rice Seed marketing control

Lots of locally produced or imported seeds for sale shall be inspected and, if necessary, samples taken by seed inspectors/controllers for testing at the National Seed Testing Laboratory or any other approved seed testing laboratory, in order to ensure their compliance with the standards and rules defined by the laws and regulations in force in Cameroon.

APPENDIX IV: TECHNICAL AND OFFICIAL REGULATIONS FOR THE PRODUCTION, CONTROL AND CERTIFICATION OF OPEN POLLINATED SORGHUM SEEDS (SORGHUM VULGARE)

Scope of Application

The production of certified open pollinated sorghum seeds shall be based on cultivars, as described at the time of their registration in the Official Catalogue of Species and Varieties, and on good physical, physiological and health conditions.

Production Organisation

Production System: the production system shall be based on pedigree from a starting material complying with the one approved and registered in the Official Catalogue of Species and Varieties. The propagation scheme for pre-basic seeds shall be placed under the responsibility of the plant breeder or maintainer and subject to official verification by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

Basic seeds shall correspond to the generation of pre-basic seeds proposed in the conservative breeding protocol by the plant breeder or maintainer from the starting genetic material (G0) and approved by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

Certified seeds shall be derived directly from basic seeds.

Production Requirement

Basic Seeds

Previous cropping: the multiplication of an open-pollinated variety of sorghum shall only be allowed on fallow plots or those cultivated during the previous season, with species belonging to other families: legumes, solanaceous plants, tuber crops, etc.

Isolation: an isolation distance of at least 200 metres shall be respected for farms of other varieties or of the same variety not conforming to the varietal purity standards.

To reduce the risk of sexual pollution on the farm, it is recommended to multiply only one variety on a farm.

In-growth purification: it consists in eliminating all weeds and tillers. All aberrant and off-type plants shall be eliminated before flowering. Stunted, late maturing or pest-infected plants shall also be eliminated.

Certified Seeds

Previous cropping: sorghum should not have been sown on certified seed propagation farms in the previous year, unless it is the same variety, the same generation or a previous generation complying with the standards for seed propagation.

Isolation: an isolation distance of at least 200 metres shall be respected for farms of other varieties or for farms of the same variety not conforming to the varietal purity standards.

To reduce the risk of sexual pollution on the farm, it is recommended to multiply only one variety on a farm.

In-growth purification: all aberrant and off-type plants shall be eliminated before flowering. Stunted, late maturing or pest-infected plants shall also be eliminated.

Cultivation Rules

During in-growth inspections, sorghum seed crops shall comply with the following rules:

Plot Identification: propagation farms shall be marked from the outset with a sign or any other indications to identify the plot, the crop and possibly, the variety.

Minimum Area: the area of a propagation plot may not be less than 0.5 ha and 1 ha for basic and certified seeds, respectively.

Crop Condition: propagation farms shall be well maintained to suit farming conditions: appropriate density, absence of weeds in the propagation plots and in the immediate surrounding of the plots, thus contributing to the grading and control of purification. Poor crop conditions may be a cause for rejection.

Varietal Purity: impurities shall be eliminated as soon as possible. Any plant differing in at least one feature from the inspected variety shall be considered an impurity. For basic seeds, only one off-type plant per 30 m² shall be tolerated. For certified seeds, only one off-type plant per 10 m² shall be tolerated.

Inspection of Seed farms

Prior Arrangements: the inspection shall be carried out in the presence of the seed grower or a representative. The seed inspector/controller shall be provided with satisfactory evidence of the category and origin of the seed used. He/she shall also note the crop grown in the previous season.

Number of Crop Inspections and Grading

Number of Inspections: the propagation farm shall be inspected at least twice for certified seeds and thrice for basic seeds:

- The first inspection shall be carried out before flowering to check isolation and the absence of regrowth;
- The second shall be carried out during flowering to check crop conditions and purification.
- The third shall be carried out before harvest to identify diseased and off-type panicles.

Further inspections shall be carried out during harvest and if possible, on delivery of raw seeds.

Crop Grading

The compliance of crops with the standards laid down by these Regulations shall be graded by counting, in line with the procedures specified in the inspection forms prepared by the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture and Rural Development.

The method of sampling the plot into countable homogeneous units, for a given feature, shall determine the acceptance, or partial or complete downgrading of the crop.

After each inspection, the seed inspector/controller shall complete the inspection form based on which he/she shall propose the rejection or acceptance of the propagation farm, or recommend some remedial measures before the final decision.

The inspection form shall be co-signed by the seed inspector/controller and the seed grower or a representative. Any refusal by the grower to sign shall be mentioned thereon. The rejection of a propagation farm shall be recorded in the inspection form and notified to the seed grower concerned within 15 days of the inspection.

Seed Lots

A seed lot shall be a specific, physically identifiable quantity of seeds for which test report may be issued.

Sample Collection

Sample collection on delivery of raw seeds: the seed inspector/controller shall take an official sample, for prior control, from individual harvests on delivery of raw seeds. It shall be placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

Sample collection for certification: in order to check that the seed lots submitted for certification meet the defined standards, official seed samples for testing shall be taken by the seed inspector/controller. These samples shall be taken in duplicate from each lot and placed at the disposal of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture: one for the National Seed Testing Laboratory or any other approved seed testing laboratory, and the other for post-control.

The minimum weight of a sample to be collected from a seed lot shall be 1,000 g for laboratory tests and 1,000 g for post-tests.

Lot size

Basic seeds: a basic seed lot is a quantity of homogeneous seeds in terms of identity, species purity, germination capacity, moisture content and size, and which shall not exceed five (5) tonnes in weight.

Basic seed lots may be produced by mixing the products of several plots in specific proportions, provided that these plots have been sown with basic seeds of the same origin. The seed grower shall declare to the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture, the plots whose product shall be mixed, specifying the numbers on the crop declaration for each plot. A new lot number shall be assigned to the mixed product.

Certified Seeds: certified seed lots shall not exceed twenty (10) tonnes in weight. They shall be homogeneous in terms of identity, species purity, germination capacity, moisture content and size.

Certification Rules and Standards

Lots submitted for certification shall meet the requirements of these Regulations, and the following standards or acceptance rules:

Description	Basic Seeds	Certified Seeds
Varietal purity (minimum)	98%	98%
(Minimum) species purity	98%	98%
(Minimum) germination capacity	80%	80%
(Maximum) moisture in woven bags	12%	12%
(Maximum) water content in airtight packaging	8%	8%
Maximum seed content of other crop species	5/kg	0.1%
Maximum weed seed content	5/kg	0.1%
Maximum content of inert materials (stones, soil, straw, etc.)	2%	2%

Marketing Control of Sorghum Seeds

Lots of locally produced or imported seeds for sale shall be inspected and, if necessary, samples taken by seed inspectors/controllers for testing at the National Seed Testing Laboratory or any other approved seed testing laboratory, in order to ensure their compliance with the standards and rules defined by the laws and regulations in force in Cameroon.

2.4.5. Decision No. 00541/MINADER/SG/DRCQ/SDRSQV of 7 September 2006 to approve the official technical regulations for the quality control of some vegetable seeds

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 on seed activities;

Mindful of Decree No. 2004/320 of 8 December 2004 to organise the Government;

Mindful of Decree No. 2004/322 of 8 December 2004 to form the Government;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing of seeds, especially under article 22,

HEREBY DECIDES AS FOLLOWS:

Article 1: The production, import, quality control and marketing of vegetable seeds under optional certification, shall be organised in accordance with the provisions of Law No. 2001/014 of 23 July 2001 on seed activities, its implementing instruments, and the technical regulations approved by this Decision.

Article 2: (1) Optional certification shall be granted for some vegetable seeds.

(2) However, official samples shall be taken by seed inspectors and controllers on import, in packaging, splitting or repackaging units, in storage and sales warehouses for varietal and health control, as well as for technological testing (species purity, germination capacity, etc.) in the laboratory.

Article 3: The complete wording of the attached technical regulations on the quality control of some vegetable seeds shall hereby be approved.

Article 4: The Director in charge of Regulations and Quality Control of Agricultural Inputs and Products, in the Ministry in charge of Agriculture and Rural Development, shall be responsible for the execution of this Decision, which shall be registered and published in English and French wherever necessary.

Yaounde, 7 September 2006

The Minister of Agriculture and Rural Development,

Clobert TCHATAT

APPENDIXES: OFFICIAL TECHNICAL REGULATIONS FOR THE QUALITY CONTROL OF SOME VEGETABLE SEEDS

Scope of Application

The production of vegetable seeds shall be based on cultivars, the use of hybrid combinations declared at the time of registration in the Official Catalogue of Species and Varieties, and on good physical, physiological and health conditions.

Definitions

Species under Optional Certification:

For the purpose of these official technical regulations, vegetables under optional certification scheme shall refer to plants belonging to the species listed below:

Garlic: *Allium sativum*

Amaranth: *Amaranthus spp*

Aubergine: *Solanum melongena*

Basil: *Basilicum americanum*

Beetroot: *Beta vulgaris*

Carrot: *Daucus carota*

Celery: *Apium graveolens*

Chicory:

Cauliflower: *Brassica oleracea var. Botritis*

Chinese cabbage

Head cabbage: *Brassica oleracea*

Var capitata

Red cabbage: *Brassica oleracea var. rubra DC*

Chives: *Allium fistulosum*

Cucumber/Gherkin: *Cucumis sativus*

Courgette: *Cucurbita pepo*

Spinach: *Spinacia oleracea*

Indian spinach: *Basella alba*

Spinach basella: *basella rubra*

Okra: *Hibiscus esculentus*

Lettuce: *Lactuca sativa*

Melon: *Cucumis melo*

Nightshade: *solanum esculentum*

Black nightshade: *Solanum nigrum*

Turnip: *Brassica rapa*

Onion: *Allium cepa*

Guinea sorrel: *hibiscus sabdarifa*

Watermelon: *Citrilus lanatus*

Parsley: *Petroselinum crispum*

Pea:

Pepper: *Capsicum annum*

Chilli pepper: *capsicum frutescens*

Leek: *Beta vulgaris*

Lots

Maximum lot weight: a seed lot shall be defined as a quantity of seeds with a maximum weight depending on the species:

Seeds of standard size or larger than maize grain: 20 tonnes;

Seeds smaller than maize grain: 10 tonnes.

Homogeneity of lots: a lot shall be homogeneous in terms of identity, species purity, germination capacity and moisture.

The seed company shall assign a number on each lot during packaging, splitting or repackaging, in order to identify each lot.

Small Packages: for the purpose of these Official Technical Regulations, small packages shall refer to packages containing seeds with a minimum net weight of:

- 5 kg for legumes;
- 500 g for onion, beetroot, turnip, watermelon, squash, courgette, carrot, radish, spinach;
- 100 g for all other species of vegetables listed in Paragraph 2.1 above.

Eligibility Requirements

Only seeds of varieties registered in the Official Catalogue of Species and Varieties may be imported, produced, packaged, split, repackaged and marketed.

For self-pollinated species, the characteristics of lots of a packaged, split, repackaged and marketed variety shall comply with those of the samples submitted for registration in the Official Catalogue of Species and Varieties. Reference standards shall be placed under the responsibility of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

For cross-pollinated species, the characteristics of lots of a packaged, split, repackaged and marketed variety shall be identical, homogenous and remain stable from year to year. These characteristics shall be those identified on the samples submitted for registration in the Official Catalogue of Species and Varieties. Reference standards shall be placed under the responsibility of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

For hybrid species, the traits of the parents and lots of bonded, split, repackaged and marketed F1s shall be identical, homogeneous and remain stable from year to year. These characteristics shall be those identified on the samples submitted for registration in the Official Catalogue of Species and Varieties. Reference standards shall be placed under the responsibility of the Department in charge of Regulations, Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

Standards

Vegetable seed lots shall comply with the following standards:

Species	Minimum Weight of a Sample (in g)	Minimum Species Purity (weight)	Maximum Seed Content of other Plant Species (Weight)	Minimum Germination Capacity (of Pure Seeds)
Aubergines	20	98	0.5	60
Amaranths	10	95	1.0	70
Basil	10	95	1.0	70
Basella	10	98	0.5	60
Beetroot	100	97	0.5	70
Carrot	10	95	1.0	65
Celery	5	97	1.0	70
Cabbages	10	97	1.0	70
Cucumber/Gherkin	65	98	1.0	70
Squashes (Pumpkin)	250	98	1.0	60
Courgette	150	98	1.0	75
Spinach	75	97	1.0	75
Okra	250	98	0.5	65
Hibiscus	250	97	0.5	65
Lettuce	10	95	0.5	75
Melon	100	98	0.1	75
Nightshade	25	97	0.5	60
Turnip	20	97	1.5	80
Onion/Garlic/Chives	25	97	1.0	70
Guinea Sorrel	250	97	0.5	65
Watermelon	250	98	0.1	75
Parsley	10	97	1.0	65
Chilli Pepper/Pepper	40	98	0.5	65
Leek	20	97	0.5	70
Radish	50	97	1.0	70
Tomato	20	97	0.5	60

Quality Control

Obligation of vegetable seed companies: vegetable companies shall provide the following to the Department in charge of regulations, control and certification of seeds and seedlings of the Ministry in charge of Agriculture:

- for a minimum of three (3) years, any document indicating the origin of the imported, conditioned, split, repackaged seed lots;
- for a minimum of two (2) years, a sample taken from each imported, packaged, split or repackaged lot.

Control of vegetable seeds: The inspectors/controllers of the Department in charge of regulations, control and certification of seeds and seedlings of the Ministry in charge of Agriculture may take official samples at any stage of processing, transportation and marketing. Official controls are carried out subsequently. They may include identity and true purity, specific purity, maximum seed content and other species, germination capacity and health status.

Weight reduction of the official sample: For F1 hybrid varieties of the above-mentioned species, the minimum weight of the official sample may be reduced to half of the set weight. However, the official sample shall have a weight of at least 5g and/or contain at least 400 seeds.

For lots packed in small packages, the official sample may be reduced to two bags per lot; the number of seeds per sample shall be at least 200.

Labelling requirements

Information required on the supplier's label or on the package:

- Name and address of the supplier responsible for affixing the Labels or the identification mark;
- Name and address of the distributor for imported seeds only;
- Date (month and year) of closure and last germination test.
- Species, variety, grade (standard seeds)
- Lot reference number given by the supplier responsible for tagging;
- Declared net or gross weight at packaging, or declared number of seeds or clusters.

Label size: The minimum size for the label shall be 110 mm x 67 mm, except for small packages

2.4.6. Decision No. 1032/D/MINADER/SG/DRCQ/FS of 20 October 2011 setting the amount of royalties relating to seed activity and plant quarantine under the Seed Fund

THE VICE-PRIME MINISTER, MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the constitution;

Mindful of Law No. 2001/014 of 23 July 2001 on seed activities;

Mindful of Law No. 2003/003 of 21 April 2003 relating to phytosanitary protection;

Mindful of Decree No. 2005/0771/PM of 06 April 2005 laying down regulations for the execution of plant quarantine operations;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/169 of 26 May 2005 on the creation, organisation and management of the Seed Fund;

Mindful of Decree No. 2007/268 of 07 September 2007 to amend and supplement some provisions of Decree No. 2004/320 of 08 December 2004 to organise the Government;

Mindful of Decree No. 2009/223 of 30 June 2009 to reshuffle the Government;

Considering service needs

HEREBY DECIDES AS FOLLOWS:

Article 1: This Decision sets the amount of royalty for seed activities and plant quarantine under the Seed Fund.

Article 2: For the purpose of this Decision, seed companies shall be classified as follows:

- First category: seed importers and wholesalers;
- Second category: Breeders, basic seed producers, growers with heavy equipment (tractor, processing equipment, laboratory equipment etc.)
- Third category: seed growers.

Article 3: The fees for the services below shall be as follows:

- Testing of plants and plant products subject to import permits.
 - Seed testing: 300,000 CFA francs
 - Agricultural product testing: 200,000 CFA francs
- Plants and plant products testing with phytosanitary certificates: 2,000 F CFA per batch
- Seeds testing on request: 1,500 CFA francs per sample
- Registration of seed varieties in the official catalogue for a period of 10 years
 - Locally produced seeds: 25,000 CFA francs
 - Imported seeds: 50,000 CFA francs
- Re-registration of seed varieties in the official catalogue for a period of 5 years
 - Locally produced seeds: 12,500 CFA francs
 - Imported seeds: 25,000 CFA francs
- Inspection and control of seed farms for certification: 10,000 CFA francs per hectare per crop cycle.
- Issuance of activity certificates to seed companies for 5 years
 - First category seed company: 300,000 CFA francs
 - Second category seed company: 150,000 CFA francs
 - Third category seed company: 50,000 CFA francs
 - Analysis of Distinction, Homogeneity Stability (DHS) and Agronomic Technological Value (VAT): 2,000,000 F CFA

Article 4: Seed and plant samples imported for research and/or testing purposes shall be exempt from royalties, but subject to plant quarantine regulations and seed regulations for the introduction of new varieties.

Article 5: The revenue thus generated shall be paid into the account of the Seed Fund.

Article 6: This decision shall be registered and published wherever necessary.

Yaounde, 20 October 2011

**The Vice-Prime Minister,
Minister of Agriculture and Rural Development,
Jean NKUETE**

2.4.7. Decision No. 1208 /MINADER/SG/DRCQ/SDRSQV of 25 August 2014 listing some species and varieties of economically important food crops (maize, rice, cowpea, soybean, bean, plantain, cassava, potato) in the official catalogue of species and varieties

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 on seed activities, particularly Article 25 thereof;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/3091/PM to lay down the modalities for seed production, quality control, certification and marketing, particularly Article 12, Paragraph 3 thereof;

Mindful of Decree No. 2019/408 of 9 December 2011 to organise the Government;

Mindful of Decree No. 2011/409 of 09 December 2011 to appoint a Prime Minister, Head of Government;

Mindful of Decree No. 2011/410 of 9 December 2011 to form the Government;

Considering the service needs,

HEREBY DECIDES AS FOLLOWS:

Article 1: The following plant varieties shall be registered in the Official Catalogue of Species and Varieties:

- | | | |
|---|--|--|
| <ul style="list-style-type: none"> - Maize Species (<i>Zea mays</i>) <ul style="list-style-type: none"> • CMS 8501 • CMS 8704 • CMS 9015 • SHABA • KASA-SR • COCA-SR • TZEE-WBSR-81 • CHC (ATP) • CHC 201 • CLH 103 - Sorghum species (<i>Sorghum bicolor</i> L.) <ul style="list-style-type: none"> • ZOUAYE • C 54 • Damougari - Rice species (<i>Oriza sativa</i> L.) <ul style="list-style-type: none"> • ITA 300 • IR 46 • Tox 3145-34-3-2 • Nerica 3 • Nerica 8 • Nerica 13 • Nerica L36 • Nerica L42 • Nerica L60 • Nerica 56 | <ul style="list-style-type: none"> - Peanut species (<i>Arachis hypogaea</i> L.) <ul style="list-style-type: none"> • ICGV 86003 • JL24 • 28-206 • RMP-12 • A 26 - Cowpea Species (<i>Vigna unguiculata</i> L.) <ul style="list-style-type: none"> • Lori (24-130) • Touradi - Bean species (<i>Phaseolus vulgaris</i>) <ul style="list-style-type: none"> • GLP 190 • PH 495 • PH 320 • PH 201 - Soybean species (<i>Glycine max</i>) <ul style="list-style-type: none"> • TGX 1835 10 E • SJ 299 • SJ 235 - Potato species (<i>Solanum tuberosum</i>) <ul style="list-style-type: none"> • CIPIRA • TUBIRA | <ul style="list-style-type: none"> • Aïda • Spunta • Atlas • Diamant • Kondor • Pamela • Pamina - Cassava species (<i>Manihot esculenta</i>) <ul style="list-style-type: none"> • TMS 92/0326 (Abui-Pkwem) • TMS 96/1414 • TMS 96/0023 (Aben-Lengon) • TMS 92/0057 (Aye mye-Sahti) • TMS 92/0067 (Bon wa Tobo) • 8061 - Plantain species (<i>Muza ssp</i>) <ul style="list-style-type: none"> • Elat • Essong • French clair • Bâtard • Three hands planty |
|---|--|--|

Article 2: The above species and varieties shall be listed in the Official Catalogue of Species and Varieties for a period of five (5) years renewable.

Article 3: Seed operators shall submit to the Director in charge of Regulations and Quality Control of Agricultural Inputs and Products a sample of the species/variety concerned for storage in the cold room.

Article 4: The Director in charge of Regulations and Quality Control of Agricultural Inputs and Products in collaboration with the relevant structures shall be responsible for preparing, publishing and printing the official catalogue of species and varieties per species or group of species, of the plant varieties listed in Article 1.

Article 5: This decision shall be registered and published according to the procedure of urgency in English and French.

Yaounde, 25 August 2014

The Minister of Agriculture and Rural Development
Lazare ESSIMI MENYE

2.4.8. Decision No. 0798/MINADER/SG/DRCQ/SDRSQV of 21 July 2016 to approve the technical regulations for the production, control and certification of arabica coffee seeds and seedlings (SPS coffea)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution,

Mindful of law No. 2001/014 of 23 July 2001 on seed activities;

Mindful of Decree No. 2004/320 of 8 December 2004 to organise the Government;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of May 2005 on the creation, organisation and functioning of the National Council for Seeds and Plant Varieties;

Mindful of Decree 2005 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing, particularly Article 22 thereof,

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government;

Mindful of Decree No. 2011/410 of 9 December 2011 to form the Government;

Mindful of Decree No. 2015/434 of 2 October 2015 to reshuffle the Government;

Considering the recommendations of the National Council for Seeds and Plant Varieties of in its session of 29 December 2015;

Considering service need,

HEREBY DECIDES AS FOLLOWS:

Article 1: The production, control and certification of arabica coffee seeds and seedlings shall be organised in accordance with the provisions of Law No. 2001/014 of 23 July 2001 on seed activities, the implementing instruments and the official technical regulations laid down in this Decision.

Article 2: (1) At the beginning of each farming season, declarations of arabica coffee seeds and seedlings, on relevant forms, shall be sent to the Department in charge of regulations, control and certification of seeds and seedlings of the Ministry in charge of Agriculture.

Seed producing companies and nursery growers shall file the declarations on arabica coffee seeds and seedlings, subject to control and certification for marketing on the national territory.

Any changes to crop declarations shall be communicated to the Department in charge of regulations, control and certification of seeds and seedlings of the Ministry in charge of Agriculture no later than one month after implementation.

Article 3: The complete technical regulations in Appendices 1 and 2 on Arabica coffee seeds and seedlings is hereby approved.

Article 4: The Director in charge of regulations, control and certification of seeds and seedlings of the Ministry in charge of Agriculture shall be responsible for the implementation of this decision which shall be registered and published in English and French.

Yaounde, 21 July 2016

The Minister of Agriculture and Rural Development,

Henri EYEBE AYISSI

APPENDIX 1: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, QUALITY CONTROL AND CERTIFICATION OF ARABICA COFFEE SEEDS (COFFEA ARABICA)

Application scope

Due to the auto-compatibility of arabica coffee, seed production is based on the maintenance of the variety developed by the seed breeder/grower stated in the Official Catalogue of Species and Varieties. This method of propagation ensures the maintenance and preservation of the genetic and morphological traits of the variety.

Production Organisation

Arabica coffee seed production is based on the selection proposed by the breeder or maintainer.

Starting genetic material: The starting genetic material of the generative propagation is the healthy material (base) clearly identified resulting from the natural self-fertilisation.

Seed farms are inspected/controlled for the absence of diseases and pests. Samples collected may be sent, if necessary, to the National Seed Testing Laboratory or any other approved laboratory.

The variety is grown in a company or by an individual with a qualified and experienced staff, having appropriate equipment to carry out this programme.

Arabica coffee seeds are produced under the responsibility of the seed company and subject to quality controls by seed inspectors and controllers from the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

The seed producing company must have:

- a coffee arabica seed farm;
- the appropriate facilities and equipment for production, maintenance and health protection;
- adequate facilities for the processing, packaging and conservation of Arabica coffee seeds.

Cultivation rules

During inspections and controls, the seed farm must comply with the following rules:

Identification of the seed farm: The seed farm is indicated at the entrance by a signpost or other indications to identify the plot, species, variety and category.

Site Preparation: The soil must be thoroughly weeded over an area that extends well beyond the area provided for the seed farm.

Health condition: The plot must be in good health condition. In all cases, a seed farm with a very high severity and incidence for diseases, such as coffee anthracnose and growing pests shall be rejected.

Minimum area: The minimum area of a seed farm submitted for certification must be at least one (1) hectare. It must support the implementation of the programme declared by the producing company.

Isolation: The distance between an arabica coffee seed farm and coffee farms must be at least 100 m

Health purification: Purification is mandatory in the seed farm, from the beginning of planting to the harvest of seeds. It involves either the removal of off-types or the elimination of all fruits from the tree as soon as symptoms appear on it.

Crop condition: It must ensure proper inspections. The poor condition of seed farms, including the presence of weeds, diseases or pests, may result in its rejection or downgrading.

Harvest: The harvest is made from healthy ripe fruits, with bright red colours.

Depulping and Fermentation: Seeds are depulped manually. After pulping, they are put in jute bags for fermentation. After fermentation, the seeds are washed and drained on a fine mesh rack in the shade. They are stirred daily for one to two weeks.

Drying is done in the shade until a moisture content of 13% is attained. Afterwards, they will be sorted to eliminate round seeds, off-types and malformed seeds and then packaged in jute or cotton bags for conservation.

Seed conservation

Preservation methods: After treatment with registered pesticides, the seeds are packaged in jute or cotton bags of one kilogram each. These bags must ensure the viability of the seeds and limit losses caused by dehydration due to direct exposure of the plant material to sunlight or excess moisture. The seeds can also be coated in charcoal powder or treated with a fungicide and stored in a closed container under 100% room temperature.

The seeds must be stored in a specially equipped room under appropriate temperature and humidity conditions.

Storage period: The storage conditions of seeds mentioned above must be 4 months for the first method and 12 months for the second method.

Seed Farm Inspection

Prerequisite: The inspection must be carried out in the presence of the person in charge of the seed company or a representative. The seed inspector/controller shall be given satisfactory evidence of the variety used. The seed farm must be easily accessible.

Number of inspections: Crops intended for the production of arabica coffee seeds, are subject to four categories of inspections per year.

- An inspection to verify the origin of the parent seed, upon installation of the plot;
- An inspection to check the state of maintenance of the operation, especially before the berries get ripe;
- An inspection to evaluate the harvest;
- An inspection to assess the conditions for harvesting, drying, treating and storing seed.

Crop grading: The compliance of crops with the tolerance threshold set by this regulation is graded by counting, in line with the procedures specified on the inspection forms prepared by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

Any tree affected by anthracnose must be properly harvested;

If more than 10% of the trees in a plot are infested by anthracnose, the production of the said plot for that season shall be denied certification.

After each inspection, the seed inspector/controller will complete the inspection form on the basis of which he/she will propose the rejection or acceptance of the plot or seed farm or seed production facility concerned, or recommend some corrective measures before a final decision is made.

The inspection form shall be co-signed by the seed inspector/controller and the head of the seed company or a representative. In case of refusal by the latter, this is mentioned.

The total or partial rejection of a seed farm or its production shall be registered in the inspection form and notified to the person in charge of the seed company within 15 days following the inspection.

Certification standards

Seeds submitted for certification shall meet the requirements of this technical regulation and standards:

Description of seed lots	Certified seed (Grade)
Varietal purity (minimum)	98 %
Germination rate (minimum)	85 %
Insect-attacked seeds (maximum)	2 %
Seeds with lesions (maximum)	1 %
Moldy seeds (maximum)	2 %
Weed seeds (maximum)	0.5 %
Inert matter (maximum)	0.5 %

Marketing control

Locally produced or imported seeds, as well as those marketed are inspected/controlled and, where necessary, samples are taken by seed inspectors/controllers for analysis at the National Seed Testing Laboratory or any other approved seed testing laboratory, to ensure that they meet the standards and rules set by the laws and regulations in force in Cameroon.

Companies producing arabica coffee seeds must maintain a seed transaction register in line with Article 17 of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing.

APPENDIX 2: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, QUALITY CONTROL AND CERTIFICATION OF ARABICA COFFEE SEEDLINGS (COFFEA ARABICA)

Application scope

The production of arabica coffee seedlings is based on the maintenance of the variety developed by the breeder during registration in the Official Catalogue of Species and Varieties.

Production Organisation

The production of arabica coffee seedlings shall be based on the use of certified seeds.

Starting genetic material: The starting genetic material for the production of arabica coffee seedlings shall be certified seeds.

Seed farms are inspected/controlled for the absence of diseases and pests. If necessary, samples may be collected and sent to the National Seed Testing Laboratory or any other approved laboratory.

Certified Arabica Coffee seedlings are seedlings of certified seeds of varieties listed in the Official Catalogue of Species and Varieties.

Cultivation rules

Nurseries, arabica coffee seedlings must meet the following rules:

Identification of the nursery: Nurseries are indicated at the entrance by a sign or any other indications to identify their species, variety, category, etc.

Preparation of the nursery site: The selected site shall be perfectly weeded on an area that largely extends the area planned for the nursery.

Boards or beds are separated from each other by aisles. Several boards or beds form a series. Two consecutive rows are separated by paths. A track of equal width must surround the seeding or nursery.

Boards are no longer than 20 metres long and 1.20 to 1.50 metres wide. The dimensions of the aisles and tracks must allow for the movement of people and equipment.

Empty clear or coloured polyethylene bags with gussets must have the following characteristics:

- Thickness: 40 microns,
- Width: 18 to 25 cm,
- Height: 30 to 35 cm,
- Perforated base with 15 holes of 5 mm diameter.

Protection of seed boxes and nurseries: The nursery is harnessed under shade to protect the seedlings from high insolation.

The seedlings are placed in a nursery under a balanced light shade intercepting 50% of light.

Choice and preparation of the substrate: The substrate must enable the proper development of the germs and seedlings. The substrate used shall be of good quality and free of plant debris.

Health condition: In all cases, a nursery whose severity and incidence for diseases (rust and cercosporiose) and pests, are very high during growth, shall be denied certification.

Minimum area: The nursery area must be capable of producing a minimum of 15,000 seedlings annually ready for the market.

Isolation: Isolation is not a problem for Arabica coffee seedlings. However, in germinators or nurseries, beds of the same variety shall be at least 50 cm apart.

Varieties homogeneity and seedling sizes: The beds of the germinators must have plantlets of the same size during transplanting.

Health purification: Purification is mandatory in germinators and nurseries, from the beginning of the programme to the harvest of the seedlings. It consists in the elimination of sprouts affected by anthracnose or rust, as soon as symptoms appear. The infested plant is removed from the germinator or nursery. The nursery must be well maintained throughout the plant growth period.

Nursery operation: This must ensure proper inspections. The poor cropping conditions of a nursery, involving the presence of weeds, attacks of diseases or pests can lead to the refusal of certification.

Nursery Inspection

Prerequisites: The inspection must be done in the presence of the nursery farmer or a representative. The seed inspector/controller shall be provided with satisfactory evidence of the variety and origin of the seed used. The nursery must be easily accessible.

Number of inspections: Nurseries for the production of certified Arabica coffee seedlings are subject to at least three inspections per year.

- The first inspection of the germinator shall be carried out at the beginning of the transplanting of the seedlings to observe whether the rules concerning the condition beyond parcel (cleanliness of the germinator) and the seedlings (health condition) have been complied with and to identify the infected types and seedlings to be cleaned;
- The second inspection of the nursery is carried out 4 months after transplanting the seedlings in order to identify the off-types to be treated and the infected seedlings that will also have to be removed and destroyed;
- The third inspection must be carried out 7 to 8 months after transplanting, just before or during the elimination of the seedlings; making it possible to choose and ensure the good quality of the seedlings to be marketed.

During the last inspection, the seed controller shall register the number of seedlings likely to be placed on the market.

Only good quality seedlings are removed from the nursery with the following characteristics (to be reformulated):

- Height at least 50 cm;
- Diameter: at least 0.5 cm (Bic diameter);
- Seedlings with abnormalities such as stunted and weak plants are not put on the market.

Crop grading

The compliance of the seedlings with the tolerance threshold set by this Regulation shall be assessed by counting in line with the procedures specified on the inspection forms prepared by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

The method of sampling the nursery in countable homogeneous units, for the characteristic to be considered, allows partial acceptance or downgrading of the nursery.

After each inspection, the seed inspector/controller shall complete the inspection form based on which he/she will propose the rejection or acceptance of the nursery, or recommend some corrective measures before a final decision is made.

The inspection form shall be co-signed by the seed inspector/controller and the nursery grower or a representative. In case of refusal by the latter, this is mentioned.

The total or partial rejection of a nursery is noted on the inspection form and notified to the nursery farmer, within 15 days following the inspection.

Certification standards

Plant material submitted for certification must meet the requirements of the following Technical Regulations and standards:

On leaving the nursery and on delivery of the seedlings

Characteristics of seedlings	Certified seedlings
Varietal purity (minimum)	98 %
Undeveloped seedlings (maximum)	1 %
Narrow-leaved seedlings (maximum)	1 %
Stunted seedlings (maximum)	1 %
Seedlings with curled leaves (maximum)	1 %
Twisted seedlings (maximum)	1 %
Threaded seedlings	1 %
Seedlings too buried (maximum)	1 %
Yellow seedlings (maximum)	1 %
Seedlings with genetic abnormalities (maximum)	1 %
Diseases and parasites:	
- Anthracnose (maximum)	0.5 %
- Rust (orange and floury) (maximum)	1 %
- Cercosporiose	1%

Marketing control

Locally produced or imported seedlings placed on the market are inspected/controlled and if necessary, samples are taken by seed inspectors/controllers for analysis at the National Seed Testing Laboratory or any other approved seed testing laboratory, to ensure that they meet the standards and rules defined by the laws and regulations in force in Cameroon.

Companies producing arabica coffee seedlings shall keep a seed transaction register in line with Article 17 of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing.

2.4.9. Decision No. 0799/MINADER/SG/DRCQ/SDRSQV of 21 July 2016 to approve technical regulations for the production, quality control and certification of seeds and oil palm seedlings (*Elaeis guineensis* var. *Tenera*)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution,

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 04 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control, and marketing, particularly Article 22 thereof;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2011/410 of 9 December 2011 to form the Government;

Mindful of Decree No. 2015/434 of 2 October 2015 to reshuffle the Government;

Considering the recommendations of the National Council for Seed and Plant Varieties in its session of December 29, 2015

Considering service needs,

HEREBY DECIDES AS FOLLOWS:

Article 1: The production, quality control and certification of oil palm seeds and seedlings shall be organised in line with the provisions of Law No. 2001/014 of 23 July 2001 relating to seed activities, the implementing instruments and the official technical regulations laid down in this Decision.

Article 2: (1) At the beginning of each farming season, declarations of crops for the production of hybrid seeds of cocoa seedlings, detailed on the relevant forms, shall be sent to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

The obligation to file these declarations concerns hybrid seed-producing companies and nursery growers of cocoa seedlings to be subject to quality control and certification for marketing on national territory.

Any changes to crop declarations shall be communicated to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture, no later than one month after implementation.

Article 3: Technical regulations for the production, quality control and certification of seeds and oil palm seedlings (*Elaeis guineensis* var. *Tenera*) contained in Appendices 1 and 2 and attached to this Decision shall be registered.

Article 4: The Director in charge of regulations, quality control and certification of seeds and seedlings is responsible for the execution of this decision which will be registered and then published in English and French.

Yaounde, 21 July 2016

The Ministry of Agriculture and Rural Development

Henri EYEBE AYISSI

APPENDIX 1: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, QUALITY CONTROL AND CERTIFICATION OF OIL PALM SEED (*Elaeis guineensis* var. *Tenera*)

Application scope

The production of oil palm seed is based on the maintenance of the male and female parents developed by the breeder and the hybrid combinations declared at the time of registration in the Official Catalogue of Species and Varieties. This method of propagation ensures the maintenance and preservation of the genetic and morphological characteristics of the variety.

Production Organisation

The production of oil palm seed is based on material resulting from reciprocal recurrent selection and/or pedigree selection proposed by the breeder or maintainer.

Starting genetic material: The starting genetic material of seed propagation consists of:

- healthy female spawners (var. Dura) and plants derived from self-pollination. The set constitutes the family A0 (female parent of the starting genetic material);
- healthy male spawners (var. Pisifera), selected by the breeder, constitute the B0 family (male spawners of the starting genetic material).

The F1 offspring obtained by artificial pollination of the A0 female parent family, by pollen of the B0 male parent family, constitutes the basic seed (var. Tenera) which is a hybrid of Dura x Pisifera.

The health status of each parent plant A0 and B0 shall be checked at the National Seed Testing Laboratory or at any other approved laboratory using an appropriate method according to a protocol proposed by the breeder or maintainer and approved by the Department in charge of regulations, quality control and certification of seeds and plants of the Ministry in charge of Agriculture.

Both female and male breeding equipment is grown at a research station or by an individual with the required experience, all with the necessary equipment and qualified personnel. It shall be under the responsibility of the breeder or maintainer and is checked by specialists appointed by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

Oil palm seeds are produced under the responsibility of the breeder or maintainer and are verified by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

The seed producing company must have:

- an oil palm seed farm (female spawners);
- an oil palm seed farm (male spawners) and/or a supply contract for the supply of basic material (pollen);
- facilities and equipment necessary for seed production, maintenance and health protection;
- adequate storage facilities for oil palm pollen and seed.

Cultivation rules

During inspections of seed farms, oil palm parent must comply with the following rules:

Identification of the seed farm: The seed farms are marked at the entrance by a sign or any other indication to identify the plot, crop and variety. The different parents are clearly identified.

Site preparation: The land must be perfectly weeded over an area that goes far beyond the area planned for the seed farm.

Health condition: The parent shall be in good health conditions. In any case, a seed farm with a very high severity and incidence of diseases and pests during growth shall be rejected. To this end, all infected parent is discarded from basic seed production.

Minimum area: The minimum area of a seed farm presented for inspection must allow for the program declared by the producing company.

Isolation: Isolation of male and/or female inflorescences involved in seed production shall be in special systematic isolation bags designed for this purpose.

The number of isolation bags must be compatible with the level of production envisaged. A triple-use bag may only be used for a maximum of three fertilizations; a single-use bag may only be used once.

Pollination: For the production of basic oil palm seeds, pollination is artificial. It is done between the genitors previously indicated by the breeder or the maintainer. The inflorescences are protected by isolation bags. At the end of the pollination, each fertilized regime receives a label including at least the identity of the female genitor, the identity of the male genitor and the date of pollination.

Health purification: Purification is compulsory in seed farm, from the beginning of planting to the harvesting of the seeds. It consists in the elimination of the sick parent as soon as the symptoms appear.

Seed conservation

Preservation methods: After treatment with registered pesticides, the seeds are stored in crates and then packaged in polyethylene bags. These bags must ensure the viability of the seeds and limit losses due to dehydration caused by direct exposure of the plant material to sunlight or excess humidity.

The seeds must be stored in a specially equipped room under temperature and humidity conditions defined by the protocol proposed by the breeder or maintainer and validated by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

Storage period: The storage conditions mentioned above must allow a storage period of the seeds from 3 months to 2 years.

Seed Farm and Sprout Inspection

Prerequisite: The inspection must be carried out in the presence of the breeder, the maintainer or his representative. The seed inspector/controller shall be provided with satisfactory evidence of the variety, grade and/or origin of the pollen used. The seed farm must be easily accessible.

Number of inspections: Crops intended for the production of oil palm seeds are subject to three categories of inspections per year.

- An inspection is carried out to verify the existence of the spawning trees, the pollination equipment and the methods used;
- An inspection is carried out every month to check the quality of the hybridization carried out (blank fertilization);
- An inspection allows the verification of the stock of the bags of female fertilization, the bags of male fertilization and the contracts or invoices of purchase of pollen;

During the last inspection, the seed inspector/controller must identify the number of seeds that may be offered for sale.

The storage, heating and seed germination rooms are subject to inspection.

Crop rating: Crop compliance with the tolerance threshold set out in this Regulation shall be assessed by count, in accordance with the procedures specified on the inspection forms prepared by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

Any seed production from disease-infected parents shall will be rejected;

Any poor isolation of the female and male inflorescences shall result in the rejection of the seeds from the regimes considered;

Any absence of labels on fertilized diets shall result in the rejection of the production in question;

Any excessive deviation of "blank fertilization" controls exceeding 10% error is intolerable.

After each inspection, the Seed Inspector/Controller shall complete the Inspection form based on which he/his will propose the rejection or acceptance of the seed farm or seed production concerned, or to recommend some corrective measures before a final decision is made.

The inspection form must be co-signed by the seed inspector/controller and the maintainer or a representative. In the case of refusal by the latter, mention shall be made of this. Total or partial rejection of a seed farm shall be recorded on the inspection record and notified to the maintainer within 15 days of the inspection.

Certification standards

Plant material submitted for certification must meet the requirements of this Technical Regulation and the following standards:

At the end of germination of preheated seeds

Seeds delivered as “sprouted seeds” must meet the following conditions:

Characteristics (Maximum content)	Basic seed
Seeds at the “white dot” stage, i.e. (undifferentiated germ)	100%
Differentiated seed	5 %
Seeds not germinated	1 %
Brown sprout seeds	5 %
Seeds with lesions	1%
Presence of mould development on sprouted seeds	1 %
Moldy seeds	1 %
Weed seed	0 %
Inert materials	1 %

In any case, the total percentage of seed with defects must not exceed 5 %.

For lots of 500 or more sprouted seeds, it is recommended to place these seeds in packages containing expanded polystyrene beads.

Marketing control

Locally produced or imported seeds for sale are inspected and, if necessary, samples are taken by seed inspectors/controllers for analysis at the National Seed Testing Laboratory or any other approved seed testing laboratory, to ensure that they meet the standards and rules defined by the laws and regulations in force in Cameroon.

Establishments producing oil palm seeds shall keep a record of seed transactions in accordance with Article 17 of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing.

2.4.10. Decision No. 0800/MINADER/SG/DRCQ/SDRSQV of 21 July 2016 to approve the technical regulations for the production, quality control and certification of hybrid seeds and cocoa seedlings (*Theobroma cacao*).

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution,

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2005 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2011/410 of 9 December 2011 to form the Government;

Mindful of Decree No. 2015/434 of 02 October 2015 on the reorganisation of the Government;

Considering the recommendations of the National Council for Seed and Plant Varieties in its session of 29 December 2015;

Considering service needs,

HEREBY DECIDES AS FOLLOWS:

Article 1: The production, quality control and certification of hybrid seeds and cocoa plants are organized in accordance with the provisions of Law No. 2001/014 of 23 July 2001 relating to seed activity, the implementing instruments and the official technical regulations laid down in this Decision.

Article 2: (1) At the beginning of each farming season, crop declarations of hybrid seeds of cocoa seedlings, detailed on relevant forms, shall be sent to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

The obligation to file these declarations concerns hybrid seed-producing companies and nursery growers of cocoa plants to be subject to quality control and certification for marketing on national territory.

Any changes to crop declarations shall be communicated to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture no later than one month after implementation.

Article 3: The complete drafting of technical regulations in Appendices 1 and 2 on hybrid seeds and cocoa plants is registered.

Article 4: The Department in charge of Regulations, Quality Control and Certification of the Ministry in charge of Agriculture is responsible for the implementation of this decision, which will be registered and published in English and French.

Yaounde, 21 July 2016

The Minister of Agriculture and Rural Development

Henri EYEBE AYISSI

APPENDIX 1: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, QUALITY CONTROL AND CERTIFICATION OF HYBRID COCOA SEED (*Theobroma cacao*)

Application scope

The production of hybrid seeds is based on the maintenance of the male and female parents developed by the breeder/breeder and hybrid combinations described in the Official Catalogue of Species and Varieties. This method of propagation ensures the maintenance and preservation of the genetic and morphological characteristics of the variety.

Production Organisation

The production of hybrid cocoa seed is based on the selection of the two parents (male and female) recommended by the breeder or maintainer.

Starting genetic material: The starting genetic material of seed propagation consists of:

- healthy and clearly identified female parents (selected varieties);
- healthy and clearly identified male parents (selected varieties).

Seed farms are inspected/controlled for the absence of diseases and pests. If necessary, samples taken may be sent to the National Seed Testing Laboratory or any other approved laboratory.

These two parents are derived from vegetative propagation (by cuttings or grafting);

The F1 offspring obtained by artificial or manual pollination of the female spawner, by the pollen of the male spawner, constitutes the certified hybrid seed.

Male and female clones are grown by an establishment or individual who has acquired the required experience and qualification and by any person with a certificate of seed activity.

Hybrid cocoa seeds are produced under the responsibility of the seed establishment or an individual and are subject to quality controls by the seed inspectors/controllers of the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

The seed producer must:

- have the facilities and equipment necessary for production, maintenance and health protection;
- have the material and equipment necessary for manual pollination.

Cultivation rules

Seed farms shall meet the following requirements:

Seed farm identification: Seed farms shall be marked at the entrance with a sign or other indications to identify the plot, crop and variety. The different spawners are clearly identified.

The seed producer must have a bi-clonal cocoa seed farm.

Site Preparation: The field must be thoroughly weeded over an area that extends well beyond the area provided for the seed farm.

Health condition: The spawners must be in good health condition. In all cases, a seed farm with very high severity and incidence for diseases and pests during growth shall be refused for certification.

Minimum area: The seed farm must have a minimum area of 0.5 hectares. Submitted for verification for certification, the seed farm must enable the programme declared by the producing company to be carried out.

Pollination: For hybrid seed production, pollination is controlled (manual). It is done between the spawners previously indicated by the seed establishment. Manual pollination takes place from 6 to 10 hours. After pollination, each fertilized flower receives a pin. A tag is affixed to the tree to indicate the identity of the female spawner, the identity of the male spawner, the date of pollination and the number of flowers pollinated per foot.

Health and varietal purification: Purification is mandatory in the seed farm, from the beginning of planting, until the harvest of the cabosses. It consists in the elimination of diseased spawners and pods from the onset of symptoms as well as off-types in the plot.

Cultural state: It must allow to ensure proper inspections. Poor crop condition of seed farms, including the presence of weeds, disease attacks or pests, may result in the refusal of certification.

Harvest of Pods: Only hybrid pods from controlled pollination shall be harvested as seed and submitted for certification.

The estimation of certified beans per harvested pod shall depend on the variety listed in the catalogue.

Seed conservation

Preservation methods: The pods shall be stored in a specially equipped rooms under appropriate temperature and humidity conditions.

Storage period: Pods can be stored for 72 hours under ambient temperature conditions.

Prerequisite: The inspection shall be done in the presence of the person in charge of the establishment or a representative. The seed inspector/controller shall be provided with satisfactory evidence of the variety and/or origin of the parent clones. The seed farm must be easily accessible.

Number of inspections: Crops for the production of hybrid cocoa seed are inspected at least three categories per year:

- An inspection is carried out to verify the existence of the spawning trees, the pollination equipment and the methods used;
- During the flowering phase, an inspection is carried out at least once a month to check the quality of the hybridization carried out.

During the last inspection, the seed inspector/controller shall estimate the number of hybrid pods and therefore the number of beans that may be certified.

Crop grading: Crop compliance with the tolerance threshold set out in this Regulation shall be assessed by count, in accordance with the procedures specified in the inspection forms prepared by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

Any production of hybrid seeds from disease-affected parent shall be refused certification;

Any absence of pins and labels on the cocoa pods shall lead to the refusal for the certification of the beans contained in the said cocoa pods;

Excessive pollination deviation exceeding 10% error is intolerable.

After each inspection, the seed inspector/controller shall complete the inspection form based on which he/she shall propose the rejection or acceptance of the seed farm or hybrid seed production concerned, or recommend some corrective measures before a final decision is made.

The inspection form shall be co-signed by the seed inspector/controller and the seed establishment manager or a representative. In the case of refusal by the latter, mention shall be made of this. The total or partial rejection of a seed farm shall be recorded on the inspection record and notified to the person responsible for the seed farm within 15 days of the inspection.

Certification standards

Hybrid seeds delivered in the form of cocoa pods must meet the following conditions:

characteristics Certified seed	Certified seeds
Varietal purity with sleeve (minimum)	98 %
Varietal purity without sleeve (minimum)	85%
Germination rate (minimum)	85 %
Bean weight (minimum)	30 g
Mirid attacks on pods (maximum)	30 %
Brown rot	0%

Marketing control

Locally produced or imported hybrid cocoa seeds placed on the market are inspected/controlled by seed inspectors/controllers and as required, samples are taken for analysis at the National Seed Testing Laboratory or any other approved seed analysis laboratory to ensure that they meet the standards and rules defined by the laws and regulations in force in Cameroon.

Establishments or producers of hybrid cocoa seeds must keep a record of seed transactions in accordance with Article 17 of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing.

APPENDIX 2: OFFICIAL TECHNICAL REGULATIONS FOR THE PRODUCTION, QUALITY CONTROL AND CERTIFICATION OF COCOA SEEDLINGS (*Theobroma cacao*)

Application scope

The production of the cocoa plants is based on the maintenance of the spawners developed by the company, and hybrid combinations described at the time of registration in the Official Catalogue of Species and Varieties.

Production Organisation

The production of cocoa plants must be based on the use of certified hybrid seeds.

Starting genetic material: Certified hybrid seed are the starting genetic material for the production of cocoa seedlings. The cocoa plants are produced under the responsibility of the nursery owner and are subject to checks by the seed inspectors/controllers of the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

These male and female parents are inspected/controlled for the absence of diseases and pests. If necessary, samples taken may be sent to the National Seed Testing Laboratory or any other approved laboratory.

Certified cocoa seedlings are produced by certified hybrid seeds of the varieties listed in the Official Catalogue of Species and Varieties.

Cultivation rules

Tree nurseries must meet the following rules:

Site Selection: The nursery site must be chosen in an area that is easily accessible, close to a permanent water point and on slightly sloping ground.

Identification of the nursery: Nurseries are indicated at the entrance by a sign or any other indications to identify the plant species, variety, category, etc.

Preparation of the nursery site: The nursery site must be thoroughly cleaned (weeding, clearing of stumps, etc.) on an area that largely exceeds the area planned for the establishment of the nursery.

Boards or beds are separated from each other by aisles. Several boards or beds form a block. Two consecutive blocks are separated by corridors. A trail must surround the nursery.

Boards are no longer than 20 metres long and 0.70 to 1 metre wide. The dimensions of the aisles (0.6-0.7 m) and corridors (1-1.5 m) must allow for the movement of people and equipment.

Empty transparent or coloured polyethylene gusseted bags must have the following minimum characteristics:

- Thickness: 40-50µ,
- Width 20-27 cm,
- Height 30-35 cm,
- Perforated base of holes in the lower third.

Nursery protection: The nursery must be built under a 2 meter high shade to protect the plants from high insolation.

Choice and preparation of the substrate: The substrate must allow for the proper growth of the seedlings.

Health condition: In all cases, a nursery whose proportion of infested plant attacks must be refused for certification. For this purpose, the proportion of infested seedlings may not exceed 10 % in nurseries.

Minimum production: The nursery area must allow for the minimum production of 25,000 seedlings annually ready to be delivered to farmers;

Isolation: Isolation is not an issue for cocoa seedlings. However, seedlings of different varieties must be classified in separate blocks.

Variety homogeneity and seedlings sizing: Nursery beds shall have the same variety and size.

Health purification: Purification is mandatory in the nursery, from the beginning of planting to the harvest of seedlings. It consists in the elimination of feet with diseases, as soon as symptoms appear. The weeding must be complete and the plant removed from the nursery. The nursery must be well maintained throughout the growing period.

Crop condition: It must allow to ensure proper inspections. Poor crop condition of a nursery, including the presence of weeds, attacks of diseases or pests, can lead to its rejection or downgrading.

Maintenance and conservation of seedlings in the nursery

Conservation methods: Once treated with registered pesticides, seedlings are packaged in polyethylene bags or similar local materials with sizes that allow the seedlings to develop properly. The seedlings are usually maintained and stored in the nursery before being transplanted to the farm.

They must ensure viability and limit losses due to dehydration through direct sun exposure of the plant material or through excess humidity.

Shelf life in the nursery: The shelf life of seedlings in the nursery shall not exceed 7 months.

Inspection of nurseries

Prior arrangements: The inspection shall be carried out under supervision of the head of the seed establishment (nurseryman) or a representative. The seed inspector/controller shall receive satisfactory evidence of the category, variety and origin of the hybrid seed used. The nursery shall be accessible.

Number of inspections: Nurseries for the production of certified cocoa seedlings shall be inspected at least three times a year.

- The first inspection shall be done 2 months after the beans have been sown to observe if the quality of the site (cleanliness of the nursery) and the seedlings (number, health condition, etc.) comply with the rules. This inspection also aims to identify poorly-developed and/or infested seedlings;
- The second inspection is held within 4 months after sowing the beans to check the poor growth of the seedlings and the maintenance and phytosanitary operations of the nursery.
- The third inspection must be done before or while removing the seedlings. It enables proper timing of the removal and ensure the quality of seedlings. The seed inspector/controller shall also record the number of potentially marketable seedlings.

Crop grading: The compliance of crops with the standards under this regulation is assessed by counting, as specified in the inspection forms prepared by the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

The sampling method of the nursery in homogeneous counting units, for the characteristic to be considered, authorizes the grading or the partial or total downgrading of the nursery.

After each inspection, the seed inspector/controller shall complete the inspection form based on which him/her shall reject or approve the nursery, or recommend some corrective measures before making a final decision is made.

The inspection form shall be co-signed by the seed inspector/controller and the nurseryman or a representative. If the latter does not agree, it shall be noted. The total or partial refusal of a nursery is recorded on the inspection form and notified to the nurseryman within 15 days of the inspection.

Certification standards

The plant material for certification shall meet the requirements of these technical regulations and the following standards:

Description	Certified seedlings
Rolled leaf seedlings (maximum)	5 %
Twisted seedlings (maximum)	1 %
Short stunted seedlings (maximum)	5%
Filamented seedlings (maximum)	5 %
Yellowish plants seedlings (maximum)	5 %
Diseases and pests :	
- Capsid attacks	0 %
- Spotted leaves	1 %
- Dead leaves	1 %

Marketing control

Locally produced or imported cocoa seedlings for sale shall be inspected and if necessary, samples shall be analysed at the National Laboratory for Analysis of Agricultural Inputs and Products or any other authorised seed laboratory by see inspectors/controllers to ensure that they comply with the standards and rules provided for by laws and regulations in Cameroon.

Cocoa seedling producing companies shall keep a seed transaction register in accordance with Article 17 of Decree No 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing.

2.4.11. Decision No. 01841/MINADER/SG/DRCQ/SDRSQV/SCOSP of 27 November 2017 on the registration of some vegetable crop species in the National Catalogue of Plant Species and Varieties.

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities, in its article 25;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control, certification and marketing, particularly Article 12, Paragraph 3 thereof;

Mindful of No. 2011/408 of 9 December 2011 to reshuffle the Government;

Mindful of Decree No. 2019/410 of 9 December 2011 to appoint a Prime Minister, Head of Government;

Mindful of No. 2011/410 of 9 December 2011 to reshuffle the Government;

Considering service needs,

HEREBY DECIDES AS FOLLOWS:

Article 1: The National Catalogue of Plant Species and Varieties shall include:

- | | | |
|---|---|---|
| <ul style="list-style-type: none">- Bush okra species
(<i>Corchorus olitorius</i>)<ul style="list-style-type: none">• CMR
425(UG)/RVI0
0001314 (UG)• CMR
422(IP2)/RVI0
0001051 (IP2)• CMR
418(Aziga)/RV
I00001117
(Aziga)• CMR
430(Bafia)/RVI
00001116
(Bafia)- Amaranthus
Species
(<i>Amaranthus cruentus</i>)<ul style="list-style-type: none">• AM-
NKGN(CMR3
78)/RVI00006• AC-
NL(CMR415)/
RVI00001164• Fotete- Okra Species
(<i>Abelmoschus esculentus</i>)<ul style="list-style-type: none">• PI
496946/RVI00
001416• AC-
NL(CMR415)/
RVI00001164 | <ul style="list-style-type: none">- Tomato Species
(<i>Solanum lycopersicum</i>)<ul style="list-style-type: none">• AVTO9601/CL
N142A• AVTO9604/CL
N1464A• AVTO9605/CL
N1464B• Carioca• F1 Calinago• F1 Caracoli• F1 Carmina• F1 Mongal• F1 Nadira• F1 Ninja• F1 Savana• F1 Tempo• F1 Soumo• F1 Titao• F1 Copernic• Jaguar F1• F1 Kiara• Lindo F1• F1 Rodeo 14• Panther 17• Long courier
F1• Rio Grande F1• Rio Grande F1• Roma Savana
VF• Rossol VNF1• Roma vf• Troopimech• Topsin F1• BuffaloNadira | <ul style="list-style-type: none">F1<ul style="list-style-type: none">• Lindo F1• Thotgal F1• F1
Boomerang• F1 Kanon• F1 Kelvin• Prado F1• Thales F1• Tropicmech+- Lettuce (<i>Lactuca sativa</i>)<ul style="list-style-type: none">• Market
gardenig crop• Kagranner
Sommer• Blonde de
Paris• Gina• Kalla• Green Salad
Bolw• Eden• Trinity• Minetto• F1 Ulysse• Kalia• Trinity• Mindelo- Capsicum pepper
species (<i>Capsicum annuum</i>)<ul style="list-style-type: none">• Yolo Wonder• Marconi• F1 Tibesti• F1 Nobili• F1 Stella |
|---|---|---|

- F1 Barami
- F1 Arika
- Goliath F1
- Nikita F1
- Capela
- Capela
- California Wonder
- Granada F1
- F1 Magellan
- F1 Merlin
- F1 Simbad
- Gerontimo
- Sweet melon species (*Cucumis melo*)
 - F1 Perlita
 - F1 Galia
 - F1 Pineapple
 - F1 Charantais melon
 - Canary yellow
 - Cal Oro
 - F1 Caline
 - F1 Regal
 - F1 Anabel
 - F1 Oméga
 - Epsilon F1
 - Epsilon F1
- Pepper Species (*Capsicum ssp*)
 - F1 Anchard
 - F1 Sunny
 - Avenir F1
 - Pili Pili
 - Sudanese
 - Salmon
 - Thailand
 - Jalapeno
 - Cayenne
 - Sherif
 - Cheyenne F1
 - Yellow Seasonning
 - Yellow Jamaican
 - Bazuka
 - Avenir
 - Antillais 14.5
 - Burkina yellow
 - Safi Forever
 - F1 Toro
 - Fire Kiss F1
 - F1 Angel
 - Thailand
- Cheyenne F1
- Leek Species (*Allium porum*)
 - Large summer leek
 - Carantan
 - Big Long Tropic
- Onion Species (*Allium cepa*)
 - F1 Bambara
 - Buching Onion
 - Goudani
 - Red Creole
 - Spanish Yellow
 - Yellow Texas Grano
 - Violet de Galmi
 - Red Creole
 - Spanish Yellow
 - Yellow Texas Grano
 - Violet de Galmi
 - Red Creole
 - Spanish Yellow
 - Yellow Texas Grano
 - Violet de Galmi
 - Sirocco
 - Sabana
 - Spanish Red
 - Red Tana
 - Red Amposta
 - Rocabel
 - Safari Enhanced
 - Praia
 - Noflaye
 - Neve
 - King
 - Juliooo
 - Gao
 - F1 Solara
 - F1 Granex
 - F1 Goldor
 - F1 Grandioll
 - Goldor F1
 - Red Tama
 - Alize
- Idol
- Leader Cross F1
- Cabbage species (*Brassica oleracea*)
 - Black head
 - Copenhagen Market
 - F1 Bali
 - F1 Africana
 - F1 Celina
 - F1 Guinea cross
 - F1 Guinea
 - F1 Green Starter
 - F1 Tara
 - F1 Alta
 - F1 Fabula
 - F1 Red Ball F1 Red Bali
 - F1 Rustica 2000
 - F1 Sahel
 - F1 Santa
 - F Tropica Cross
 - F1 KK cross
 - F1 Quick Start
 - F1 Globe Master
 - F1 Green Starter
 - F1 Lola
 - F1 Altea
 - F1 Isabela
 - F1 Hoggar
 - Tsoi Sim
 - White Pack Choi
 - Green Pack Choi
 - F1 Samourai
 - F1 Victory
 - Wong Bok
 - Michihili
 - Snowball
 - F1 Blanca
 - F1 Maya
 - F1 Mount Pearl
 - Milor F1
 - Malouna F1

- Tropica King F1
 - Super Comet F1
 - Minotaur F1
 - Sanel F1
 - Leader Cross F1
 - Attila F1
 - Celery species (*Apium graveolens*)
 - Tall Utah
 - Pascal
 - Elne
 - Grosse Pommant Seule
 - Green Giant
 - Courgette species (*Cucurbita pepo L.*)
 - Luna F1
 - Samira+F1
 - Sana F1
 - Rosina +F1
 - Medina +F1
 - Rossina F1
 -
 - F1 Talena
 - F1 Luxor
 - F1 Japan Cross
 - F1 Ramses
 - Bahia
 - F1 Amazonia
 - Naw Kuroda
 - Nantaise Tim Tom
 - Touchon
 - Colmar
 - Shakira F1
 - Pamela F1
 - Pamela
 - Madona
 - Green beans
 - Long leader
 - Bravo
 - Green Giant
 - Alize
 - Cora
 - Beet Species
 - Crimsom Globe
 - F1 Carmin
 - Egyptian Flat
 - Detroit Short
-
- Top
 - Aubergine species (*Solanum aethiopicum*)
 - Soxna
 - N'galam
 - African Beauty F1
 - Gboma Kombara
 - F1 Djamba
 - Kotobi
 - Meketan
 - Bello
 - Aliona F1
 - European Aubergine species (*Solanum melongena*)
 - F1 Obala
 - Black beauty
 - Kalenda F1
 - Melina F1
 - Purple Tiger F1
 - Watermelon species
 - Viking F1
 - Sugar Dragon +F1
 - Logone+F1
 - Koloss F1
 - Logone F1
 - Cucumber (*Cucumis ssp*)
 - Murano F1
 - Gherkin Pico
 - Magano F1
 - Alba F1
 - Turnip species
 - Maximus

Article 2: The aforementioned species and varieties are registered in the National catalogue of Plant Species and Varieties for 5 (five) years, renewable.

Article 3: Seed producers shall provide the Director of Regulations, Quality Control and Certification of Agricultural Inputs and Products with a sample of the relevant species/variety for conservation in the cold room

Article 4: In collaboration with relevant structures and organizations, the Director of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall prepare, edit, and print the National Catalogue of Plant Species and Varieties for each species or group of species of plant varieties listed in article 1.

Article 5: This decision shall be registered and published according to the procedure of urgency in English and French.

Yaounde, 27 November 2017

The Minister of Agriculture and Rural Development

Henri EYEBE AYISSI

2.4.12. Decision No. 00655/MNADER/SG/DRCQ/SDRSQV of 1 December 2020 to lay down rules for the production and certification of fresh fruit and vegetables for export.

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No. 2005/0771/PM of 6 April 2005 to lay down the conditions for plant quarantine operations;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2018/190 of March 2, 2018 supplementing certain provisions of Decree No. 2011/408 of 9 December 2011 to organise the Government;

Mindful of Decree No. 2018/191 of 2 March 2018 to reorganise the government;

Mindful of Decision No. 01465/MINADER/CAB of 4 October 2017 on the organisation of regional phytosanitary controls;

Considering the recommendations of Report No. ARES/3061360 of 19 June 2017 of the European Union Commission on the audit of the national control of Cameroon plants and plant products exported to the European Union;

Considering service needs,

HEREBY DECIDES AS FOLLOWS:

Article 1: This Decision lays down the conditions for the production and certification of fresh fruit and vegetables for export.

Article 2: (1) The following crops are subject to this Decision:

- | | |
|--|---|
| - Mango (<i>Mangifera indica</i>) ; | - Passion fruit (<i>Passiflora edulis</i>) |
| - Soursop (<i>Annona muricata</i>); | - Capsicum pepper species (<i>Capsicum annuum</i>); |
| - Citrus fruits (<i>Citrus spp</i>) ; | - Aubergine (<i>Solanum melongena</i>) ; |
| - Chilli (<i>Capsicum frutescens</i>); | - Tomato (<i>Solanum lycopersicum</i>); |
| - Pineapple (<i>Ananas comosus</i>) ; | - Amaranth (<i>Amaranthus spp</i>); |
| - European Black nightshade (<i>Solanum scabrum</i>) ; | - Cassava leaves (<i>Manihot esculenta</i>); |
| - Okok (<i>Gnetum africanum</i>); | - Cassimanga (<i>Spondias dulcis</i>); |
| - Safou (<i>Dacryodes edulis</i>) | - Avocado (<i>Persea americana</i>). |

(2) The export of fresh fruit and vegetables, referred to in paragraph 1 above, is prohibited without a phytosanitary certificate, including those transported in hand bags.

(3) The export of fresh potatoes (*Solanum tubersum*) to the European Union (EU) is prohibited.

(4) The import of fresh potatoes (*Solanum tubersum*), except seeds, from the European Union (EU) is prohibited.

Article 3: (1) Any individual or legal entity willing to export the products referred to in Article 2 above, must be registered in the database of fresh fruits and vegetables exporters. Registration shall be done through the submission of a file to the Ministry in charge of Agriculture and Rural Development.

(2) The file, referred to in paragraph 1 above, shall comprise a stamped application for registration in the database of fresh fruits and vegetables exporters, stating the exact address of the exporter, crops (species) to be exported, as well as substitutes and facilities for the operations. The application shall comprise:

- a copy of the National Identity Card of the head (s) of the company;
- a certified copy of the certificate of registration in the database of exporters of the Ministry in charge of Trade;
- a list of production sites and their surface areas;
- a list of export markets targeted for the products;
- a location plan of packaging sites; and
- copies of contracts with producers, where necessary.

(3) Upon receipt of the application, a system audit shall be conducted within 20 working days.

(4) The audit shall provide evidence that the applicant has a good understanding of the target market requirements.

These include written policies and procedures on the system, notably:

- technical routes;
- product safety and hygiene;
- product handling hygiene;
- pest management system;
- traceability;
- technician skills (training, diploma, contract, etc.);
- Operations schedules (sowing, weeding, treatments, fertilisation, phytosanitary treatments, cleaning and disinfection of facilities and reusable equipment, etc.);
- storage of inputs and products and records of use;
- any other conditions deemed necessary to guarantee the quality of agricultural products.

Article 4: (1) All production and packaging sites for fruit and vegetables for export shall be registered.

(2) Production sites shall be registered at the beginning of each crop cycle to facilitate planning and certification.

Article 5: (1) A joint visit shall be undertaken by the Regional Department in charge of Quality Control and the Plant Quarantine Station to approve the production and packaging sites and assign them codes.

(2) The lists of codes of the production sites and packaging warehouses are kept respectively by the Regional Department in charge of Quality Control Department in charge of the relevant Region and the Plant Quarantine Station.

Article 6: The technical itineraries for the production and packaging of fresh fruits and vegetables for export are recorded in the technical production guides validated by the department in charge of regulations.

Article 7: The procedures for inspecting farms, packaging warehouses and exit points are outlined in the official technical regulations for phytosanitary control of various fruits and vegetables approved by the Phytosanitary Authority.

Article 8: In the case of infection or infestation, the phytosanitary officer in charge of inspecting farms, packaging warehouses or those working at the Phytosanitary Police Station, shall terminate the certification process of the relevant plot and shall draw up an inspection report stating the abnormalities observed and the measures to be taken.

Article 9: (1) Fruits and vegetables shall be sampled at least twice during the harvest period from the production and packaging sites and analysed in the laboratory to check their health condition.

(2) In case pesticides are used, samples of products shall be submitted for analysis of pesticide residues.

Article 10: (1) Agricultural Posts, Phytosanitary Brigades or competent Regional Departments of Quality Control shall carry out phytosanitary inspections in farms.

(2) Phytosanitary inspections in packaging warehouses shall be carried out by the Phytosanitary Post responsible for the shipment or by the Regional Department in charge of Quality Control, where necessary.

(3) Phytosanitary inspections at exit points shall be carried out by the Phytosanitary Post responsible for the shipment.

Article 11: The following approved forms shall be issued after successful inspections:

- the attestation of farm inspection, when the harvested product is of good quality;
- the pre-certification attestation, when the product inspected in the warehouse and the packaging meet the standards.
- the phytosanitary certificate, when traceability, phytosanitary status and additional declarations are respected.

Article 12: Inspections, site visits, sampling and laboratory analysis shall be borne by the user.

Article 13: In case of non-compliance with the phytosanitary certification procedure, the Director of Regulations, Quality Control and Certification of Agricultural Inputs and Products (DRCQ) may suspend exports from the production site for a defined period.

Article 14: The Director of Regulations, Quality Control and Certification of Agricultural Inputs and Products (DRCQ) and the Regional Delegates of MINADER shall be responsible, respectively, for the implementation of this decision.

Article 15: This decision shall enter into force from the date of signature, and shall be registered and published wherever necessary.

Yaoundé, 1 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

2.4.13. Decision No. 00650/MINADER/SG/DRCQ/SDRSQV of 1 December 2020 to approve and make enforceable the protocols of Distinctness, Uniformity and Stability (DUS) and Agronomic and Technological Value (VAT) tests for onion (Allium cepa)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of 4 May 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the conditions for seed production, quality control and marketing;

Mindful of Order No. 390/MINADER/MINCOMMERCE of 7 August 2006 laying down specifications for the production, import and marketing of seeds and seedlings;

Mindful of Order No. 00073/MINADER/SG/DRCQ/SDRSQV of 22 April 2019 laying down the procedures for the registration of species and varieties;

Considering the recommendations of the National Council for Seed and Plant Varieties during the session of 23 September 2020 (8th session),

HEREBY DECIDES AS FOLLOWS:

Article 1: The procedures for the Distinctness, Uniformity and Stability (DUS) and Agronomic and Technological Value (ATV) tests for onion (*Allium cepa*), as well as their technical questionnaire attached in Appendices I, II and III shall be approved and made enforceable from the date of signature of this Decision.

Article 2: (1) Any new onion variety eligible for registration in the National Catalogue shall be subject to Distinctness, Stability and Uniformity (DUS) and Agronomic and Technological Value (VAT) tests.

(2) Applications for registration of onion varieties shall be sent to the Ministry in charge of Agriculture as well as the questionnaire in ¹Appendix III attached.

(3) Breeders and importers of seeds shall register onion varieties for inspection and certification, prior to marketing on the national territory.

(4) Any modification on the registration application shall be addressed to the Ministry in charge of Agriculture, no later than one month after setting up the test protocol.

Article 3: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall be responsible for the implementation of this decision.

Article 4: This decision shall be registered and published in English and French, wherever necessary.

Yaounde, 1 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

¹ These appendices are not available in this edition.

2.4.14. Decision No. 00662/MINADER/SG/DRCQ/SDRSQV of 1 December 2020 to approve and make enforceable the official technical regulations for the production, quality control and certification of pineapple seeds (*Ananas comosus L Merr*)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of May 4, 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Considering the recommendations of the National Council for Seed and Plant Varieties during the session of 25 September 2020 (9th session),

HEREBY DECIDES AS FOLLOWS:

Article 1: Official Technical Regulations for the production, quality control and certification of seeds and seedlings of pineapples (*Ananas comosus L Merr*) attached in Appendices I, II and III shall be approved and made enforceable from the date of signature of this decision.

Article 2: (1) At the beginning of each farming season, crop declarations of pineapple seed and seedling production made on relevant forms, shall be sent to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

(2) Seed-producing companies and nursery growers shall file the declarations on seeds and seedlings, subject to quality control and certification with a view to their marketing on the national territory.

(3) The Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture shall be notified of any modification on the crop declaration v one month.

Article 3: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall be responsible for the implementation of this decision which shall be registered and published in English and French wherever necessary.

Yaounde, 1 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

2.4.15. Decision No. 00657/MINADER/SG/DRCQ/SDRSQV of 1 December 2020 to approve and make enforceable the official technical regulations for the production, quality control and certification of grafted seeds and seedlings of avocado (*Persea americana Mill*)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of May 4, 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Considering the recommendations of the National Council for Seed and Plant Varieties at the session of September 25, 2020 (9th session),

HEREBY DECIDES AS FOLLOWS:

Article 1: Official Technical Regulations for the production, quality control and certification of grafted seeds and seedlings of avocado (*Persea americana Mill*) attached in Appendices I, and II shall be approved and made enforceable from the date of signature of this decision.

Article 2: (1) At the beginning of each farming season, crop declarations of grafted avocado seed and seedling production made on relevant forms, shall be sent to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

(2) Seed producing companies and nursery producers of seeds and seedlings to be controlled, certified, and marketed nationwide, shall prepare these declarations.

(3) The Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture shall be notified of any modification on the crop declaration within maximum period of one month.

Article 3 : The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall be responsible for the implementation of this decision which shall be registered and published in English and French wherever necessary. /-

Yaounde, 1 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

2.4.16. Decision No. 00650/MINADER/SG/DRCQ/SDRSQV of 1 December 2020 to approve and make enforceable the protocols of Distinctness, Uniformity and Stability (DUS) and Agronomic and Technological Value (VAT) tests for maize (*Zea mays* L.)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of May 4, 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Mindful of Order No. 390/MINADER/MINCOMMERCE of 7 August 2006 laying down specifications for the production, import and marketing of seeds and seedlings;

Mindful of Order No. 00073/MINADER/SG/DRCQ/SDRSQV of 22 April 2019 laying down the procedures for the registration of species and varieties;

Considering the recommendations of the National Council for Seed and Plant Varieties at the session of September 23, 2020 (8th session),

HEREBY DECIDES AS FOLLOWS:

Article 1: The procedures for Distinctness, Uniformity and Stability (DUS) and Agronomic and Technological Value (VAT) tests for maize (*Zea mays* L.), as well as their technical questionnaire attached in Appendices I, II and III shall be approved and made enforceable from the date of signature of this Order.

Article 2: (1) Any new maize variety eligible for registration in the National Catalogue is subject to Distinctness, Stability and Uniformity (DUS) and Agronomic and Technological Value (VAT) tests.

(2) Applications for registration of onion varieties shall be sent to the Ministry in charge of Agriculture with the questionnaire in Annex III attached.

(3) Breeding companies and importers of seeds to be controlled, certified, and marketed nationwide shall register onion varieties.

(4) Any modification on the application for registration shall be addressed to the Ministry in charge of Agriculture, no later than one month after setting up the test protocol.

Article 3: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall be responsible for the implementation of this decision.

Article 4: This decision shall be registered and published in English and French wherever necessary.

Yaounde, 1 December 2020

The Minister of Agriculture and Rural Development
Gabriel MBAIROBE

2.4.17. Decision No. 00659/MINADER/SG/DRCQ/SDRSQV of 1 December 2020 to approve and make enforceable the official technical regulations for the production, quality control and certification of grafted seeds and seedlings of cashew trees (*Anacardium occidentale* L.).

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of May 4, 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing, particularly Article 12, Paragraph 3 thereof;

Considering the recommendations of the National Council for Seed and Plant Varieties at the session of 23 September 2020 (9th session),

HEREBY DECIDES AS FOLLOWS:

Article 1: Official Technical Regulations for the production, quality control and certification of seeds and seedlings of cashew trees (*Anacardium occidentale* L.) attached in Appendices I, II and III shall be approved and made enforceable from the date of signature of this decision.

Article 2: (1) At the beginning of each farming season, crop declarations of cashew tree seed and seedling production made on relevant forms, shall be sent to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture.

(2) Seed producing companies and nursery producers of cashew seeds and seedlings to be controlled, certified, and marketed nationwide, shall prepare these declarations.

(3) The Department in charge of Regulations, Quality Control and Certification of Seeds and Seedling of the Ministry in charge of Agriculture shall be notified of any modification on the crop declaration, within maximum period of one month.

Article 3: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall be responsible for the implementation of this decision, which shall be registered and published in English and French wherever necessary. /-

Yaounde, 1 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

2.4.18. Decision No. 00655/MINADER/SG/DRCQ/SDRSQV of 1 December 2020 to approve and make enforceable the official technical regulations for the production, quality control and certification of grafted seeds and seedlings of mango trees (*Mangifera indica* L).

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of May 4, 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Considering the recommendations of the National Council for Seed and Plant Varieties at the session of 23 September, 2020 (9th session),

HEREBY DECIDES AS FOLLOWS:

Article 1: Official Technical Regulations for the production, quality control and certification of seeds and seedlings of mango trees (*Mangifera indica* L) attached in Appendices I, II and III shall be approved and made enforceable from the date of signature of this decision.

Article 2: (1) At the beginning of each farming season, crop declarations of mango seed and seedling production made on relevant forms, shall be sent to the Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture.

(2) Seed producing companies and nursery producers of mango seeds and seedlings to be controlled, certified, and marketed nationwide, shall prepare these declarations.

(3) The Department in charge of Regulations, Quality Control and Certification of Seeds and Seedlings of the Ministry in charge of Agriculture shall be notified of any modification on the crop declaration, within maximum period of one month.

Article 3: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall be responsible for the implementation this decision which shall be registered and published in English and French wherever necessary. /-

Yaounde, 1 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

2.4.19. Decision No. 00652/MINADER/SG/DRCQ/SDRSQV of 1 December 2020 to approve and make enforceable the protocols of Distinctness, Uniformity and Stability (DUS) and Agronomic and Technological Value (VAT) tests for cowpeas (*Vigna unguiculata*.)

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2001/014 of 23 July 2001 relating to seed activities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2005/153 of May 4, 2005 on the creation, organisation and functioning of the National Council for Seed and Plant Varieties;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of 2019/002 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2005/3091/PM of 29 August 2005 to lay down the modalities for seed production, quality control and marketing;

Mindful of Joint Order No. 380/MINADER/MINCOMMERCE of 7 August 2006 laying down specifications for the production, import and marketing of seeds and seedlings;

Mindful of Order No. 00073/MINADER/SG/DRCQ/SDRSQV of 22 April 2019 laying down the procedures for the registration of species and varieties;

Considering the recommendations of the National Council for Seed and Plant Varieties at the session of 23 September, 2020 (8th session),

HEREBY DECIDES AS FOLLOWS:

Article 1: The procedures for Distinctness, Uniformity and Stability (DUS) and Agronomic and Technological Value (VAT) tests for cowpea (*Vigna unguiculata* L.), as well as their technical questionnaire attached in Appendices I, II and III shall be approved and made enforceable from the date of signature of this Order.

Article 2: (1) Any new cowpea variety eligible for registration in the National Catalogue shall be subject to Distinctness, Stability and Uniformity (DUS) and Agronomic and Technological Value (VAT) tests.

(2) Applications for registration of cowpea varieties shall be sent to the Ministry in charge of Agriculture with the questionnaire in Annex III attached.

(3) Breeding companies and importers of seeds to be controlled, certified, and marketed nationwide shall register onion varieties.

(4) Any modification on the application for registration shall be addressed to the Ministry in charge of Agriculture within a maximum period of one month after setting up the test protocol.

Article 3: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products shall be responsible for the implementation of this decision.

Article 4: This decision shall be registered and published in English and French wherever necessary.

Yaounde, 1 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

3.PART THREE: LEGAL FRAMEWORK FOR FERTILISERS

3.1. LAW

3.1.1. Law n° 2003 / 007 of 10 July 2003 to regulate activities of the fertilizer sub sector in Cameroon

The National Assembly deliberated and adopted,
The President of the Republic enacts the law set out below:

PART I GENERAL PROVISIONS

Section 1: (1) This law shall govern the fertilizer sub sector in Cameroon. In that regard, it shall aim at:

- increased farm productivity and agricultural production;
- sustainable management of natural resources.

(2) Its scope of application shall cover the following activities: fertilizer production, importation, packaging, distribution and use.

(3) This law shall be applicable to all forms of fertilizers, particularly mineral fertilizers, organic fertilizers and biological fertilizers.

(4) The activities of the fertilizer sub sector defined in section (2) above may be carried out singly or jointly with other activities.

Section 2: For the purpose of this law and subsequent enactments, the following definitions shall apply:

Competent Authority: The Minister in charge of Agriculture.

Fertilizer: any substance or matter containing one or more nutritive elements for plants which are recognized and used as such with a view to enhancing plant growth and yield.

Label: refers to any written, printed or graphic inscription on the immediate packaging or in a fertilizer specific message.

Registration: enrolment of an individual or corporate entity exercising an activity in the fertilizer sub sector in Cameroon.

Production: the manufacturing of fertilizers.

Packaging: mixing and bagging of fertilizers.

Distributor: any individual or corporate entity dealing in the wholesale or retail supply or marketing of fertilizers in Cameroon.

Fertilizer sub sector: a domain in the agricultural sector in which activities such as research, training and regulation of soil fertility and fertilization, production, importation, packaging, training and regulation of soil fertility and fertilization, production, importation, packaging, distribution and use of fertilizing substance are carried out and in which stakeholders contribute to increase soil productivity within the context of sustainable management.

Section 3: (1) The activities of the fertilizer sub sector governed by this law and stipulated in section 1 above shall be exercised under State supervision. In that regard, the Competent Administration shall define the accepted technical standard in the field and ensure fertilizer quality control.

(2) Fertilizer research activities shall remain subject to the laws and regulation in force.

PART II: EXERCISING ACTIVITIES IN THE FERTILIZER SUB SECTOR

CHAPTER I: CONDITION FOR FERTILIZER PRODUCTION, IMPORTATION, EXPORTATION, DISTRIBUTION AND USE

Section 4: Any individual or corporate entity shall be free to produce, import and distribute fertilizers throughout the national territory subject to the law and regulations in force.

Section 5: The conditions for producing, importing, exporting, packaging, storing and distributing fertilizers or any other related activity shall be fixed by joint order of the minister in charge of agriculture, the minister in charge of trade, the minister in charge of environment and forest and the minister in charge public health.

CHAPTER II: CONDITIONS FOR THE USE OF FERTILIZERS

Section 6: (1) The intensive use of fertilizers in a form shall be subject to prior assessment of the physical and chemical state of the soil.

(2) The modalities and content of such assessment shall be laid down by regulation.

Section 7: (1) Any individual or corporate entity, whether public or private, which owns a farm and intensively uses fertilizers shall be bound to regularly conduct an impact assessment of such fertilizers on the environment.

(2) The modalities of such impact assessment shall be laid down by regulations.

Section 8: Any individual or corporate entity, whether public or private, which uses fertilizer shall be bound to ensure that such products conform, in term of quantity and quality, to the standards stipulated by the Administration.

CHAPTER III: FERTILIZERS INSPECTION AND QUALITY CONTROL

Section 9: (1) Fertilizer quality control is hereby instituted. Such control shall entail the inspection of production plants, packaging sites and distribution warehouses for fertilizers as well as taking samples for laboratory analyses.

(2) Fertilizer quality control shall be ensured by sworn officials working in the government services of the competent Authority. Such employees shall have free access to fertilizer production, storage, packaging and distribution facilities.

(3) The procedures for controlling and taking and analysing samples shall be laid down by regulations.

Section 10: The conditions for fertilizers must meet the general standards defined by joint order of the Minister in charge of agriculture, the Minister in charge of trade, the Minister in charge of environment and forest and the Minister in charge of public health.

Section 11: The modalities for analysing samples of fertilizers taken for control purposes shall be laid down by regulations.

CHAPTER IV: INSPECTION AND CONTROL OF USE OF FERTILIZERS

Section 12: (1) A control of fertilizer-intensive farm is hereby instituted. The modalities for such control shall be laid down by regulations.

Section 13: The control of fertilizer use shall be conducted by sworn officials under conditions laid down in section 9 (2) above.

PART III: DEVELOPING THE FERTILIZER SUB SECTOR

Section 14: (1) Incentives may be granted as and when necessary, particularly with regard to financing, taxation, customs duties and the procurement of equipment, with a view to promoting private investment in the fertilizer sub sector.

(2) Indirect support to the development of the fertilizer sub sector may be provided by state with a view facilitating the training of staff in the field of fertilizers.

Section 15: For the purpose of promoting the development of fertilizer sub sector throughout the national territory, a special account is hereby created in accordance with the provisions of Article 39 and 41 of Ordinance No. 62/OF/4 of 7 February 1962 relating to the finance system of the state.

Section 16: (1) The Special Account provided for in section 15 above shall also be sourced from:

interest accruing from the trust fund of the fertilizer Sub sector Reform Programme (FSSRP); contributions from stakeholders in the sub sector as determined by joint order of the minister in charge of agriculture and the minister in charge of finance; contributions from international donors; any other contributions provided for by law; donations and legacies.

(2) A decree by the president of the republic shall define the terms and conditions for the Organization and functioning of the special trust fund provided for in Section 15 above.

PART IV: OFFENCES AND PENALTIES

Section 17: The following shall constitute violations of the provisions of this law and its instruments of implementation:

- the production, distribution and/or use of fertilizers that do not comply with regulations;
- the production, distribution and/or use of fertilizer containing noxious substances or harmful Properties, even when used in prescribed quantity, and are likely to affect plant growth, harm human and animal health. and damage the environment:
- the flouting of registration formalities and refusal to submit fertilizers or documents relating

thereto for quality control;

- refusal to submit to the control procedures governing fertilizer use.

Section 18: (1) Without prejudice to civil liability and notwithstanding certain administrative penalties provide for by law n° 90/3 of 10 august 1990 governing commercial activities in Cameroon what can be meted out by the ministry in charge of agriculture to persons carrying out the activities governed by this law, any person found guilty of committing the offences set forth in section 17 above shall be punished with imprisonment for from 1 (one) to 5(five) years or with fine of from 50 000 (fifty thousand) to 100 000 000 (one hundred million) CFA francs or with both such imprisonment and fine.

(2) In case of repeated offence, the penalties set out in subsection 1 above shall be doubled.

Section 19: The penalties provided under this law shall be applicable without prejudice to the provisions of the penal Code.

Section 20: In addition to the penalties set out in section 18 above, the fertilizers in question may be:

- returned to the country of origin, the expense of the importer or distributor in case of imported fertilizers;
- seized and destroyed where they are considered hazardous, using environment-friendly techniques, at the expense of the offender;
- declassified.

Section 21: (1) Without prejudice to the prerogatives of the Legal Department and Judicial Police Officers with general jurisdiction, sworn officials of the competent government services shall be responsible for carrying out investigation, establishing facts and instituting criminal proceedings against violators of the provisions of this law.

(2) In the performance of their duties, sworn officials shall be bound to hold professional identity cards.

Section 22: Any other offences not provided for by this law and its instruments of implementation shall fall within the purview of ordinary law.

Section 23: (1) Any established offence shall require a duly drawn up report. The investigation and establishment of offences shall be done by 2(two) officials who co-sign the report. The said report shall be authentic until challenged.

(2) The report thus establishing shall be counter-signed by the accused. In case of refusal by the latter, the report shall make mention thereof.

Section 24: (1) The report establishing the offence shall be notified to the offender by any written means. The offender shall have 20 (twenty) days, with effect from the date of notification, to dispute it. Thereafter, any dispute shall be inadmissible.

(2) The dispute shall be referred to the government services in charge of fertilizers which shall decide thereon within 15 (fifteen) days of reception of such claim. Failing this, the claim shall be deemed to have received a favourable reply and the report establishing the offence shall become statute barred.

(3) Where the government services in charge of fertilizers find the claim founded, such claim shall be upheld and the report establishing the offence shelved. Conversely, the government services in charge of fertilizers shall initiate legal proceeding in accordance with the laws in force.

Section 25: (1) Any violations of this law and its instruments of implementation may give rise to a plea-bargaining between the services of fertilizers and the offender at the behest of the latter.

(2) The said plea-bargaining shall be registered at the expense of the offender and shall put an end to the public prosecution where a plea-bargaining is reached prior to the substantive ruling passed by the competent court.

(3) The fines arising from the plea-bargaining provided for above shall be consistent with the same recovery regulations as are applicable to fines inflicted by ordinary law courts.

PART V: MISCELLANEOUS AND FINAL PROVISIONS

Section 26: The various stakeholders in the fertilizer sub sector shall have a period of 1 (one) year to comply with the provisions of this law with effect from its date of enactment.

Section 27: All previous provisions repugnant hereto are hereby repealed.

Section 28: This law shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French.

Yaounde, 10 july 2003

President of the Republic.

Paul BIYA

3.2. ORDERS

3.2.1. Joint Order No. 00115/MINADER/MINCOMMERCE/MINEPDED/MINSANTE of 29 August 2019 to lay down conditions for fertiliser marketing in Cameroon

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

THE MINISTER OF TRADE,

THE MINISTER OF ENVIRONMENT, PROTECTION OF NATURE AND SUSTAINABLE DEVELOPMENT, AND

THE MINISTER OF PUBLIC HEALTH,

Mindful of the Constitution;

Mindful of Law No. 64-LF-23 of 13 November 1964 on the protection of public health;

Mindful of Law No. 96/12 of 5 August 1996 to lay down the legal framework relating to environmental management;

Mindful of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon;

Mindful of Law No. 2004/002 of 21 April 2004 governing legal metrology in Cameroon;

Mindful of the framework law No. 2011/012 of 6 May 2011 on consumer protection in Cameroon;

Mindful of Law No. 2015/018 of 21 December 2015 governing commercial activities in Cameroon;

Mindful of Law No. 2016/004 of 18 April 2016 governing foreign trade in Cameroon;

Mindful of Law No. 2018/020 of 11 December 2018 - Framework Law on Food Safety;

Mindful of Decree No. 92/089 of 4 May 1992 to specify the duties of the Prime Minister as amended and supplemented by Decree 95/145- bis of 4 August 1995;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2012/431 of 1 October 2012 to organise the Ministry of Environment, Protection of Nature and Sustainable Development

Mindful of Decree No. 2012/513 of 12 November 2012 to organise the Ministry of Trade;

Mindful of Decree No. 2013/093 of 3 April 2013 to organise the Ministry of Public Health;

Mindful of Decree No. 2019/02 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2011/2584/PM of 23 August 2011 to lay down conditions for the protection of soils and the sub-soil;

HEREBY ORDER AS FOLLOWS:

CHAPTER I: GENERAL PROVISIONS

Article 1: (1) This joint order lays down the conditions for the marketing of fertilisers in Cameroon.

(2) It is issued pursuant to Article 10 of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon.

Article 2: For the purpose of this joint order, the following definitions shall apply:

Soil amendment: any substance used to enhance the physico-chemical and/or biological properties of the soil in order to improve its performance.

Biostimulants: any substance or microorganism applied to plants to enhance nutrition efficiency, abiotic stress tolerance, crop quality traits, and/or the availability of nutrients in the soil or rhizosphere, regardless of its nutrients content.

Marketing: The act of placing a product on the market or fixing the conditions and channels of distribution for its sale.

Retail distributor: any natural person or legal entity, according to professional standards, who purchases fertilisers from wholesale distributors and resells to farmers.

Wholesaler: any natural person or legal entity, according to professional standards, who purchases fertilisers from a producer or through importation, and resells to retailers in bulk.

Packaging: mixing and packing fertilisers.

Deficiency: the amount of nutrients revealed by analysis to be less than the amount declared, which may result from nutrient deficiency or lack of homogeneity.

Packaging material: any object, irrespective of the type of material, used to pack and protect goods, to enable their handling and transport from producers to consumers.

Fertiliser: any substance or material containing one or more plant nutrients recognised and used as such to boost plant growth and production. Mineral fertilisers, organic fertilisers, organo-mineral fertilisers, biostimulants, soil amendments and all fertilisers are considered as fertilisers and referred to as such.

Customised fertiliser: any fertiliser prepared based on the customer's formula.

Hazardous fertilisers: any fertiliser that could cause an explosion or other damages if mishandled during transport, storage or use.

Mineral fertilisers: mineral fertilisers produced by the chemical industry or derived from phosphate and potash natural deposits.

Organic fertilisers: animal or plant fertilisers.

Organic-mineral fertiliser: fertiliser obtained from the mixture of mineral and organic fertilisers.

Registration: registration of a natural person or legal entity carrying out an activity in the fertiliser sub-sector in Cameroon with the Ministry in charge of Agriculture.

Label: Indication of any content in written, printed or graphic form on the immediate packaging.

Fertilising agent: a product used to ensure plant nutrition or to improve the physical, chemical and biological properties of soils.

Formulation: mixture of several nutrients making up a fertiliser.

Production: manufacture of fertilisers.

Promoter: any natural person or legal entity who has received an Authorisation to market a fertilising agent.

Fertiliser sub-sector: A branch of Agriculture, which deals with research, supervision and regulation in terms of soil fertility and fertilisation, as well as the import, export, packaging, distribution and use of fertilisers. It also includes stakeholders, who contribute to improve soil productivity within the framework of sustainable management.

Article 3: Fertilisers marketed in Cameroon shall be subject to the legislative and regulatory provisions governing commercial activity, environmental protection, public health, mines and industries.

CHAPTER II: EVALUATION COMMITTEE AND AUTHORISATION PROTOCOL FOR THE MARKETING OF FERTILISERS

SECTION I: FERTILISER EVALUATION COMMITTEE

Article 4: A Fertiliser Evaluation Committee, hereinafter referred to as the Committee, is hereby established within the Ministry in charge of Agriculture.

Article 5: The Committee shall:

- rule on application files for marketing authorisations and those pertaining to their renewal, suspension and withdrawal;
- give advice on the restriction or prohibition on the use of a fertiliser;
- validate experimentation protocols;
- give technical advice on any fertiliser file that is entrusted to it.

Article 6: (1) Chaired by the Minister in charge of Agriculture or a representative, the Committee shall include:

- two (02) representatives of the Ministry in charge of Agriculture;
- one (01) representative of the Ministry in charge of Trade;
- one (01) representative of the Ministry in charge of Environment;
- one (01) representative of the Ministry of public health;
- one (01) representative of the Ministry in charge of Finance;
- one (01) representative of the Ministry in charge of Water;
- one (01) representative of the Ministry in charge of Livestock;
- one (01) representative of Cameroon Standards and Quality Agency;
- one (01) representative of the Institute of Agricultural Research for Development;
- one (01) representative of a fertiliser analysis laboratory authorised by the Ministry in charge of Agriculture.

(2) Members shall be appointed by their respective Administrations or structures.

(3) The composition of the Committee shall be established by decision of the Minister.

(4) The Department in charge of Regulations and Quality Control of Fertilisers shall be responsible for the Committee's secretariat.

(5) The Committee's operating expenditure shall be covered by the budget of the Ministry in charge of Agriculture.

Article 7: The Committee's secretariat shall:

- ensure the logistical and technical organisation of meetings;
- prepare the Committee's working documents;
- report on items on the agenda during sessions;
- monitor the implementation of activities;
- identify barriers to the successful implementation of selected activities; propose technical and financial facilitation measures necessary for the implementation of activities;
- make any useful proposal to the Committee;
- ensure the implementation of the Committee's decisions and recommendations;
- carry out any other mission entrusted to it by the Committee during its sessions.

Article 8: (1) The Committee shall meet twice (2) a year, in an ordinary session at the request of its Chairperson.

However, the Committee may meet in an extraordinary session at the request of a promoter, who shall cover the costs of the session.

If necessary, the Chairperson may convene an extraordinary session of the Committee.

Article 9: (1) Written notifications shall be sent to members, fifteen (15) days before the meeting, indicating the agenda, date and venue of the meeting.

(2) In case of emergency, this period may be reduced to seven (7) days.

Article 10: The Chairperson of the Committee may invite any person with expertise in an item on the agenda to take part in the Committee's deliberations in an advisory capacity.

Article 11: (1) The Committee may validly sit only in the presence of 2/3 of its members.

(2) The Committee shall take decisions by a simple majority of members present. In the event of equal votes, the Chairperson shall have the casting vote.

(3) The Committee's decisions shall be recorded in the minutes, which shall be approved in advance by Committee members and co-signed by the Chairperson and the Secretary of the meeting. The minutes shall mention, in addition to the names of members present, persons invited in an advisory capacity.

Article 12: The Committee shall examine the files referred to in Article 6 above and take the following measures:

- A Marketing Authorisation of the Product for specific uses covering a renewable period of (5) years;
- Provisional Marketing Authorisations for a period of two (2) years renewable once, as the case might be;
- Modification or extended use of the product;
- Renewal of a marketing authorisation or provisional marketing authorisation;
- Transfer of a Marketing Authorisation;
- In-depth study of the fertiliser for a period of time as the case might be
- Restriction on the use;
- Refusal of a Marketing Authorisation;
- Suspension of a marketing authorisation or provisional marketing authorisation;
- Withdrawal of a marketing authorisation or provisional marketing authorisation.

Article 13: 1) The promoter has the right to appeal the Committee's decisions and may therefore request that the case be re-examined. In this case, the promoter shall send a request for this purpose to the Minister in charge of Agriculture within sixty (60) days of the notification of results of the session, to avoid foreclosure penalty.

(2) During the next ordinary session or an extraordinary session, the case shall be re-examined based on the provisions of Article 9.

SECTION II: PROCEDURES AND CRITERIA FOR THE EVALUATION OF FERTILISERS

Article 14: (1) Fertilisers shall be subject to Marketing Authorisation prior to their import, production and distribution in Cameroon.

(2) The procedure to evaluate fertilisers involves operations to ensure that any fertiliser for use in Cameroon shall:

- increase the yield of target crops;
- improve physico-chemical and/or microbiological properties;
- provide economic added value to users;
- preserve animal, human and environmental health.

Article 15: (1) The procedure to evaluate fertilisers shall include the following steps;

- physico-chemical and/or microbiological analyses by the National Analysis Laboratory of the Ministry in charge of Agriculture or a laboratory approved by the Ministry;
- agronomic efficiency tests conducted by the Department in charge of Regulations and Quality Control of Fertilisers, with the support of an officially recognised research institute;
- the examination of the complete scientific data by the Fertiliser Evaluation Committee, showing that the product is effective for its intended use and does not present any risk on human, animal, or environmental health, under the recommended conditions of use.

(2) However, some fertilisers may be exempted from agronomic efficiency tests. A decision by the Minister in charge of Agriculture shall determine the list of such fertilisers.

(3) the promoter shall bear the costs incurred for operations referred to in paragraph 1 above.

Article 16: (1) The examination of the scientific data of a fertiliser referred to in Article 16 paragraph 1, shall be subject to the production of a file in three (3) copies by the promoter comprising:

- a stamped application for fertiliser examination, addressed to the Minister in charge of Agriculture;
- a technical file (composition of the product, forms and solubilities of nutrients, instructions for use, results of analysis, safety data form);
- a toxicological/eco-toxicological file;
- an original label design or its model;
- a description of the packaging;
- an agronomic efficiency test report;
- a certificate of conformity issued by the Director in charge of fertiliser regulations and control;
- a certificate of origin issued by the chamber of commerce of the country of origin of the product or by any other competent body;
- a tax clearance certificate and the taxpayer's card;
- the authorisation to carry out a commercial activity in Cameroon issued by the Minister in charge of Trade, where appropriate;
- a test report stating "Slow-release fertiliser" or "Stabilised fertiliser", where appropriate;
- proof of payment of relevant fees in accordance with the regulations.

The Secretariat may request additional documents or information depending on the specific nature of the fertiliser.

Article 17: Fertilisers are evaluated based on the following criteria:

- its efficiency on crops;
- the Fertiliser does not have a significant direct or indirect negative impact on human, animal, or environmental health under the conditions of use;
- the toxicological and environmental elements can be determined;
- the nature and quantity of fertilising products, impurities and other toxicologically and eco-toxicologically relevant components can be determined using proven methods, where appropriate;
- contaminants resulting from the authorised uses and the toxicological and environmental characteristics can be determined using proven methods;
- the physico-chemical and/or biological properties are considered suitable;
- the maximum residue levels of contaminants are known, as determined by the Ministry in charge of Agriculture or any other relevant international organisation.

SECTION III: ISSUANCE OF FERTILISER MARKETING AUTHORISATIONS

Article 18: (1) In case approval by the Committee, the Minister in charge of Agriculture shall issue a decision for Marketing Authorisation, valid for five (5) years renewable, or a Provisional Marketing Authorisation, valid for (2) two years, renewable once.

(2) The Marketing Authorisation shall grant import or re-export exclusivity to the promoter of the product or to a local representative.

(3) However, a compliance analysis shall be carried out systematically for each imported or locally manufactured batch at the promoter's expense.

SECTION IV: RENEWAL OF MARKETING AUTHORISATIONS

Article 19: (1) Any promoter with a Marketing Authorisation may apply for renewal.

(2) The application for renewal shall be sent to the Committee at least six (6) months before the expiry of the Marketing Authorisation and shall contain the following documents and relevant information:

- data on human toxicity;
- available environmental data;
- data on maximum levels of contaminants;
- the follow-up report on the use and after-effects of the fertiliser, four (4) years after its introduction on the market.

SECTION V: AMENDMENT OR EXTENSION OF MARKETING AUTHORISATIONS

Article 20: (1) The Marketing Authorisation of a fertiliser shall be amended in case of change in the method of use, the formulation or the target crop.

(2) In this case, the fertiliser shall be subject to the tests provided for in Article 16 above.

SECTION VI: WITHDRAWAL OF MARKETING AUTHORISATIONS

Article 21: (1) A decision to withdraw a fertiliser Marketing Authorisation or Provisional Marketing Authorisation shall be based on scientific evidence or the precautionary principle when the product:

- is no longer effective for the intended use;
- has adverse effects on plants or plant products under the recommended conditions;
- has adverse effects on human, animal, or environmental health under normal conditions of use;
- has incomplete or misleading information provided during testing;
- is withdrawn at the request of the promoter holding the Marketing Authorisation.

(2) The withdrawal of the Marketing Authorisation or the Provisional Marketing Authorisation shall be established by decision of the Minister in charge of Agriculture.

SECTION VII: SUSPENSION OF MARKETING AUTHORISATIONS

Article 22: (1) A fertiliser Marketing Authorisation, or Provisional Marketing Authorisation may be suspended in the event of violation of the legislative and regulatory provisions in force by the promoter of the said fertiliser.

(2) The suspension of the Marketing Authorisation or the Provisional Marketing Authorisation shall be established by decision of the Minister in charge of Agriculture.

SECTION VIII: TRANSFER OF MARKETING AUTHORISATIONS

Article 23: (1) At the request of the promoter, the Marketing Authorisation may be transferred to another promoter.

For this purpose, he/she must provide the following:

- an application stamped at the current rate;
- a copy of the Marketing Authorisation decision;
- a marketing authorisation transfer agreement, jointly signed by the two parties;
- a tax clearance certificate;
- a notarial deed on the transfer of the Marketing Authorisation;
- proof of payment of application fees.

(2) The transfer of the Marketing Authorisation shall be documented by the issuance of a certificate of transfer of the Marketing Authorisation signed by the Minister in charge of Agriculture.

SECTION IX: CHANGE OR CONTRACT/MANDATE EXTENSION OF LOCAL REPRESENTATIVES

Article 24: (1) The promoter may request the change of his/her local representative. As such, he/she shall provide the following:

- an application stamped at the current rate;
- a tax clearance certificate;
- a copy of the decision to register the new local representative as a wholesale distributor;
- a notarial deed on the change or extension of the contract/mandate of the local representative.

(2) The change or mandate/contract extension of the local representative shall be documented by the issuance of a certificate of change or mandate/contract extension of the local representative signed by the Minister in charge of Agriculture.

CHAPTER III: SPECIFICATIONS FOR FERTILIZER SUB-SECTOR STAKEHOLDERS

Article 25: Any natural person or legal entity wishing to market fertilisers shall first register with the Ministry in charge of Agriculture.

SECTION I: WHOLESALE DISTRIBUTOR SPECIFICATIONS

Article 26: (1) Natural persons or legal entities wishing to market fertilisers as wholesalers shall meet the following requirements:

- employ at least one professional engineer or equivalent in agricultural sciences, unless the promoter fulfils this requirement;
- be registered in the Trade and Personal Property Credit Register at the Registry of the competent court, under the conditions provided for by the Uniform Act on General Commercial Law;
- have a storage room that meets current standards;
- have a sales outlet equipped according to the standards in force for the fertiliser trade;
- market authorised fertilisers;
- keep the transaction register (purchase and sale receipts, stock management, etc.);
- have appropriate materials and equipment (pallets or shelves, adequate lighting, etc.);
- have, where appropriate, an authorisation to carry out commercial activity issued by the Minister in charge of Trade;
- have a declaration of the start of activity from the Ministry in charge of Trade in accordance with the law governing commercial activities in Cameroon;
- have measuring instruments approved and controlled by the service in charge of legal metrology.

(2) At his/her request, the wholesaler may be authorised to repackage the fertiliser. In addition to the conditions mentioned in paragraph 1, he/she shall have:

- an authorisation from the promoter of the fertiliser;
- measuring instruments approved and controlled by the service in charge of legal metrology;
- packing machines and packaging that comply with the regulations in force.

SECTION II: RETAIL DISTRIBUTORS SPECIFICATIONS

Article 27: Natural persons or legal entities wishing to market fertilisers as retailer distributors shall meet the following requirements:

- have an employee with minimum level of Agricultural Technician, unless the promoter fulfils this requirement;
- be registered in the Trade and Personal Property Credit Register at the Registry of the competent court, under the conditions provided for by the Uniform Act on General Commercial Law;
- have, where appropriate, an authorisation to carry out commercial activities issued by the Minister in charge of Trade;
- have a storage room that meets current standards;
- have a sales outlet equipped according to the standards in force for the marketing of fertilisers;
- market authorised fertilisers;
- keep the transaction register (purchase and sale receipts, stock management, etc.);
- have appropriate materials and equipment (pallets or shelves, adequate lighting, etc.);
- have measuring instruments approved and controlled by the service in charge of legal metrology.

CHAPTER IV: PACKAGING AND STORAGE OF MARKETED FERTILISERS

Article 28: (1) Imported, exported or manufactured fertilisers shall be packed in original bags, cans, drums or bottles in accordance with the regulations in force.

(2) The packaging shall ensure the safety of the Fertiliser during storage, handling and transport.

Article 29: The characteristics of the components of the fertiliser offered for sale shall be clearly and appropriately marked on the label.

Article 30: All fertiliser labels shall have the following information in English and French:

- the type of fertiliser;
- the trade name;
- the type of formulation;
- fertilising agents, ingredients, or microbial strains and their contents;
- the net weight or volume;
- the Marketing Authorisation;
- the batch number;
- the date of manufacture;
- the expiry date, if any;
- name and address of the manufacturer;
- the indication "packaged by: name of the packaging company", if applicable;
- specific instructions for use, safety and incompatibility;
- caution symbols related to special risks associated with the use of these products;
- solubility at 25°C.

Article 31: (1) Where plant nutrients appear on a label in any form, they shall be considered declared.

(2) Primary nutrients shall include total nitrogen (N), available phosphate (P20s) and soluble potash (K20).

(3) Secondary nutrients and micro-nutrients shall include the elemental or oxide forms.

Article 32: (1) Fertilisers shall be stored under good conditions to maintain adequate humidity, temperature, lighting and health conditions. Fertiliser stocks shall be isolated from any product that could alter the quality of the fertiliser or cause accidents.

(2) The storage of risk fertilisers shall comply with the safety standards laid down in a decision of the Minister in charge of Agriculture.

CHAPTER V: INFRINGEMENTS AND PENALTIES

Article 33: (1) No one shall distribute or sell any fertiliser with misleading marks.

(2) A fertiliser shall be deemed to have a misleading mark if

- its label is falsified, inaccurate, illegible, counterfeit or false;
- it is distributed or sold under the name of another brand of fertiliser;
- its label does not comply with legal and regulatory requirements.

Article 34: (1) It shall be strictly forbidden to sell fertilisers in packaging other than the original packaging, except under the conditions defined in Article 27 paragraph 2 above.

(2) It shall be strictly prohibited to sell fertilisers without registration.

(3) It shall be strictly prohibited to sell fertilisers lacking declared elements.

(4) In the three cases referred to above, the fertilisers shall be seized by the relevant authority.

Article 35: In addition to the provisions of Articles 34 and 35 above, infringements to this Joint Order shall include the following:

- the distribution of fertilisers non-compliant with the regulatory requirements;
- the distribution of fertilisers containing harmful substances or properties, even when used in prescribed doses, which may harm plant development, human and animal health and the environment;
- Refusal to comply with registration formalities and submit fertilisers or related documents for quality control;
- refusal to comply with fertiliser use control procedures.

Article 36: Infringements provided for in Articles 34, 35 and 36 above shall be recorded in a report co-signed by two (02) sworn agents of the Ministry in charge of Agriculture, pursuant to the regulatory provisions in force.

Article 37: Infringements of Articles 34, 35 and 36 above shall be sanctioned in accordance with the provisions of Articles 18, 19, 20 and 22 of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon.

CHAPTER VI: FINAL AND TRANSITIONAL PROVISIONS

Article 38: Any holder of a Marketing Authorisation shall communicate to the Ministry in charge of Agriculture, within three (03) months, any new information on the potential dangers of a fertilising product or its residues on human, animal, or environmental health.

Article 39: Natural persons or legal entities operating in the fertiliser sub-sector shall comply with this joint order within a period of six (06) months, from the date of its signature.

Article 40: This joint order shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French.

Yaoundé, 29 August 2019

Signed by:

The Minister of Public Health
MANAOUA Malachie

**The Minister of Environment, Protection of
Nature and Sustainable Development,**
HELE Pierre

The Minister of Trade
Luc Magloire MBARGA ATANGANA

**The Minister of Agriculture and Rural
Development**
Gabriel MBAIROBE

3.2.2. Joint Order No. 00116/MINADER/MINCOMMERCE/MINEPDED/MINSANTE of 29 August 2019 to lay down conditions for the production, import, export, packaging, storage and distribution of fertilisers or any other related activities

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT, THE MINISTER OF TRADE, THE MINISTER OF ENVIRONMENT, PROTECTION OF NATURE AND SUSTAINABLE DEVELOPMENT AND THE MINISTER OF PUBLIC HEALTH

Mindful of the Constitution;

Mindful of Law No. 64-LF-23 of 13 November 1964 on the protection of public health;

Mindful of Law No. 96/12 of 05 August 1996 on the framework law on environmental management;

Mindful of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon;

Mindful of Law No. 2004/002 of 21 April 2004 governing legal metrology in Cameroon;

Mindful of the framework law No. 2011/012 of 6 May 2011 on consumer protection in Cameroon;

Mindful of Law No. 2015/018 of 21 December 2015 governing Commercial activities;

Mindful of Law No. 2016/004 of 18 April 2016 governing foreign trade in Cameroon;

Mindful of Law No. 2018/020 of 11 December 2018 on the Framework Law on Food Safety;

Mindful of Decree No. 92/089 of 4 May 1992 to specify the duties of the Prime Minister, as amended and supplemented by Decree No. 95/145 of 4 August 1995;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2005/421 of 01 October 2012 to organise the Ministry of Environment, Protection of Nature and Sustainable Development;

Mindful of Decree No. 2012/513 of 12 November 2012 to organise the Ministry of Trade;

Mindful of Decree No. 2013/093 of 3 April 2013 to organise the Ministry of Public Health;

Mindful of Decree No. 2019/02 of 4 January 2019 to reshuffle the Government;

Mindful of Decree No. 2011/2584/PM of 23 August 2011 to lay down conditions for the protection of soils and the sub-soil;

HEREBY ORDER AS FOLLOWS:

CHAPTER I: GENERAL PROVISIONS

Article 1: This Joint Order lays down conditions for the production, import, export, packaging, storage and distribution of fertilisers or any other related activities.

(2) This order is signed pursuant to Article 5 of Law No. 2003/007, regulating the fertiliser sub-sector in Cameroon.

Article 2: Activities referred to in Article 1 above shall be subject to the legislative and regulatory provisions in force governing commercial activities, environmental protection, public health, mines and industries.

Article 3: For the purpose of this joint order, the following definitions shall apply:

- **Related activity:** any service that contributes to the functioning of the fertiliser sub-sector. This includes: transport, consultancy and research in the fertiliser sub-sector.
- **Soil amendment:** any substance used to enhance the physico-chemical and/or biological properties of the soil in order to improve its performance.
- **Biostimulants:** any substance or microorganism applied to plants to enhance nutrition efficiency, abiotic stress tolerance, crop quality traits, and/or the availability of nutrients in the soil or rhizosphere, regardless of its nutrients content.
- **Retail distributor:** any natural person or legal entity, according to professional standards, who purchases fertilisers from wholesale distributors and resells to farmers.
- **Wholesaler distributor:** any natural person or legal entity, according to professional standards, who purchases fertilisers from producers or imports them, in order to sell in bulk to retailers.
- **Packaging:** mixing and packing of fertilisers.
- **Distribution:** the entire process involving purchase for wholesale or retail, transport, storage and preservation of fertilisers.
- **Packaging material:** any object, irrespective of the type of material, used to pack and protect goods, to enable their handling and transport from producers to consumers.
- **Fertiliser:** any substance or material containing one or more plant nutrients recognised and used as such to boost plant growth and production. Mineral fertilisers, organic fertilisers, organo-mineral fertilisers, biostimulants, soil amendments and all fertilisers are considered as fertilisers and referred to as such.
- **Customised fertilisers:** any fertiliser prepared based on the customer's formula.
- **Mineral fertilisers:** fertilisers of mineral origin, produced by chemical industries or derived from phosphate and potash.
- **Organic fertilisers:** animal and/or plant fertilisers origin.
- **Registration:** registration of a natural person or legal entity operating in the fertiliser sub-sector in Cameroon with the competent administration.
- **Export:** The act of taking fertilisers out of the national territory into a foreign country.
- **Fertilising agent:** any product used to enhance plant nutrition or to improve the physical, chemical and biological properties of soils.
- **Formulation:** a mixture of several nutrients that make up the fertiliser.
- **Import:** the act of introducing fertilisers into the national territory.
- **Production:** manufacture of fertilisers.
- **Promoter:** any natural person or legal entity who has received an Authorisation to market a fertilising agent.
- **Fertiliser sub-sector:** A branch of Agriculture, which deals with research, supervision and regulation in terms of soil fertility and fertilisation, as well as the import, export, packaging, distribution and use of fertilisers. It also includes stakeholders, who contribute to improve soil productivity within the framework of sustainable management.
- **Storage** the act of stockpiling fertilisers in a restricted common area, for preservation, redistribution and/ or use.
- **Intensive use of fertilisers:** an agricultural production system essentially based on the use of fertilisers and aimed at optimising production.

Article 4: (1) Only fertilisers with Marketing Authorisations or a Provisional Marketing Authorisations shall be imported, produced, packaged, stored, distributed and used in Cameroon.

(2) However, any farmer can buy customised fertilisers. This requires a special authorisation from the Ministry in charge of Agriculture.

(3) The special authorisation referred to above shall be subject to the following conditions:

- carry out preliminary analyses in order to determine the needs of cultivated soils in deficient fertilising agents;

- determine the appropriate formulation;
- have the formula validated by the Ministry in charge of Agriculture.

Article 5: (1) Without prejudice to the legislative and regulatory provisions in force, the Minister in charge of Agriculture may issue a special authorisation for the importation of fertilisers, not authorised for marketing in Cameroon, for the following purposes:

- research by research institutes and companies operating in the fertiliser sub-sector in Cameroon;
- agricultural extension;
- training support in educational institutions.

The above-mentioned special import authorisation shall stand as a technical opinion in accordance with Article 8(1) of Law No. 2016/004 of 18 April 2016 governing foreign trade in Cameroon.

CHAPTER II: CONDITIONS FOR THE PRODUCTION, FORMULATION, IMPORT, EXPORT, PACKAGING, STORAGE AND DISTRIBUTION OF FERTILISERS

SECTION I: PRODUCTION AND FORMULATION OF FERTILISERS

Article 6: (1) Any natural person or legal entity involved in the production and/or formulation of fertilisers shall register with the Ministry in charge of Agriculture.

(2) For that purpose, the following conditions shall apply:

- employ at least one engineer or equivalent in agricultural sciences, unless the promoter fulfils this requirement;
- employ technician(s) with expertise in production and/or formulation processes;
- have one or more storage rooms that meet the required standards;
- have a contract or contracts with suppliers of raw materials;
- have fertilisers tested;
- have production and/or formulation protocols;
- have production and/or formulation standards that comply with the laws in force;
- have the appropriate work equipment (measuring instruments approved and controlled by the service in charge of legal metrology, testing equipment, storage, mixing, packing, transport, etc.);
- have an internal quality control unit (production control, analysis of manufactured fertilisers) where appropriate;
- have appropriate materials and equipment (pallets or shelves, adequate lighting, etc.);
- have infrastructure that meet required standards;
- keep the transaction register (purchase and sale receipts, stock management, etc.);
- have a certificate of compliance and an environmental licence or environmental note as appropriate;
- have a safety protocol and related equipment;
- have insurance covering fire and other risks;
- have a health insurance policy for staff;
- submit an inspection report on the premises issued by the Ministry in charge of Agriculture.

(3) The internal fertiliser quality control units aim at ensuring that the fertiliser produced or formulated complies with the declared parameters.

(4) The registration referred to in paragraph 1 above shall be valid for a period of 5 years renewable.

SECTION II: IMPORT OF FERTILISERS

Article 7: Without prejudice to the provisions of Articles 5 and 6 above, any natural person or legal entity wishing to import fertilisers shall first register as a fertiliser Wholesale distributor, in accordance with the regulations in force.

Article 8: (1) The import of fertilisers shall be subject to an Import Declaration submitted to the Ministry in charge of Agriculture.

(2) This is exclusively reserved for of the Marketing Authorisation / Provisional Marketing Authorisation holders or their local representatives.

(3) The Import Declaration, provided for in paragraph 1 above, is subject to the presentation of the following documents:

- a) an application stamped at the current rate with the following information:
 - the address of the importer or supplier, as well as the distributor;
 - the expected date of arrival of the fertiliser and the point of entry into Cameroon;
 - the trade name, formulation, packaging, quantities and type of fertiliser to be imported and the country of origin;
 - the mode of transportation;
- b) a copy of the Marketing Authorisation or Provisional Marketing Authorisation decision;
- c) a pro forma invoice;
- d) a tax clearance certificate.
- e) proof of payment of declaration fees at the applicable rate.
- f) a copy of the certificate of registration in the importers' register issued by the service in charge of foreign trade.

(4) The file shall be submitted to the Department in charge of regulations and quality control of fertilisers at least one month before the expected date of shipment.

(5) In case the file is submitted electronically via the Technical Administration Information System, the composition of the file shall remain as referred to in paragraph 2 above.

(6) The Import Declaration Receipt shall be issued to the applicant upon fulfilment of the above conditions.

Article 9: (1) Wholesaler-Distributors shall provide the Ministry in charge of Agriculture every six months with data on the type, quantities and value of fertilisers effectively imported for the purpose of compiling statistics.

(2) Failure to comply with the provisions of paragraph 1 above, the Wholesaler distributor shall be exposed to the penalties provided for by the regulations in force.

SECTION III: EXPORT OF FERTILISERS

Article 10: (1) Export of fertilisers shall be subject to a declaration submitted to the Ministry in charge of Agriculture.

(2) The Export Declaration, provided for in Paragraph 1 above, shall be subject to the presentation of the following documents:

- a) an application stamped at the current rate with the following information:
 - the address of the exporter or supplier, as well as the consignee;
 - the expected date of export of the fertiliser and the exit point in Cameroon;
 - the trade name, formulation, packaging, quantities and type of fertiliser to be exported and the country of destination;
 - the mode of transportation.
- b) a copy of the Marketing Authorisation or Provisional Marketing Authorisation decision.
- c) a tax clearance certificate.
- d) proof of payment of declaration fees at the applicable rate.
- e) a copy of the certificate of registration in the database of exporters issued by the service in charge of foreign trade.

(3) The file shall be submitted to the Department in charge of regulations and quality control of fertilisers at least one month before the expected date of shipment.

(4) In case the file is submitted electronically via the Technical Administration Information System, the composition of the file shall remain as referred to in paragraph 2 above.

(5) The Export Declaration Receipt shall be issued to the applicant upon fulfilment of the above conditions.

Article 11: Fertilisers in transit within the national territory shall be transported in sealed containers.

SECTION IV: PACKAGING AND STORAGE OF FERTILISERS

Article 12: (1) Any natural person or legal entity involved in the packaging and/or storage of fertilisers shall register with the Ministry in charge of Agriculture.

(2) For that purpose, the following conditions shall apply:

- employ at least one engineer or equivalent in agricultural sciences, unless the promoter fulfils this requirement;
- employ technician(s) with expertise in packaging and/or storage of fertilisers;
- have one or more storage rooms that meet the required standards;
- have a contract or contracts with suppliers of raw materials;
- have fertilisers tested;
- have packaging and/or storage protocols;
- have packaging and/or storage standards that comply with the laws in force;
- have the appropriate work equipment (measuring instruments approved and controlled by the service in charge of legal metrology, testing equipment, storage, mixing, packing, transport, etc.);
- have appropriate materials and equipment (pallets or shelves, adequate lighting, etc.);
- have infrastructure that meet required standards;
- keep the transaction register (purchase and sale receipts, stock management, etc.);
- have a certificate of compliance and an environmental licence or environmental note as appropriate;
- have a safety protocol and related equipment;
- have insurance covering fire and other risks;
- have a health insurance policy for staff;
- submit an inspection report on the premises issued by the Ministry in charge of Agriculture.

(3) The registration referred to in Paragraph 1 above shall be valid for a period of 5 years renewable.

Article 13: The packaging and storage of fertilisers shall comply with the standards and regulations in force.

SECTION V: DISTRIBUTION OF FERTILISERS

Article 14: Any natural person or legal entity wishing to distribute fertilisers shall first register as a Wholesaler or Retailer, in accordance with the specifications set out in the regulations in force.

SECTION VI: TRANSFER OF PRODUCTION, FORMULATION, PACKAGING AND DISTRIBUTION UNITS

Article 15: (1) The transfer of a production, formulation, packaging or distribution unit from one place to another or any change in the conditions of installation shall be authorised by the Ministry in charge of Agriculture. Failure to do so shall result in the withdrawal of the registration.

(2) The authorisation for site transfer shall be subject to prior validation of the report on the restoration of the site previously occupied by the Ministry in charge of environment.

SECTION VII: INTENSIVE USE OF FERTILISERS

Article 16: (1) Any natural person or legal entity using fertilisers intensively on an area of more than 10 hectares shall declare their activities to the competent Regional Delegate of agriculture.

(2) For that purpose, they shall provide:

- a plan of the farm;
- fertiliser use protocols.

(3) A Receipt for the declaration of activity shall be issued to the applicant upon fulfilment of the above conditions by the Regional Delegate and sent to the Ministry in charge of Agriculture.

CHAPTER III: REQUIREMENTS FOR CARRYING OUT RELATED ACTIVITIES

SECTION I: TRANSPORT OF FERTILISERS

Article 17: Fertilisers shall be transported in accordance with the procedures and standards provided for by the regulations in force.

SECTION II: CONSULTING AND RESEARCH

Article 18 (1) Any natural person or legal entity wishing to be approved for agronomic consulting on the use of fertilisers and research in the fertiliser sub-sector shall meet the following requirements:

- employ at least one engineer or equivalent in agricultural sciences, unless the promoter fulfils this requirement;
- have a suitable building;
- have, where appropriate, an authorisation to carry out commercial activity issued by the Minister in charge of Trade.

CHAPTER IV: INFRINGEMENTS AND PENALTIES

Article 19: Infringements of this Joint Order shall include the following:

- the production, distribution and/or use of fertilisers non compliant with the regulatory requirements;
- the production, distribution and/or use of fertilisers containing harmful substances or properties, even when used in prescribed doses, which may harm plant development, human and animal health and the environment;
- Refusal to comply with registration formalities and submit fertilisers or related documents for quality control;
- refusal to comply with fertiliser use control procedures.

Article 20: Infringements provided for in Article 20 above shall be recorded in a report co-signed by two (02) sworn agents of the Ministry in charge of Agriculture, pursuant to the regulatory provisions in force.

Article 21: Infringements of Article 20 above shall be sanctioned in accordance with the provisions of Articles 18, 19, 20 and 22 of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon.

CHAPTER V: FINAL AND TRANSITIONAL PROVISIONS

Article 22: Without prejudice to the provisions of the law governing foreign trade in Cameroon, the import of fertilisers for purposes other than agriculture shall be subject to a special authorisation issued by the Minister in charge of foreign trade after consultation with the Minister in charge of Agriculture.

Article 23: Natural persons or legal entities operating in the fertiliser sub-sector shall comply within a period of six (06) months, from the date of signature of this joint order.

Article 24: This joint order shall be registered, published according to the procedure of urgency and inserted in the Official Gazette in English and French. / -

Yaounde, 29 August 2019

Signed by:

The Minister of Public Health
MANAOUA Malachie

**The Minister of Environment, Protection
of Nature and Sustainable Development,**
HELE Pierre

The Minister of Trade
Luc Magloire MBARGA ATANGANA

**The Minister of Agriculture and Rural
Development**
Gabriel MBAIROBE

3.3. DECISIONS

3.3.1. Decision No.00264/MINADER/SG/DRCQ/SDRP/SRE/IE2 of 21 March 2017 setting the amounts for fertiliser evaluation operations

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 96/12 of 05 August 1996 on the framework law on environmental management;

Mindful of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2015/434 of 02 October 2015 to reshuffle the Government;

Considering service needs,

HEREBY DECIDES AS FOLLOWS:

Article 1: Within the framework of this decision, the following shall be considered as fertiliser evaluation operation:

- Agronomic efficiency tests;
- Studies of registration files by the interministerial commission in charge of fertiliser registration.

Article 2: The fees for the following services shall be set as follows:

- 1) Agronomic efficiency tests per zone and per crop:

Description	Zone	Fee
Food crops per cycle	Southern regions	2 350 000 FCFA
	Northern regions	3 000 000 FCFA
Perennial crops per year	Southern regions	3 000 000 FCFA
	Northern regions	3 500 000 FCFA

- 2) Studies of registration files by the commission in charge of fertiliser registration: 500 000 FCFA.

Article 3: The revenue generated shall be paid into the account of the interministerial commission in charge of fertiliser registration.

Article 4: This decision shall be registered and communicated wherever necessary.

Yaounde, 21 March 2017

The Minister of Agriculture and Rural Development

Henri EYEBE AYISSI

3.3.2. Decision No. 00263/MINADER/SG/DRCQ/SDRP/SRE/IE2 to lay down procedures for quality control of fertilisers for sale and the registration of operators in the fertiliser sub-sector in Cameroon

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 96/12 of 5 August 1996 on the framework law on environmental management;

Mindful of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon;

Mindful of Law No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to reorganise the Government;

Mindful of Decree No. 2015/434 of 2 October 2015 to reshuffle the Government;

Considering service needs,

HEREBY DECIDES AS FOLLOWS:

CHAPTER 1: GENERAL PROVISIONS

Article 1: This decision lays down the procedures for quality control of fertilisers for sale and the registration of operators in the fertiliser sub-sector in Cameroon.

Article 2: The fertiliser sub-sector is part of the agricultural sector involving fertiliser activities such as manufacturing, import, export, packaging, distribution and use, as well as research, supervision and regulation on soil fertility and fertilisation.

Article 3: Any natural person or legal entity carrying out an activity in the fertiliser sub-sector in Cameroon shall register with the competent services of the Department in charge of the regulation of fertilisers in the Register of operators of the fertiliser sub-sector.

CHAPTER II: QUALITY CONTROL PROCEDURES FOR FERTILISERS FOR SALE

Article 4: Within the framework of this decision, the following shall be considered as fertilisers:

- Soil conditioners;
- Growth stimulators
- Mineral fertilisers;
- Organic fertilisers;
- Organo-mineral fertilisers.

Article 5: Quality control of a fertiliser for use in Cameroon shall include the following two phases, depending on whether it is locally manufactured or imported:

- Assessment prior to the issuance of a distribution licence;
- Control during manufacture, control at the various exit and entry points of the country, control of compliance with packaging, distribution and use standards.

Article 6: (1) The fertiliser evaluation procedure shall include a set of operations aimed at ensuring that any fertiliser for use in Cameroon contributes to:

- Increase the yield of the target crop;
- Improve the physico-chemical and/or microbiological properties of the soil;
- Provide economic added value to the user.

Article 7: (2) This shall include the following operations:

- The physico-chemical and microbiological testing of a sample of the fertiliser by a laboratory approved by the Minister in charge of Agriculture;
- Agronomic efficiency tests by the service in charge of fertiliser regulation;
- The evaluation of the agro-economic performance of the said fertiliser by the service in charge of fertiliser regulation.

Article 8: The fertiliser promoter shall submit to the competent authority a file including:

- an application stamped at the current rate;
- A technical file;
- Samples;
- Receipts for payment of assessment fees.

Article 9: (1) The tests and analyses in Article 6 paragraph 1 shall result in the issuance of a certificate of conformity, a certificate of quality, a test report answering the main questions of the experiment, and an agro-economic evaluation form duly signed by the competent services of the Minister in charge of Agriculture.

CHAPITRE III: FERTILISER REGISTRATION PROCEDURES

Article 10: The Register of operators of the fertiliser sub-sector shall comprise several categories of professionals, namely:

- The register of fertiliser importers;
- The register of fertiliser exporters;
- The register of fertiliser distributors;
- The register of fertiliser manufacturers;
- The register of fertiliser formulators;
- The register of fertiliser packagers.

Article 11: Any natural person or legal entity wishing to work as a professional in one of the categories listed in Article 9 shall declare his or her activity to the Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products.

Article 12: (1) The declaration shall be subject to the production of a complete file (see Appendices 1 and 2) for the desired professional category.

(2) In addition to the complete file, the applicant shall:

- have facilities, equipment and appliances that meet standards;
- have appropriate personal protective equipment for personnel;
- have qualified staff with technical and practical skills in handling fertilisers
- undertake to use only fertilisers authorised to be marketed in Cameroon;
- undertake to comply with the regulations in force.

Article 13: (1) The registration of a natural person or legal entity shall be effective following the issuance of the decision to register the operators of the fertiliser sub-sector the Minister in charge of Agriculture.

(2) The decision on registration in the register of operators of the fertiliser sub-sector referred to in subsection (1) shall contain the registration number of the person registered.

Article 14: (1) The import of fertilisers shall be authorised by the fertiliser regulatory authority.

CHAPTER IV: MISCELLANEOUS AND FINAL PROVISIONS

Article 15: (1) The import of fertilisers shall be authorised by the fertiliser regulatory authority.

(2) The marketing of a batch of fertiliser shall be effective after conformity and quality control.

(3) This shall be reserved exclusively for companies with a marketing authorisation. However, in special cases, the Ministry in charge of Agriculture may import organic fertilisers into Cameroon.

Article 16: (1) The costs of the fertiliser assessment procedure shall be covered by the promoters of the products.

(2) the costs of the said tests shall be determined by decision of the Minister in charge of Agriculture.

Article 17: This decision, which enters into force from the date of signature, shall be registered and published wherever necessary.

Yaounde, 21 March 2017

The Minister of Agriculture and Rural Development

Henri EYEBE AYISSI

3.3.3. Decision No. 00600/MINADER/SG/DRCQ/SDRP/SRE of 16 November 2020 establishing the list of fertilisers exempted from agronomic efficiency tests

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2003/007 of 10 July 2003 regulating the fertiliser sub-sector in Cameroon;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018,

Mindful of Decree No. 2019/02 of 4 January 2019 to reshuffle the Government;

Mindful of Joint Order No.0015 MINADER/MINCOMMERCE /MINEPDED /MINSANTE of 31 August 2022 laying down conditions for the marketing of fertilisers in Cameroon;

Mindful of Joint Order No.00116 MINADER/MINCOMMERCE/MINEPDED/MINSANTE of 29 August 2019 laying down conditions for the production, import, export, packaging, storage and distribution of fertilisers or any other related activities.

HEREBY DECIDES AS FOLLOWS:

Article 1: This Decision establishes the list of fertilisers exempted from agronomic efficiency tests.

Article 2: The fertilisers exempted from agronomic efficiency tests are listed in the table below:

No.	Fertiliser
1.	Borax [NaB ₄ O ₇ .H ₂ O,]
2.	Crushed limestone [CaCO ₃ +MgCO ₃]
3.	Calcium lime [CaCO ₃ + MgCO ₃]
4.	Magnesian lime [CaCO ₃ + MgCO ₃]
5.	Quicklime (CaCO ₃)
6.	Calcium chloride (CaCl ₂)
7.	Potassium chloride [KCL]
8.	Di-ammonium phosphate (DAP) [(NH ₄) ₂ HPO ₄]
9.	Dolomite [CaCO ₃ + MgCO ₃]
10.	Kieserite [MgSO ₄ .H ₂ O]
11.	Mono-ammonium phosphate (MAP) [(NH ₄)H ₂ PO ₄]
12.	Ammonium nitrate [NH ₄ NO ₃]
13.	Calcium nitrate [Ca (NO ₃) ₂]
14.	Potassium nitrate [KNO ₃]
15.	NPK 20-10-10 complex
16.	Magnesium oxide [MgO]
17.	Tricalcium phosphate [Ca ₃ (PO ₄) ₂]
18.	Rock phosphate
19.	Ammonium sulphate [(NH ₄) ₂ SO ₄]
20.	Magnesium sulfate [MgSO ₄]
21.	Manganese sulphate [MnSO ₄]
22.	Potassium sulphate [K ₂ SO ₄]
23.	Zinc sulphate [ZnSO ₄]
24.	Enriched superphosphate (ESP)
25.	Single superphosphate (SSP)
26.	Triple superphosphate (TSP)
27.	Composts
28.	Any fertiliser consisting of one or two nutrient(s) (major, micro, trace, or heavy metals within the required limits)
29.	Any single-use amendment product
30.	Urea [CO(NH ₂) ₂]

Article 3: This decision shall be registered and communicated wherever necessary. /-

Yaounde, 16 November 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

3.4. CIRCULAR

3.4.1. Circular Letter No. 00001/MINADER/SG/DRCQ/SDRP/SRE of 24 May 2021 on the presentation of application files for marketing authorisation for fertilisers.

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

TO

ALL ECONOMIC OPERATORS IN THE FERTILISER SUB-SECTOR

Ladies, Gentlemen,

It has been brought to my attention that most files submitted to the Ministry for marketing authorisations do not comply with relevant regulatory instruments.

In order to harmonise the composition of files so as to facilitate processing during sessions, I have the honour to remind you that, in addition to the use of spirals and separators, the documents of the file shall be classified as follows:

- 1) An application for examination of the fertiliser stamped at the current rate, addressed to the Ministry in charge of Agriculture;
- 2) Content;
- 3) Proof of payment of study fees in accordance with the regulations;
- 4) Material Safety Data (a form indicating physical, physico-chemical and microbiological properties, information form on safety measures, indications and contra-indications, intoxication, antidote (if applicable), a full report on the hazard profile for mammals, a full report on the risks of the fertiliser to the environment);
- 5) Certificate of compliance issued by the Director of Regulations and Quality Control of Fertilisers;
- 6) Original labelling template or its label;
- 7) Description of the packaging;
- 8) Agronomic efficiency test report (if applicable);
- 9) Instructions for use (final).

In addition to the documents listed above, you are requested to provide the results of solubility and mobility analyses.

I attach great importance to the strict implementation of the provisions of this circular.

Yaounde, 24 May 2021

The minister of Agriculture and Rural Development

Gabriel MBAIROBE

4.PART FOUR: LEGAL FRAMEWORK FOR PHYTOSANITARY PRODUCTS

4.1. CONVENTION

4.1.1. INTERNATIONAL PLANT PROTECTION CONVENTION (New revised text as approved by the FAO Conference, during its 29th session - November 1997)

This revision of the convention is accessible under the following addresses

<https://www.ippc.int/fr/publicationsfiles/344/files/en>

To contact the Secretariat:

IPPC Secretariat, Plant Protection Service ,
Food and Agriculture Organization of the
United Nations , Viale delle Terme di
Caracalla, 00100 Rome , ITALY

Tel.: (+39) 06 5705 4812

Fax: (+39) 06 5705 6347

E-mail: ippc@fao.org

Web site: www.ippc.int

4.2. LAW

4.2.1. Law N°2003/O03 OF 21 April 2003 on phytosanitary protection

The National Assembly has deliberated and adopted;

The President of the Republic hereby enacts the law set out below:

CHAPTER I- GENERAL PROVISIONS

Article 1: The present law institutes the main rules governing phytosanitary inspections in Cameroon.

Article 2. - Phytosanitary inspection is done through:

- the elaboration, the adoption and the adaptation of standards in the domain;
- the prevention and fight against enemies of plants and plant products;
- the appropriate use of phytosanitary products without any danger on humans, animals and the environment ;
- the dissemination and extension of appropriate techniques of phytosanitary protection;
- the control on the importation and exportation of phytosanitary products, plants, plant products and other regulated articles that can cause the spread of pests and diseases;
- the control of phytosanitary products, plants and plant products that can serve as diseases and pests vectors in the national territory.

Article 3 - Within this law and its implementation texts, the following definitions are upheld:

« **phytosanitary activity** »: all operations related to the production, the distribution and the use of plant products and phytosanitary products in the farm, in store and for the spraying of stores and transportation means.

« **regulated items** »: all plants, plant product, storage places, bags, transportation means, containers, soils, all other organisms, objects or material that can carry or spread diseases and pests within phytosanitary measures related to international transport.

« **auxiliary** » pests and disease organisms that live depending on another and that can limit the population of its hosts. These include parasitoids, parasites, predators and pathogenic agents.

« **Phytosanitary certificate** »: an official document with an international convention format used for plant protection and testifying the sanitary state of a parcel that must pass through phytosanitary control.

«**Certificate of conformity to norms** »: an official document issued by the national organ on normalisation and testifying that the evaluated product is in conformity with norms.

« **registration** »: it is a procedure through which the competent authority accepts the importation distribution and use of a phytosanitary product after examining the scientific data to indicate that the product is efficient for its purpose and does not present any risk for the environment, human beings and animals.

« **inspection** »: official visual examination of plants, plant products and other regulated items in order to determine the presence or absence of pest/disease organisms and/ or to ensure that phytosanitary regulation is respected.

« **quarantine organism** »: a pest/disease organism which has a high economic potential in a risk area and which is not yet present but not yet widely disseminated in the area and which can be fought against.

« **pest/disease organism** »: any specie, part or biotype of a plant or animal as well as pathogenic agent, that can disturb plants or plant products.

«**pesticide**»: any substance or combination of substances used to discard, destroy or fight against insects, disease vectors, and undesired plant varieties or animals that can cause damage or show signs of destruction either during production, processing, storage, transportation or marketing of food products agricultural products, wood and non-timber forest products.

« **Phytosanitary product** »: pesticides or other substances to be used as plant growth regulators, a

defoliator, desiccant agents, fruit **lighteners** or to prevent premature fruit fall, as well as substances applied on plants either before or after harvest to prevent damage during storage and transportation.

« **plant product**»: any product of plant origin, including pollens and manufactured products which, because of their nature or their processing, can constitute a risk of introducing or spreading pests.

« **plant quarantine** » a series of activities that aim at preventing the introduction and/or the spread of pests or at fighting against them officially.

« **quarantine zone** » a demarcated area within which a quarantine organism is found and needs to be officially fought against.

Article 4 -The phytosanitary activity is carried out freely in the entire nation by any physical person or corporate body in the respect of the present law and regulations.

Article 5 -The competent authority in the domain of phytosanitary protection is the Minister in charge of Agriculture. He can however delegate powers to any person or corporate body as provided for in the regulations.

Article 6 - The Minister in charge of Agriculture can ask for assistance from other competent departments for a better implementation of the phytosanitary law.

CHAPTER II - ON PHYTOSANITARY PROTECTION OF THE NATIONAL TERRITORY

I- Applicable phytosanitary measures

Article 7- Applicable phytosanitary measures in Cameroon were elaborated and put into effect following the national regulation and international standards on the domain.

II - Plant quarantine

Article 8 - (1) It is either prohibited or introduced, to keep or to transport any quarantine organism in the national territory, no matter their state of development.

(2) The list of quarantine organisms is regularly updated and published by order from the Minister in charge of Agriculture.

(3) However, some dispensations may be granted for research, experiments or training purposes.

Article 9 - (1) It is prohibited to import or export plants or plant parts, soils and culture mediums infested by pests. During importation or exportation, plants, plants products, soil and culture mediums must be accompanied by a phytosanitary certificate.

(2) On the other hand, the importation of regulated plants, plant products or biological control agents depend on the acquisition of an importation permit which is issued under special conditions provided for by law.

Article 10 - (1) The importation or exportation of plants and plant products must be done only at official entry and exit points.

(2) The importation of plants and plant products that are subject to import license and especially the importation of plant material to be used for multiplication or planting must be done only at the entry point mentioned on the import license. These products and materials can previously be put in a quarantine station of an intermediary country or in the country of origin.

Article 11 - The phytosanitary certificate and the importation permit mentioned in article 9 above are issued at the expense of the applicant by the services of the phytosanitary police post.

Article 12 - The Minister of Agriculture issues as the need arises the list of plants, plant parts and plant products whose importation is prohibited or restricted in Cameroon due to their origin.

Article 13 - In case a non-classified pest is introduced, propagated or discovered; the competent authority must take complementary phytosanitary measures on the matter.

Article 14 - (1) In case of the presence or assumed presence of a quarantine organism in one part of the country, the area will be declared a quarantine zone as per regulation until there is total control or eradication of the organism.

(2) During this period, all movement of plants, plant parts or soil out of this area is prohibited.

III - Phytosanitary supervision

Article 15 - Any physical person or corporate body who has or is exploiting an area, or has plant products or items in store and observes or suspects the presence of a quarantine organism or any other pest should immediately inform the competent phytosanitary authority of his area.

Article 16 - Any physical person or corporate body exploiting either in a rural or urban area must make sure of a good sanitary state of crops he plants, stores, transports or sells.

Article 17 - (1) The Minister of Agriculture puts in place a supervisory team on the appearance of pests, the evolution of the population and warning on attacks.

(2) He updates and publishes the list of pests.

Article 18 - Some parts of the country can be classified as risk zones or prohibited zones by law.

IV - Phytosanitary application

Article 19 - (1) Chemical treatments must be carried out in accordance with appropriate agricultural practices as prescribed by the competent authority in order to preserve human and animal health as well as protect the environment from the dangers of the accumulation of the residues of phytosanitary products.

(2) The method of the treatment of stored food stuff must guarantee the absence or presence of the tolerated level of phytosanitary products and preserve the organoleptic quality of the treated products.

Article 20 - (1) Any physical person or corporate body interested in doing phytosanitary treatment as a professional must first of all seek an authorization from the competent authority.

(2) The conditions for issuing the authorization are laid down by law.

CHAPTER III: THE USE, INSPECTION AND CONTROL OF PHYTOSANITARY PRODUCTS

I-THE USE OF PHYTOSANITARY PRODUCTS

Article 21 - (1) Only registered products or those that have been temporarily authorised to be sold must be imported, distributed, packaged or used in Cameroon.

(2) The conditions for the application of sub-section (1) above are laid down by law.

Article 22 - (1) Phytosanitary products must be sold and used in their original bags and under their original labels.

(2) The norms for bagging and labelling as well as the conditions for formulation and packaging of phytosanitary products are laid down by law.

Article 23 - (1) The use of phytosanitary products under conditions different from those specified at the time of their registration is prohibited.

(2) Special measures may be taken by law for the protection of auxiliaries and pollinating.

Article 24 - The sale of obsolete phytosanitary products must be declared to the authority in charge of phytosanitary issues on the first day of their expiry date.

Article 25 - (1) Any individual or corporate body interested in the execution of professional phytosanitary activities pertaining to manufacturing, importation, exportation, formulation, packaging and distribution must first be authorized.

(2) The conditions of agreement here mentioned in (1) above are laid down by law.

Article 26 - Any advertisement on a non-authorised phytosanitary product is prohibited.

Article 27 - (1) Phytosanitary treatment equipment, fabricated, authorised and distributed in Cameroon must be certified for their conformity to the standards in force.

(2) The conditions for the certification of phytosanitary treatment equipment are laid down by law.

II - Inspection and control of phytosanitary products

Article 28- All plants, plants products, soils and culture medium, biological control. organisms as well as phytosanitary products are subject:

- to phytosanitary inspection, no matter their place of production, multiplication, method of storage and transport;
- to control during fabrication, importation, exportation. packaging, distribution and usage.

Article 29- Phytosanitary inspection and the control of phytosanitary products are carried out with respect to national norms, the inspection procedural code adopted by the national phytosanitary authority.

Article 30- Any individual or corporate body possessing plants, plant products or phytosanitary products must declare them to agents of phytosanitary inspection and control of phytosanitary products at the points of entry and exit of the national territory.

CHAPTER IV - SANCTIONNING DEFAULTERS

I - Procedure for sanctions

Article 31- Without any prejudice to recognise prerogatives of the Legal Department and to the general competence of the Judicial Police, the sworn agents on phytosanitary inspection are charged with inspecting, reporting and the follow-up of the prosecution of defaulters in the phytosanitary domain.

To this effect, they report the facts, seize plants, plant products or biological control agents introduced without the certificate or importation permit, phytosanitary products sold in bulk on stages, as well as those introduced or used contrarily to the provisions of the present law through the establishment of a report.

The written and signed report by the sworn officials is in respect of all observations taken up till all wrong registrations.

Article 32- The sworn agents charged with phytosanitary inspection and the control of phytosanitary products, in the execution of the functions and following the procedures provided for in the present law, may:

- need the assistance of the public in the search and measure of plant and phytosanitary products introduced, sold or circulating fraudulently or for the abstention of the identity of the defaulter;
- visit places, trains, ships, vehicles, or air craft keeping, transporting the said products;
- order the treatment, put into quarantine, destroy or seize plants or plants products;
- reject all seals.

II - Offences and sanctions

Article 33- Any person involved with the following offences will be fined with the sum of 50000 Frs:

- failure to present a phytosanitary certificate;
- failure to declare plants, plant products or phytosanitary products;
- failure to declare obsolete phytosanitary product.

Article 34- Whoever introduces regulated plants, plant products or agents of biological control without the importation permit will be punished with a prison term of one (1) to three (3) months and a fine of one hundred thousand (100,000) to one million (1,000,000) francs CFA.

Article 35 - Whoever violates the provisions of articles 20 and 26 of the present law shall be punished with a prison term of either one (1) or three (3) months or a fixed amount of one hundred (100,000) to one million (1,000,000) francs CFA.

Article 36 - (1) Anyone who, by dishonesty, negligence or non-respect of the regulations, causes pollution before, during and after a phytosanitary treatment will be punished according to the provisions laid down in article 261 of the penal code.

(2) Any person who causes intoxication on any humans leading to incapacity will be sanctioned according to provisions of article 289 (1) of the penal code.

CHAPTER V: GENERAL AND FINAL PROVISIONS

Article 37 - (1) There will be a National Phytosanitary Council, a consultative organ responsible for the policy of plant protection in Cameroon.

(2) The composition, the missions and functioning modalities of the National Phytosanitary Council are laid down by law.

Article 38 - The provisions of law N°90/ 013 of 10th August 1990 on phytosanitary protection have been taken care of.

Article 39 - This law shall be registered, published according to the emergency procedure and inserted in the official Gazette in English and French.

Yaounde, the 21 April 2003

The President of the Republic

Paul BIYA

4.3. DECREES

4.3.1. Decree no. 2005/0769 /PM of 06 April 2005 on the organization of the national phytosanitary council

THE PRIME MINISTER AND THE HEAD OF GOVERNMENT

Mindful of the Constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No.92/089 of 4 May 1992 to specify the duties of the Prime Minister modified and completed by decree No 95/145 of 5 August 1995;

Mindful of decree No 2004/320 of 8 December 2004 bearing the appointment of a Prime Minister.

DECREES:

CHAPTER I - GENERAL PROVISIONS

Article 1 - This present decree bears the organization of the National Phytosanitary Council, hereinafter referred to as the "Council".

Article 2- (1) Placed under the Minister charged with Agriculture, the Council shall be a Consultative organ on plant protection policy in Cameroon.

(2) In this respect, it shall:

- advise the government on all matters relating to a sustainable development of the phytosanitary activity;
- issue an opinion on all the legislation or regulatory drafts, on all technical;
- directives as well as on general measures envisaged by the Administration concerning crop protection;
- make suggestions to the Minister in charge of Agriculture on the organization and regulation of the sector;
- give an opinion on the implementation of phytosanitary policy;
- Make decisions on all issues pertaining to crop protection.

CHAPTER II - ORGANISATION AND FUNCTIONING OF THE COUNCIL

Article 3 - (1) Presided by the Minister in charge of Agriculture or his representative, the Council shall comprise among others the following members:

- three (03) representatives of the Ministry in charge of Agriculture;
- one (01) representative of the Ministry in charge of Public Health;
- one (01) representative of the Ministry in charge of Finance
- one (01) representative of the Ministry in charge of Livestock;
- one (01) representative of the Ministry in charge of Commerce
- one (01) representative of the Ministry in charge of Environment and Nature Protection;
- one (01) representative of the Ministry in charge Justice;
- one (01) representative of the Ministry in charge Transport;
- one (01) representative of the Ministry in charge of Scientific Research and Innovation;
- Two (02) representatives of the Phytosanitary Industry sector;
- one (01) representative of the Agro-Industry Sector:
- one representative of the producers organization
- one (01) representative of phytosanitary treatment and sanitation companies
- Two (02) representatives of professional agricultural products exporters;
- Two (02) representatives of Non-Governmental Organizations respectively involved in consumer and environmental protection.

(2) The President of the Council may invite any individual or corporate body according to his competence in some matters on the agenda of the session to a meeting, in a consultative capacity.

(3) Members of the Council shall be appointed by an Order of the Minister in charge of Agriculture upon the recommendations of the Administration and the Organizations to which they belong.

(4) The secretariat of the Council shall be ensured by the Department for Regulation and quality control of agricultural products in the Ministry in charge of Agriculture.

Article 4 - (1) The Council shall meet at least twice (02) a year on the convocation of its President.

(2) The convocation notice shall reach members fifteen (15) days before the start of the session. It shall indicate the time, date, and venue of the meeting and shall be accompanied by the working documents for the session.

(3) Decisions of the Council shall be taken by a simple majority of the members present. The vote of the President shall be decisive in the event of a tie.

ARTICLE 5 - At the end of every session, the Council shall submit a written report to the Minister in charge of Agriculture.

CHAPTER III: MISCELLANEOUS AND FINAL PROVISIONS

Article 6 - (1) The duties of the President and the Council members shall be gratuitous.

(2) However, Council Members as well as invited persons to a session shall benefit from working facilities necessary for the accomplishment of their missions.

Article 7 - The functioning expenditure of the Council shall be borne by the budget of the Ministry in charge of Agriculture.

ARTICLE 8 - This decree shall be registered and published following the urgency procedure then, inserted in the Official Gazette in French and English.

Yaounde, 6 April 2005

The Prime Minister, Head of Government

INONI Ephraim

4.3.2. Decree no. 2005/0770/ PM of 06 April 2005 on the conditions for crop protection

THE PRIME MINISTER, HEAD OF GOVERNMENT.

Mindful of the Constitution;

Mindful of Law No 2003/003 of 21 April 2003 on crop protection;

Mindful of Decree No 92/089 of 4 May 1992 to precise the duties of the Prime Minister modified and completed by Decree No 95/145 of August 1995;

Mindful of Decree No 2004/320 of 8th December 2004 organizing the Government;

Mindful of Decree No 2004/320 of 8th December 2004 appointing a Prime Minister;

DECREES:

CHAPTER I - GENERAL PROVISIONS

Article 1 - The present decree fixes condition of crop protection.

Article 2 - Crop protection is done through the fight against major pests or against other organisms harmful to plants.

Article 3 – Within the context of this decree, the following shall mean:

- **Biological fighting agent:** an auxiliary antagonist, competitor or any other biological entity able to self- reproduce, used in the fight against harmful organisms.
- **Good phytosanitary practices:** expression regrouping methods of fighting against harmful organisms to plants with the aim of preserving a good healthy state of plant and plant product human and animal health as well as the environment from hazards resulting from the use of phytosanitary products and measures.
- **Integrated protection:** An approach aimed at increasing agricultural production based on ecological principles and which reinforces farmers' capacity of promoting plant health in a balanced agro-ecological system variably using economically available technologies especially in plant selection, biological fight, cultivation methods and regulatory measures.

CHAPTER II - PROTECTION AGAINST HARMFUL ORGANISMS

I - Biological means

Article 4 - (1) Biological PROTECTION shall be realized by research institutes or other Agricultural institutes offering plant protection services, agricultural extension services, farmers and farmer's organization as well as other concerned Administration.

Article 5 - Any institution desiring to promote the use of foreign biological fighting agents must obtain an authorization from the Minister in charge of Agriculture. To this effect, the application file for the authorization shall comprise the following documents:

A stamped application;

An introduction programme which spells out the following:

- preliminary studies on the identity of the harmful organisms, pertinent information on it's origin and the importance of the damage caused as well as experiences acquired elsewhere with harmful organisms;
- results of inquiries and surveys in the areas of origin of the biological fighting agent;
- description of the quarantine unit;
- the production and release methods of the biological fighting agent.

Article 6 - Before undertaking any release, the promoter shall make sure that the damage caused by the harmful organism justifies the effort to fight and that the introduction of a biological fighting agent constitutes a judicious approach.

Article 7 - (1) The exotic biological fighting agent shall first of all be confirmed prior to their production and release on a large scale.

(2) Releases shall be done in precise zones on the authorization of the Minister in charge of Agriculture.

(3) The release conditions shall be fixed and defined by the Minister in charge of Agriculture.

Article 8 - After every release, the promoters shall evaluate the impact of the biological fighting agents both on the population of the harmful organism as well as on the non-target organisms.

II - Integrated protection of crops

Article 9 - The fight against harmful organisms shall be done following the integrated protection principles with the aim of:

- reducing dependence vis-à-vis the phytosanitary products;
- exercising a better control on the use of phytosanitary products;
- Reducing the risks related to abusive and inappropriate use of phytosanitary products.

Article 10 - The implementation of the integrated fight and the establishment in priority of this approach implies the participation of farmers through the following:

- the supply of necessary assistance and resources to promote initiatives aimed at the adoption and use of the integrated fight;
- the support of research activities involving farmers;

support to the organization of training courses bringing together farmers, researchers and extension workers;

- the sensitization of consumers on the quality of agricultural products;
- the training of producers on the integrated protection practices.

CHAPTER III - INTERVENTIONS AGAINST MAJOR PESTS AND OTHER HARMFUL ORGANISMS

I - Interventions on major plagues

Article 11- (1) The State shall provide direct support to phytosanitary interventions relating to major pests.

(2) Phytosanitary treatments within the framework of interventions shall be done either through specialized services of the Ministry in charge of Agriculture or by any public or private institution appointed to this effect.

(3) Once decided upon, the said interventions shall be systematic and mandatory for all farming unit.

Article 12 - The Minister in charge of Agriculture shall prescribe the phytosanitary measures on major pests. He shall fix by an Order the list of major pests and update it when need arises.

II - Alert and the fight against other harmful organisms

Article 13 - (1) The Authority in charge of phytosanitary protection shall disseminate throughout the national territory information on the harmful organisms and on the necessary preventive and curative treatments for the good sanitary state of the plants and their products.

(2) To this effect, it shall design or put in place alert and intervention systems, the objective of which shall be to monitor the alerts and interventions.

Article 14 - (1) The fight against harmful organisms shall be implemented and led by farmers

or farmer organizations. This shall be carried out at the time the circumstances permit following the integrated approach provided for in article 10 above.

(2) The use of phytosanitary products shall be done with due respect for good phytosanitary practices.

Article 15 -The competent services of the Ministry in charge of Agriculture, in collaboration with other concerned administrations and institutions shall support farmer organizations in the following domains:

- the organization, structuring and putting in place of intervention units;
- the development and extension of technical itineraries;
- the training on good phytosanitary practices;
- the elaboration and presentation of strategies for the fight against harmful organisms;
- the evaluation of risks related to the use of pesticides.

Article 16 (1) - The Minister in charge of Agriculture may prescribe by Order the treatments and necessary measures for the prevention of the propagation of harmful organisms on the farm.

(2) He may equally forbid risky practices which may cause the development and dissemination of harmful organisms following the same modalities.

(3) If a proprietor refuses to affect the treatments and measures mentioned in paragraph (1) above officials for plant inspection and control shall take necessary measures for their execution. They shall forward a copy to the competent administrative authority.

(4) The operations of the fight shall be effected by a certified structure and under the control of the plant protection services.

(5) The expenses of the operation shall be charged to the proprietor.

(6) In case of non-payment by the concerned within three (03) months the or at all times that the treatment is ensured by the plant protection services, the recovery shall be carried out as in direct contributions on roll drawn up by the sworn officials in charge of plant control.

Article 17 - (1) Farmers shall use the following only:

- released or temporarily authorized pesticides complying with international standards
- pertaining to distribution and use of pesticides;
- phytosanitary products for use indicated on the label;

services of personnel trained in the field by the services in charge of plant protection or agricultural extension or any other specialized structure.

(2) Furthermore, they shall:

- apply phytosanitary products on surfaces and structures that were used for the production, transport, transformation and the storage of agricultural or forestry products;
- apply them with care in order to avoid endangering human and animal health and in preserving the environment.

(3) It is forbidden to employ children under fifteen years of age and pregnant women in crop protection work.

Article 18 - Phytosanitary products shall be stored in places presenting no risk for human and animal health or the environment.

III - Final provisions

Article 19 - Texts from the Minister in charge of Agriculture shall precise, when need be, the implementation modalities of this decree.

Article 20 - All previous provisions contrary to the present decree are hereby repealed, especially those of Decree No. 92-233-PM of 25 May 1992 to fix the implementation modalities of Law No. 90-013 of 10 August 1990 on phytosanitary protection.

Article 21 - This decree shall be registered and published following the emergency procedure, then inserted in the Official Gazette in French and English.

Yaoundé, 6 April 2005

The Prime Minister Head of Government

INONI Ephraim

4.3.3. DECREE N° 2005/0771 /PM of 06 APRIL 2005 to fix conditions of plant quarantine operations

THE PRIME MINISTER, HEAD OF GOVERNMENT,

Mindful of the Constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No. 92/O89 of 4 May 1992 to define the duties of the Prime Minister modified and completed by Decree N°95/145 of 5th August 1995;

Mindful of Decree No. 2004/320 of 8th December 2004 to organize the Government;

Mindful of Decree No. 2004/321 of 8th December 2004 to appoint a Prime Minister,

DECREES

CHAPTER I: GENERAL PROVISIONS

Article 1 - This decree shall fix conditions for the execution of plant quarantine operations.

Article 2 - Within the context of this decree, the following shall mean:

Phytosanitary risk analysis: consistent process of evaluating biological proofs or other scientific or economic data to determine if a harmful organism should be checked as well as the severity of eventual phytosanitary measures to be taken against it;

Phytosanitary certificate: an official document established following the pattern of the International Convention for Crop Protection of the FAO, issued by the Phytosanitary Authority and which certifies the phytosanitary state of all released products;

Destination inspection: inspection carried out outside the entry and exit points, especially in the final destination places of imported parcels or consignments;

Inspection on site: inspection carried out between the entry and exit points;

Integrated protection: approach of fighting harmful organisms based on the ecological principles and which reinforces farmers' capacity to promote crop health in a balanced agro-ecological system, making use of economically available and sustainable technologies, especially variety selection, biological fight, cropping methods and regulatory measures;

Official campaign: active implementation of the regulations and phytosanitary procedures in a mandatory manner with the objectives of eradicating or checking quarantine organisms or the fight against pests, whether regulated or not;

Quarantine organism: harmful organism which has a potential importance for the economy of the threatened zone, which is not yet present in the zone or that is present but not largely disseminated and is officially fought against;

Entry and exit points: all ports, airports, post offices, land border points designated for the importation of parcels and/or for the entry of passengers.

CHAPTER II: PHYTOSANITARY PROTECTION AND SURVEILLANCE OF THE TERRITORY

I - Import licenses

Article 3 - (1) Without prejudice to commercial laws and regulations, import licenses shall be issued, depending on the origin and only for products presenting high risks of spreading quarantine organisms, by the Department in charge of regulation and quality control of inputs and agricultural products.

(2) The list of plants and plant products, soils and areas of cultivation of products presenting high risks of spreading quarantine organisms, shall be published by Order of the Minister in charge of agriculture and regularly updated according to the evolution of phytosanitary risk analysis.

Article 4 - (1) In a situation considered as presenting a very high risk of introduction of quarantine organisms, the Ministry in charge of Agriculture may demand the inspection of plants, plant products, soils or cultivation areas considered as suspect in the exporting country before the issuance of the import license.

(2) The charges for obtaining the import license shall be borne by the importer.

Article 5 - (1) The granting of an import license is subject to constituting and forwarding a file to the Authority in charge of Phytosanitary Protection latest one month before the date of the first loading.

(2) The file mentioned in paragraph (1) above shall comprise:

- stamped application with exact address of the producer or the quarantine station having realized the plant, plant products, the expel date of arrival of the products in Cameroon, as well as the entry point in Cameroon and the quantity and variety of the products to be imported, the cultivation zone of the product concerned;
- a photocopy of the pro-forma invoice specifying the means of transportation, the importer's address the port of shipment as well as the address of the supplier.

II - Phytosanitary certification

Article 6 - (1) Phytosanitary certification shall consist of the:

- phytosanitary inspection operations;
- eventual phytosanitary treatments;
- issuing of reports and attestations of phytosanitary inspections;
- issuing of phytosanitary certificates.

(2) The inspection charges and other necessary activities for the establishment of phytosanitary certificates shall be borne by the user respectively.

(3) The charges shall be jointly fixed by the Ministers in charge of Finance and Agriculture.

Article 7- Phytosanitary certificates attached to export parcels shall be issued at the exit points by the authorities of phytosanitary police posts after a concluding phytosanitary inspection.

Article 8 - At importation, articles regulated as high-risk introduction products of quarantine organisms shall be accompanied by a phytosanitary certificate or origin respecting the conditions and requirements of the import license related to them. After verification, a phytosanitary certificate for re-exportation shall be issued to this effect.

Article 9 - Plants and plant products in transit must be accompanied by a phytosanitary certificate of origin. After verification of the packets, a phytosanitary certificate of re-exportation shall be delivered to this effect.

III - Verification for phytosanitary conformity of parcels

Article 10 - Parcels with high risk introduction products of quarantine organisms shall be subject to phytosanitary conformity verification before their use or distribution on the national territory at the expense of the importer.

Article 11 - The verification for phytosanitary conformity products and parcels presenting high risks of spreading quarantine organisms shall be carried out by the laboratories of the Authority in charge of plant quarantine or any other laboratory recognized by the Minister in charge of Agriculture.

Article 12 - (1) The sampling shall be carried out by sworn officials in charge of phytosanitary inspection in accordance with scientific norms in the domain and, as much as possible, in the presence or the proprietor.

(2) In the case of the non-contestation of the analysis results, the test sample kept by the phytosanitary police post shall be returned to the user within two (02) months upon request.

IV - Phytosanitary treatment at importation and exportation

Article 13 - (1) The objective of phytosanitary treatment shall be the elimination of harmful organisms detected during the phytosanitary inspections of regulated articles or the prevention of their dissemination.

(2) They shall be prescribed and supervised by the services in charge of plant quarantine and carried out by registered bodies under the Ministry in charge of Agriculture in following modalities defined in a specifications record.

(3) The expenses involved shall be borne by the user.

(4) The list of these companies shall be regularly updated and published annually.

Article 14 - (1) The treatment mentioned above shall give rise to the issuance of a phytosanitary treatment attestation by the institution or company having realized the said treatment.

(2) The attestation cited in paragraph (1) above shall be requested for during the establishment of the phytosanitary certificate.

V- Publication of the lists of regulated Quarantine operations

Article 15 - (1) The Ministry in charge of Agriculture shall fix annually, by regulation, the list of all regulated pests. He shall take all phytosanitary measures deemed useful against them with a view to reducing their incidence on plants and plant products. To this effect, he shall fix:

- the list of plants, plant products, soils and cultivation areas of which the production, importation and exportation are prohibited in Cameroon;
- the list of plants, plant products, soils and cultivation areas submitted to a production declaration, the import and export as well as the special conditions which related to them and for which an official fight could be engaged.

Article 16 - (1) The Minister in charge of agriculture may establish, by Order, a quarantine area within the national territory in case of a declared epidemic or the appearance of a harmful quarantine organism.

(2) In the case of the delimitation of quarantine areas within the national territory, the movement of plants, plant products, soils and cultivation areas towards or outside these areas, shall be submitted to the acquisition of a special phytosanitary certificate.

(3) The Authority in charge of Phytosanitary Protection shall decide on the conditions under

which plants, plant products, soils and cultivation areas as well as packages and other forms of packaging likely to serve as supports to harmful organisms, may circulate in the national territory.

CHAPTER III - MODALITIES FOR THE INTRODUCTION OF BIOLOGICAL FIGHTING AGENTS

Article 17 - (1) The import of exotic biological fighting agents shall be subject to the acquisition of an import permit.

(2) To this effect, the importer must produce a file comprising the following:

- the specificity of the biological fighting agent;
- the entry point;
- the persons or organizations susceptible to receive the parcel;
- an introduction programme;
- the preliminary studies on the identification of the harmful organism;
- all pertinent information on its origin and importance of damage occasioned as well as the experiments carried elsewhere with the harmful organism;
- the results of inquiries and exploration in the area of origin of the biological fight agent;
- the description of the quarantine unit of the importing organization;
- the conditions for production and release of biological fighting agents;
- the envisaged fighting methods in case of release or accidental dispersion.

Article 18 - In the case of the successive import of the agent destined for use in biological fighting, in the integrated protection or even as bio-pesticide, only the agents with a quality similar to that of the first approved import may be authorized and released.

Article 19 - Prior to all import, the importer must ensure:

- their conformity to international norms in the domain of labelling, conditioning and advertisement;
- that the biological fighting agents had been submitted to an assessment of their effects on human and animal health and on the environment.

Article 20 - All parcels must keep documents containing information on:

- the identity and the mode of identification mode of the biological fighting agent;
- the handling and transportation of the parcel in all safety;
- rearing or cultivation conditions;
- the methods for handling the agent;
- the contaminants, their identification and eradication.

Failure to comply with the above requirements will expose the products to repatriation or to destruction.

CHAPTER IV - PHYTOSANITARY INSPECTION AND THE MISSIONS OF SWORN OFFICIALS

ARTICLE 21 - (1) The objective of phytosanitary inspection shall be to prevent:

- the introduction or the propagation of regulated organisms;
- the contamination by harmful organisms or the quarantine of plants and plant products in the process of processing and packaging.

(2) Phytosanitary inspection shall be a requirement for plant quarantine to be fulfilled by physical and moral persons ensuring responsibility for:

- import or export of plants, plant products, soils or cultivation areas;
- production fields for plants destined for international trade or of seed production fields;
- warehouse stocking of plants and plant products destined for international trade;
- production and plants and plant products transformation units as well as the means of transportation and parcel post offices;
- Commercialization of plants, plant products designed for local markets as well as for export.

(3) Inspection shall be carried out at the initiative of the officials in charge of plant quarantine or at the request of physical or moral persons involved in the activities mentioned in paragraph (2) above.

Article 22 -Following the phytosanitary state realized after inspection of the product to be imported or exported or to be distributed, sworn agents in charge of phytosanitary inspection shall, as may be the case:

- authorize the use or distribution;
- undertake an emergency action;
- refuse the issuance of a phytosanitary certificate;
- place the products in quarantine for observation or their repatriation;
- treat them, cause them to be treated or proceed to their destruction in case of infestation.

(2) The expenses of the treatment, repatriation and destruction shall be borne by the user.

Article 23 - (1) The inspection and the other necessary activities for the establishment of phytosanitary certificates shall only be entrusted to the Administration in charge of plant production.

I - Phytosanitary inspection of plants, plant products, soils and cultivation areas

Article 24 - (1) The phytosanitary inspection of plants, plant products, soils or cultivation areas shall be realized on the entire freight or on a representative sample.

(2) It shall take place on the entire national territory or on other areas where plants and plant products are cultivated as well as on areas used for the cultivation of internationally destined plants.

(3) It shall particularly be carried out at the entry and exit points of the national territory, eventually at the station of the plant quarantine or at the sites of production, processing and the packaging of products destined for export as well as ship holds, plane luggage compartments and parcels post offices destined for Cameroon.

(4) However, phytosanitary inspection posts for plants, plant products, soils and cultivation areas outside the services of phytosanitary police situated at the entry and exit points of the national territory, may be realized at the request of the user after the authorization of the Authority in charge of the phytosanitary protection.

(5) When the phytosanitary inspection is taking place outside the local place of service, the team in charge should be composed of at least two (02) sworn officials from the services in charge of the phytosanitary police.

(6) In the same way, when the phytosanitary inspection involves the movement of the phytosanitary authority from his place of work situated at the entry and exit of the national territory, the cost of the movement shall be borne by the user.

II - Inspection of seed and plant production farms

Article 25 - Any physical or moral person producing plants, suckers, grafting, graft carriers or linear deep-rooted plants aimed at multiplication as well as for seed, shall register himself at the competent services under the Ministry in charge of Agriculture.

Article 26 - (1) In the event of the presumption of the presence of a harmful organism in the establishments or in places of multiplication, a treatment or placing in quarantine shall be ordered until complete disinfection.

(2) The proprietor or the exploiter shall then carry out phytosanitary measures within the prescribed deadlines and bear the charges.

Article 27- (1) Within the framework of seed certification, phytosanitary inspection on the seed production farms shall be realized systematically on the entire exploitation by the services in charge of phytosanitary protection or by any competent certified organism.

(2) In the fields of the production of other plants, the inspection shall be done on the entire exploitation at the request of the exporter when required by the importing country.

(3) The frequency of inspection shall vary with the plant species cultivated in accordance with the biology of the harmful organisms concerned. In each case, a minimum of two (02) inspections spread out in time shall be carried out in a planting season.

(4) In each of the cases defined in the paragraphs above, phytosanitary inspection shall be followed by the deliverance of an inspection attestation in the course of the planting period.

Article 28 - The inspections and phytosanitary analyses in carried out by laboratories specialized in seeds and plants imported or exported may only be done by the services in charge of phytosanitary protection.

III - Phytosanitary inspection of other regulated articles

Article 29 - (1) The inspection of other regulated items destined for international commerce shall also be carried out throughout the national territory.

(2) That shall be done essentially at the entry and exit points of the national territory, eventually at for exportation as well as in the holds of ship, plane luggage compartments and parcels postal offices leaving or destined for Cameroon.

Article 30 - The phytosanitary inspection of post office parcels shall be done within the services in charge of postal parcels, eventually in the areas of the officers in charge of international correspondences following conditions defined by regulations.

Article 31 - (1) With regard to stores or warehouses for plants or plant products destined for international exchanges, the phytosanitary inspection shall be done on the entire installations.

(2) In the units designed for processing and packaging plants and plant products destined for international exchanges and for the local markets, the inspection shall be done on the sites for production, processing and packaging chain as well as in the internal warehouses of the units.

(3) These be shall done at least two (02) times a year, followed by a written inspection report.

Article 32 - (1) The inspection of the means of transport for plants and plant products destined for international and local exchanges shall exclusively be done at the entry and exit points of the national territory. This shall be effected in:

- the luggage compartments and plane cabins of planes carrying out international flights;
- holds and cabins of ships involved in international transport;
- all trains, vehicles and any other transport means for plants and plant products.

(2) This gives right to the issuance of a phytosanitary inspection written report.

CHAPTER V - MISSIONS OF SWORN OFFICIALS AND PROSECUTION OF OFFENDERS

I - Missions of sworn officials

Article 33 - (1) To facilitate the execution of their duties, the phytosanitary inspectors and controllers shall have access to different bills of lading and international forwarding documents.

(2) In the discharge of their duties, the sworn officials may oppose the distribution of plants and plant products, postal parcels which are not in line with national phytosanitary regulations.

(3) They shall sample out all sent international parcels containing plants or plant products in the presence of the proprietor according to the scientific rules in the domains.

Article 34 - (1) In conformity with the law, the sworn officials shall fulfil their task as judicial police officers with special competence in matters of import, export and the management of plants, plant products and other regulated articles.

(2) They shall establish an official report of facts, the seizure of plants, plant products, soils and introduced or used cultivation areas introduced or used in violation of the provisions of the law and the statement of offence.

(3) The statement written and signed by the sworn official in the presence of the proprietor shall be held as authentic and accurate until proven false.

Article 35 - The officers in charge of phytosanitary inspection of plants, plant products and other regulated articles, within the exercise of their functions and in conformity with law procedures in force, may:

- request the assistance of the forces of law and order for the search and seizure of plants and plant products introduced, sold, circulating fraudulently or to obtain the identification of the offenders;
- check localities, trains, ships, vehicles or aircrafts, transporting or likely to transport or even house the said products;
- order phytosanitary treatment, the destruction or the repatriation of plants, plant products and other regulated articles at the expense of the promoter;
- affix seals.

Article 36 - (1) The sworn official charge of phytosanitary protection shall take oath before any territorially competent court of first instance under the conditions of common law, at the behest of the phytosanitary authority.

(2) - They shall be obliged to wear uniforms and to present their professional cards and mission order at request.

(3) - The phytosanitary inspector or controller loses his function as such once the sworn official no longer works in a phytosanitary regulated structure.

II - The prosecution of offences

Article 37 - (1) Any violation to the provisions of this decree, especially the import of plant and products, soils and cultivation areas without permit or phytosanitary certificate, shall lead to the seizure, the destruction or repatriation of the stock at the expense of the offender, without prejudice to, legal action provided for by the law.

2- The measures taken shall be recorded in a written report co-signed by the sworn official and the offender. The report shall be held as a true record of the facts stated therein until proven false.

3- The report shall be forwarded to the territorially competent procurator of the Republic.

CHAPTER VI: FINAL DISPOSITIONS

Article 38- The provisions of this decree also apply to plants and plant products, soil and cultivation areas in transit whose conditioning presents a risk of introduction or propagation of regulated harmful organisms.

Article 39- All previous contrary, especially those of Decree N° 92/233/PM of 25 May 1992 fixing the modalities of the implementation of law N°90/013 of 10 August 1990 on phytosanitary protection are hereby abrogated.

Article 40-This decree shall be registered and published following the urgent procedure and then inserted in the Official Gazette in French and English./-

Yaounde 6th April 2005

The Prime Minister,

Head of Government
INONI EPHRAIM

4.3.4. Decree N° 2005/0772 /PM OF 06 April 2005 to fix conditions of plant quarantine operations

THE PRIME MINISTER, HEAD OF GOVERNMENT

Mindful of the Constitution:

Mindful of Law NO 2003/003 of 21 April 2003 bearing Phytosanitary Protection;

Mindful of Decree No, 92/089 of 4 May 1992 to precise the attributions of the Prime Minister, modified and completed by Decree No, 95/145 of 5 August 1995;

Mindful of Decree No 2004 /320 of 8th December 2004 on the organization of the Government;

Mindful of Decree No. 2004/321 of 8th December 2004 on the appointment of a Prime Minister

DECREES

CHAPTER I: GENERAL PROVISIONS

Article 1 - This decree shall fix the conditions of release and the control of phytosanitary products.

Article 2 - Within the context of this decree, the following shall mean:

Antagonist: organism which does not cause serious destruction but whose presence protects the host from the damage of other harmful organisms;

Bio-pesticide: a generic term generally applied to a biological fighting agent most, often a pathogen, formulated and applied in an analogous manner to a chemical pesticide and normally used to rapidly reduce the population of a harmful organism in a short term fight;

Release: process at the end of which the competence authority approves the import, distribution and use of a phytosanitary product, after a complete scientific data showing that the product is efficient for the intended use and does not present any risks to human, animal health and the environment, in the recommended conditions of use;

Entry or exit points: airports, river or maritime ports, centres for parcels postal offices or officially designated land frontier points;

Phytosanitary products: pesticides, bio-pesticides and other substances destined for use as a regulator for the growth of plants, as defoliant, desiccating agents, fruit lighteners or products Used to stop the premature falling off of fruits as well as substances applied on crops, before and after harvest to protect the produce from deterioration during storage in warehouses or during transportation.

Residues: specific substances left by a phytosanitary product in agriculture products or in food.

CHAPTER II: RELEASE PROCEDURE

I - Release

Article 3 - Any phytosanitary product shall first and foremost be subjected to the release procedure before its import, distribution and use.

Article 4 - (1) The release shall comprise the following operations:

a) chemical analysis of a sample taken from the product done by nationally recognized laboratory or one recognized abroad,

b) the biological efficiency tests for use indicated during one (01) to two (02) agricultural cycles which are realized by a research institute for:

new phytosanitary products;

- the extension of the release of a phytosanitary product in view of the control of enemies other than those for which it was initially released.

(c) Pre-extension tests for at least one (1) agricultural cycle carried out by the service of plant protection of the Ministry in charge of Agriculture in the event of a concluding biological efficiency test.

(d) joint bio-efficiency and pre-extension tests for at least one (1) agricultural cycle for:

- phytosanitary products whose active substance is well-known and released, but presented under another formula,
- new phytosanitary products whose biological efficiency trials have been concluded during the first year of experimentation;
- The modification of a known commercial specialty or the modification of active substances in a given commercial specialty,

(2) The expenses of the operation in paragraph (1) shall be borne by the promoter.

Article 5 - (1) The implementation of the tests cited in article 4 (above) shall be ordered by the Minister in charge of Agriculture.

(2) The latter may either prohibit or authorize them subject to all the conditions deemed necessary for preventing hazards and risks for human, animal health and the environment.

Article 6 - (1) Prior to applying the tests mentioned above, preliminary dose screening tests may be done in order to determine the dose in an active substance or of the products formulated for use and to enlighten the producer on the efficiency of the phytosanitary products vis-à-vis the harmful organism targeted.

(2) The preliminary tests shall be jointly executed by phytosanitary firms and certified research Institutions or specialized structures certified by the Minister in charge of Agriculture, operating in this domain.

(3) Reports of the said tests shall be presented to the competent authority upon request for them to complete any information it possesses.

Article 7 - (1) The release of a phytosanitary product shall require the promoter or distributor submit a file consisting of the following documents;

- a stamped application for the release of the specialty;
- a description form;
- technical documents;
- an analytical document;
- a toxicological document;
- eco-environmental documents;
- an original labelling pattern or its sketch;
- a sample for reference of the active matter(s) contained in the specialty and a sample of the specialty;
- release attestations or certificates issued in other countries;
- a report of biological efficiency and pre-extension tests;
- an analysis bulletin issued by a laboratory certified by the Ministry in charge Agriculture;
- a certificate of origin issued by the Chamber of Commerce of the country of origin of the phytosanitary product or by any other competent structure;
- A report of the residual content tests of the phytosanitary product in the treated plants or plant products;
- the name and description of the local representative.

(2) The file cited in paragraph (1) above shall be submitted in three (03) copies at the secretariat of the Commission against a receipt at least four (4) weeks before the holding of the session.

Article 8 - For bio-pesticides release, the promoter shall submit a file comprising the following documents and information:

- precise identification of the targeted harmful organism and its presumed origin;
- an evaluation of its importance;
- a precise identification form or a sufficient bio-pesticide characterization in order to identify it without ambiguity;

- a list of its auxiliaries and their impact in the spread zone;
- an analytic form of the bio-pesticide specificity and all the potential risks which it may present to the non-target hosts;
- the proposed contamination agents and the laboratory elimination procedures of their colonies;
- procedures permitting the identification and elimination of crops, the host on which the pathogenic agent has been cultivated;
- the qualification of persons susceptible to manipulate bio-pesticides under laboratory conditions, of production and in the field;
- risks on the health of humans and animals which are likely to be exposed;
- a study of the impact on non-target organisms and on the environment;
- a description of emergency procedures if the bio-pesticides, after spraying, causes unforeseen undesirable effects;
- a detailed report of laboratory analyses or field observations on the scale of known and potential antagonists;
- the nomenclature of used additives in the formulation;
- a report of the biological efficiency tests;
- an analysis bulletin delivered by a laboratory appointed by the Minister in charge of Agriculture;
- the description of quarantine installations;
- The credentials of the staff.

II - Renewal of release

Article 9 - (1) the company, owner of the active substance mark or the commercial specialty, may apply for the renewal of the release approval

(2) The application for the renewal of release approval shall be forwarded to the Commission at least six (6) months before the expiry date of the release and shall include the following documents

- data on the toxicity on man;
- available environmental data
- data on the maximum limits of the residue:
- report of remote effects of the phytosanitary products on successive crops;
- a monitoring report of the phytosanitary product after eight (8) years of use.

III - The modification and treatment of the release

Article 10 - The release of phytosanitary products shall be modified if proven that the direction for use is modified or that the applied doses have been modified.

Article 11 - (1) The withdrawal of the release of a phytosanitary product may be ordered in cases where the said product:

- is no longer effective against the target enemy;
- presents undesirable effects on the plants and plant products;
- has an adverse effect on human and animal health within the normal conditions of its use.

(2) The withdrawal of the release may also occur;

- when incorrect or fallacious indications have been given in the data on the basis of which the release approval was granted;
- at the request of the owner of the mark.

Article 12 - The holder of a release shall imperatively communicate to the phytosanitary authority any new information relating to potential dangers of a phytosanitary product or its residue on human, animal health or the environment.

IV - Transfer of release approval

Article 13 - (1) Upon the request of the holder firm, a release may be transferred to another firm.

(2) The firm owning the release shall furnish a file the transfer comprising these documents:

- a stamped application;
- a copy of the release Order
- an agreement of the release transfer, jointly signed by the holder and the firm applying for the acquisition of the release.

(3) The release transfer gives rise to the issuance of an attestation of the cession of the release signed by the Phytosanitary Authority.

V- Research, teaching and emergency situations

Article 14 - Without prejudice to the provisions of article 10 above, the import of small quantity phytosanitary products for experimentation or use, when not released or in case of not obtainment of a provisional sale authorization, may receive a special authorization from the Authority in charge of Phytosanitary Protection to:

- research institutions;
- agricultural extension services;
- phytosanitary products analyses laboratories;
- phytosanitary research unit firms installed all over the national territory;
- teaching institutions.

Article 15 - In the event of calamities and in the absence of a released phytosanitary products this effect, the Minister in charge of Agriculture may authorize the immediate use of a non- released phytosanitary product:

- if no equivalent released product is available on the market and that the active matter is known by competent international organizations;
- if the said product benefits from authorized placement on the markets in the country of origin or when it is already used elsewhere for similar reason;
- if it is not subject to a withdrawal of its authorization for placing on the market in a third country or if it does not belong to the group of persistent organic pollutants.

CHAPTER III: CERTIFICATION OF TREATMENT APPARATUS

Article 16 - (1) Any phytosanitary treatment model and type of apparatus of treatment shall be submitted to the procedure of certification prior to its import, distribution and use, in conformity with international norms in that matter.

(2) The certification shall comprise the following operations:

- control tests for technical specifications realized in a specialized laboratory or any other institution specially endowed by the Minister in charge of Agriculture;
- performance test in the field realized by the Minister in charge of Agriculture.

(3) The expenses arising from these tests shall be borne by the promoters.

Article 17 - The certification mentioned in article 16 above mainly applies to the following types of apparatus:

- manual back sprayers;
- motorized back sprayers;
- backpack sprayers;
- centrifugal sprayers;
- thermic nebulisation apparatus;
- powder sprayers;
- Granule sprayers;
- Cooling nebulizers;
- Traction apparatus.

Article 18 - (1) For the purpose of certification of phytosanitary treatment apparatus, the promoter shall furnish a file comprising the following:

- a) a stamped application carrying the marks of the apparatus and information on its technical specifications;
- b) a user's manual containing the information here below:
 - initial assembly;
 - identification of all spare parts, accompanied by a broad and detailed view of the whole apparatus;
 - regulating and calibre levers;
 - cleaning and safe discharge of waste liquids;
 - usual maintenance and storage;
 - security and habitual use in the field;
 - the safe release of pressure in the tank and spear;
 - the durability of the constitutive materials;
 - the flow of buzzards and spurts, the quality of the fountain or of the cloud of smoke and the characteristics of the droplets;
 - the calibre of the buzzard and the pressure of service to be used;
 - the precautions to take in reducing contamination of the users and pollution of the environment;
- c) a report of the tests of technical specification control;
- d) a report of performance tests issued by the Authority in charge of phytosanitary protection;
- e) an engagement to ensure service after sale and placing on the markets spare parts;
- f) a sample of the apparatus or a report of performance tests jointly realized by the importing firm and technical services of the Ministry in charge Agriculture.

(2) The file mentioned in paragraph (1) above shall be submitted at the secretariat of the Commission in three (3) copies against a receipt latest four (4) weeks before the holding of its Session.

Article 19 -Treatment apparatus sold or used shall in no case present any danger to the users.

They should easily and worthily be used in the normal using conditions. They shall respect the defined characteristics prescribed by the Phytosanitary Authority, failing of which, international requirements must be respected.

CHAPTER IV: NATIONAL COMMISSION FOR PHYTOSANITARY PRODUCTS RELEASE AND CERTIFICATION FOR TREATMENT APPARATUS

Article 20 - A National Commission Phytosanitary Products Release and Certification for Treatment Apparatus (hereinafter called the "Commission") is hereby created under the Ministry in charge of Agriculture, for the purpose of:

- deciding on release files of phytosanitary products and files relating to renewal of release;
- Suggesting on the certification files of phytosanitary treatment apparatus;
- giving an opinion on the restriction or banning of the use of a phytosanitary product or on the withdrawal of the release;
- Giving a technical opinion on any file confided to it;
- Validating the experiments protocols.

Article 21 - (1) Presided by the Minister in charge of Agriculture or his representative, the Commission shall be composed and besides as follows;

- Two (2) representatives of the Minister in charge of Agriculture;
- Two (2) representatives of the Minister in charge of scientific Research;
- One (1) representative of the Minister in charge of Higher Education'
- One (1) representative of the Minister in charge of Livestock;
- One (1) representative of the Minister in charge of Public Health;
- One (1) representative of the Minister in charge of Environment and Nature Protection;
- One (1) representative of the Minister in charge of Commerce;
- One (1) representative of the Minister in charge of Energy and Water.

(2) The members of the Commission shall be appointed by the Minister in charge of Agriculture following proposal from the Administration of origin.

(3) The President of the Commission may invite any person, based on his competence on an issue on the agenda of the day, to take part in the Commission's deliberation with a consultative voice.

(4) The secretariat of the Commission shall be performed by the Department of regulation and quality control of agricultural inputs and products;

Article 22 - The Commission shall meet twice a year and as often as need be at the convocation of its Presidents at the meeting.

Article 23 - The convocation to the session shall be in writing and forwarded to members fifteen (15) days before the fixed date of the meeting. They shall specify the agenda and the venue of the meeting.

Article 24 - (1) The decisions of the Commission shall be taken by a simple majority of the members presents.

(2) They shall be recorded in a report and countersigned by the President of the Commission and the Secretary.

Article 25 - The Commission shall examine the files mentioned in article 20 above and shall deliberate on one of the following measures.

- the maintenance of the phytosanitary product under study within period scheduled following the amplitude of the problem discovered;
- the provisional sale authorization for a period of two (2) years non-renewable, following the nature of the problem;
- the release of a phytosanitary product for the indicated uses for a period of five (5) years, renewable once by a tacit carry forward;
- the modification or extension of the users of a phytosanitary product;
- the cancellation of a provisional sale authorization;
- the withdrawal of the release;
- the renewal of a release;
- restriction.

Article 26 - The release shall be granted to commercial specialties and not to active substances. It is also given on the basis of scientific and technical knowledge and during a usage that is in conformity with the indications on the label and good phytosanitary practices. It is clear that:

- the phytosanitary product is effective against the target enemy;
- the phytosanitary product does not have a direct or indirect adverse effect on the health of human, animal health or on the environment in the normal conditions of use;
- from the toxicological and environment perspectives, major component may be determined.
- the nature and quantity of active matters impurities and other important elements, from the toxicological and eco-toxicological approaches may be determined with the help of experimented methods;
- the residues resulting from the accepted uses and the characteristic from the toxicological and environment viewpoints may be determined with the help of experimented methods;
- the physical and chemical properties are judged as convenient;
- the maximum limits of the residues, determined by the Phytosanitary authority or any other competent international organization in the domain are known;
- residual remains of the phytosanitary product in the treated products are short of the maximum limit of the residue.

Article 27 - The deliberations of the Commission shall be competed to execution by Order from the Minister in charge of Agriculture.

Article 28 - (1) The promoter shall have the right to repeal and may, to this effect, request for re-examination of a file when he feels that the decision taken against him appears to be unjustified.

He may:

- either request to be heard by the Commission. To this effect, he could be assisted by a certified expert of his choice; or
- apply to the Minister in charge of Agriculture for a re-examination of the decision within thirty (30) days following the notice of the results of the session, at the pain of being time-barred.

(2) The re-examination or hearing shall take place during the next session.

Article 29 - The functions of the President and Commission members shall be free of charge, However, the members shall benefit from working facilities necessary for the accomplishment of their missions.

Article 30 - The functioning financial needs of the Commission shall be borne by the budget of the Ministry in charge of Agriculture.

CHAPTER V: ACTIVITIES RELATED TO PHYTOSANITARY PRODUCTS

I - The importance of phytosanitary products

Article 31 - (1) Without prejudice to the laws and regulations on commerce, the import of phytosanitary products shall be declared to the Authority in charge of phytosanitary protection by the importer.

(2) Importation shall be exclusively reserved for the local representatives of phytosanitary firms owning release authorizations. However, in emergency cases of a fight against major pests, the Phytosanitary Authority may import released phytosanitary products.

Article 32 - (1) The declaration mentioned in article 31 above shall contain the following:

- the exact address of the trademark or supplier;
- the probable arrival date of the arrival of the products in Cameroon as well as the entry point;
- the name and quantity of pesticides imported as well as the countries of origin and destinations;
- the means- of transportation and attestation of importation transfer signed by the holder of the release;
- the importer' s address or that of the supplier as well as the distributors.

(2) The file shall be submitted to the Department of regulation and control of agriculture products at least one (1) month before the forecasted date of shipment.

Article 33 - The containers of pesticides or bio-pesticides in transit through the national territory or containing pesticides made, formulated or conditional in Cameroon for exportation shall be submitted to control.

Article 34 - Any importer shall furnish yearly data on the type, quantity and value of the phytosanitary products, imported for the purpose of statistics development.

II - Manufacturing formulation and packaging of phytosanitary products

Article 35 - (1) The manufacturing, formulation and packaging activities released phytosanitary products shall be submitted to registration from the Minister in charge of Agriculture prior to a renewal period of ten (10) years

(2) The registration mentioned in paragraph (1) above shall be granted upon submission of a file including the following:

- a) stamped application indicating:
 - the name and surname or the type of applicant;
 - the exact address of the trademark holder or supplier;
 - the pesticides, bio-pesticides or the biological fighting agent for application is forwarded.
- b) a certified true copy of a medical care agreement subscribed to under a medical doctor;
- c) the geographical localization of installations as well as the sources of danger of the accountable for the situation of the areas;
- d) a situation plan, a mass plan and a detailed plan of the production unit;
- e) an environmental impact assessment realized by the Permanent Secretariat for Environment in the Ministry in charge of Environment;
- f) a visit report of the installation by the competent services of the Authority in charge of crop protection;
- g) a general description of the technical process;
- h) emergency plans, comprising security equipment, alert and intervention means provided for within and without the establishment;
- i) the list of forecasted employment and their qualifications;

- j) a commitment to subscribe an insurance covering fire and other risks;
- k) a legalized commitment of the promoter to use only the Phytosanitary products which he applied for;
- l) the procedure for the elimination of the effluents, waste and packages.

III - Distribution of released phytosanitary products

Article 36 - Released phytosanitary products may be distributed or resold by physical or moral persons certified by the Minister in charge of Agriculture.

Article 37 - (1) Any physical or moral person who buys phytosanitary products for commercial purposes from phytosanitary firms based in Cameroon, or their representatives, shall be considered a distributor of phytosanitary products.

(2) The distributor shall verify that the phytosanitary products bought are released or are provisionally authorized for sale in Cameroon within the validity period.

Article 38 - The distributor of phytosanitary products shall possess a diploma from an Agriculture training institution, or holder of an attestation of training of three (3) month at least issued by a certified training institution

Article 39 - (1) The authorization for a qualified distributor of phytosanitary products and bio-pesticides issued by the Minister in charge of Agriculture and valid for a renewable period of five (5) years, shall be subject to the production of a file which comprise the following:

- stamped application;
- an information form;
- a copy of certificate or attestation;
- an attestation of presentation of original of the certificate or attestation;
- a curriculum vitae;
- a certified true copy of the past contract with the supplier of the product about to be distributed;
- a legalized commitment to respect the legislation and the phytosanitary regulations in force;
- a report on the existence of the local places signed by a sworn official of the competent;
- phytosanitary protection;
- a work contract binding the proprietor to the employees.

IV - Professional phytosanitary treatment for the benefit of third parties

Article 40 - (1) The registration for professional phytosanitary treatment to the benefit of a third party shall be issued by the Minister in charge of Agriculture for a renewal period of five (5)

(2) The applicant must be the holder of a certificate from an agricultural training institution or attestation of three (3) months training in phytosanitary training issued by a renowned institution.

In this last regard, the training shall be authorized by the Minister in charge of Agriculture.

Article 41 - The registration shall cover all or part of the activities here below:

- crops phytosanitary protection;
- treatment of stored food commodities and agricultural products;
- Cleaning up of the premises and products warehouse units, plane luggage compartments and other means of transportation;
- The treatment of Woods;
- the release of chemicals.

Article 42- (1) The applicant for phytosanitary treatment shall:

- possess headquarter, equipment and apparatus for spraying pesticides;
- procure appropriate and sufficient material for bodily protection of personnel against exposure to products during the different handlings;
- possess security material which may help in detecting eventual toxic gas leakages;
- possess a staff with technical and practical competences for the handling of agriculture pesticide;
- commit himself to make use only of released phytosanitary products;

(2) Besides, he shall produce a file comprising:

- a stamp application;
- an information form;
- a copy of certificate or attestation of training of at least three (3) months in an institute specialized in agriculture;
- an attestation of presentation of the original certificate or attestation of training;
- a curriculum vitae;
- a commitment to respect the legislation and phytosanitary regulations in forces;
- justification documents of the quality of the staff;
- a report of evidence of the existence of the premises issued by a territorially competent sworn official;
- a commitment to subscribe an insurance covering risks of fire and others;
- a work contract binding the proprietor to the employees.

V- Renewal and treatment of authorisation

Article 43 - In the event of renewal of the registration mentioned in article 39, 40, and 42 above, the promoter shall present a file comprising:

- A certificate true copy of a medical care agreement subscribed to under a medical doctor;
- An insurance covering fire accidents of the premises and infrastructure and risks of damage that the third party may suffer in the fulfilling or during the exercise of his activities;
- A legalized plan of the premises;
- Evidence of the existence of the premises issued by a sworn official territory competent.

Article 44 - Authorizations and accreditation may be subject to suspension or withdrawal by the Minister in charge of Agriculture:

- if the beneficiary fails to comply with the legislation and regulations in force;
- where these installations may constitute a source of danger to the health of humans, animals and the environment.

VI - Transfer of manufacturing, formulation, packaging units and the distribution of phytosanitary products

Article.45 - (1) The transfer of manufacturing, formulation, and packaging units or the distribution from one place or locality to another or any modification of the installations conditions shall be declared to the national competent services in charge of phytosanitary control within the national territory, failure of which the authorization shall be withdrawn.

(2) The transfer or modification of installations in mentioned in paragraph (1) above shall only be carried out after the authorization of the authority in charge of crop protection.

CHAPTER VI: CONTROL OF PHYTOSANITARY PRODUCTS AND TREATMENT APPARATUS

I - Control of phytosanitary products and the Treatment apparatus

Article 46 - (1) The control of phytosanitary products and the apparatus shall be an obligation to which physical and moral persons shall submit themselves in ensuring the responsibility of:

- import or export of phytosanitary products and phytosanitary treatment apparatus;
- production, formulation and packaging units of phytosanitary products;
- warehouses for the storage or distribution of phytosanitary products;
- means of transportation and postal parcels.

(2) The control of phytosanitary products shall be carried out all round the national territory, especially at the entry and exit points.

3) In the event of presumption of fraud during controls, the sworn officials may take some samples and have them analysed at the expense of the proprietor.

Article 47 - (1) The objectives of the control of phytosanitary products and the treatment apparatus shall aim at:

- the preventing the importation or distribution of non-released phytosanitary products;
- insuring the conformity and quality of phytosanitary products in use throughout the national territory;
- insuring the use of phytosanitary products with minimal risks on human, animal health or on the environment.

(2) This gives rise to the issuance of an attestation of the quality of pesticides or the conformity of the treatment apparatus.

Article 48 - (1) At the import, export or during distribution, the phytosanitary products and treatment apparatus shall be subject to control or quality analyses.

(2) Phytosanitary products imported, produced, formulated or packaged locally and the treatment apparatus shall be equally subject to analyses and verification for quality at the expense of the promoter before their distribution and use.

(3) In the case of the import of prohibited phytosanitary products or uncertified treatment apparatus, sworn officials in charge of inspection shall proceed to repatriate them at the expense of the proprietors.

II - Mission of sworn officials

Article 49 - (1) Post-release control of phytosanitary products, inspection of treatment apparatus in stores, warehouses, or the distribution, means of transportation, production units and packaging shall be carried out by sworn officials from the Ministry in charge of Agriculture.

(2) They shall take an oath before the Court of First Instance territorially under the conditions of ordinary laws at the behest of the Authority in charge of phytosanitary products.

3) They shall be compelled to wear uniforms and to present their professional cards and mission orders when and where required.

(4) The quality of inspector or phytosanitary controller shall be lost once the agent no longer works in a structure in charge of phytosanitary regulations.

Article 50 - (1) To facilitate the execution of their mission, the phytosanitary inspectors and controllers have access to bills lading and to different international forwarding documents. They shall have to oppose the distribution of phytosanitary products and treatment materials that are none conforming.

Article 51 - (1) The sworn officials from the Ministry in charge of Agriculture shall participate. In the pursuit and prosecution of offences committed at importation, manufacturing, packaging, the distribution and use of phytosanitary products and treatment apparatus

2) In this respect, they shall proceed to establish the facts, seize the phytosanitary products sold in bulk or retailed or non-release in circulation, as well as those treatment apparatus introduced or used in violation of the provisions of the law.

(3) A report of their operations shall be issued by the sworn officials and countersigned by the offender. The report shall be considered as evidence of the facts found therein until proven to be false. It shall be transmitted to the territorially competent State prosecutor.

Article 52 - The sworn officials in charge of controlling phytosanitary products and treatment Apparatus control may, in the execution of their functions and following the procedure provided by law and regulations in force

- request the intervention of judicial police officers for the search and seizure of phytosanitary products sold or circulating fraudulently or to obtain the identity of the offender;
- visit premises, trains, ships, vehicles or suspected plane luggage compartments susceptible to transporting or keeping the said products;
- affix seals;
- order the repatriation of phytosanitary products on the offender.

III - Control of residues

Article 53 - (1) The control of the residues of phytosanitary products in agriculture products is aimed at safeguarding the consumers' health.

(2) The taking of products samples for the analysis of the residues shall be carried out after harvest in the markets, super markets, processing units, stores and sale by skilful personnel from the Ministry in charge of Agriculture.

(3) The analyses results shall be communicated to the Minister in charge of Agriculture, who shall publish them and instructs envisaged actions in the area of information and sensitization with reference to the FAO/WHO norms in force.

Article 54 - The norms in matters of maximal limits of residues and the results of the analyses shall be communicated to the Minister in charge of Agriculture who shall publish them and prescribe envisaged actions in the area of information and sensitization.

CHAPTER VII: TRANSITIONAL AND FINAL PROVISIONS

Article 55 - The release Orders and various registrations established prior to the date of the signature of this decree shall remain in force until their expiry date.

Article 56 - Importers of treatment apparatus and persons intervening in the phytosanitary crop sector have a time limit of twelve (12) months from the date of signature of this decree to comply with the regulations and law in force.

Article 57 - All other contrary previous provisions to this decree, especially those of decree No 902-233-P M of 25 May 1992 to fix the implementation modalities of Law No 90-013 of 10 August 1990 on crop protection, are hereby repealed.

Article 58 - This decree shall be registered and published following the urgent procedure then, inserted in the Official Gazette in French and English./-

Yaounde, 06 April 2005

The Prime Minister, Head of Government

INONI Ephraim

4.4. ORDERS

4.4.1. Joint Order No. 00022/MINADER/MINFI of 4 March 2019 to lay down the costs of inspection and certification of phytosanitary products as well as the management procedures of the income from these operations

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT, THE MINISTER OF FINANCE,

Mindful of the Constitution;

Mindful of the Law No. 003/2003 of April 15, 2003 on phytosanitary protection;

Mindful of Law No. 2018/012 of 11 July 2018 relating to the fiscal regime of the State and other public entities;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2013/066 of 28 February 2013 to organise the Ministry of Finance;

Mindful of Decree No. 2018/190 of March 02, 2018 to supplement certain provisions of Decree No. 2011/408 of 9 December 2011 to reshuffle the Government;

Mindful of Decree No. 2018/191 of 2 March 2018 to reshuffle the Government;

Mindful of Decree No. 2019/002 of 4 January 2019 to reshuffle the Government;

Decree No. 2005/07771/PM of 6 April 2005 establishing the modalities for the execution of plant quarantine operations;

In view of Decree No. 2005/05/0772/PM of 6 April 2005 establishing the conditions for the approval and control of phytosanitary products;

Mindful of Order No. 029/CAB/PM of 04 April 2014 to set modalities for inspections and controls of merchandises by State technical services at the Douala Sea port;

HEREBY ORDER AS FOLLOWS:

CHAPTER I: GENERAL PROVISIONS

Article 1: This joint order lays down the costs of inspection and certification of phytosanitary products as well as the management procedures of the income from these operations.

This pursuant to Article 6 Paragraph 2 of the law n°2003/003 of 21 April 2003 on phytosanitary protection.

(2) Fees for phytosanitary inspection and certification operations shall be charged for compliance with phytosanitary standards, plant quarantine, phytosanitary surveillance and pest control.

(3) The costs referred to in paragraph 1 above shall be borne by the users involved in plant protection activities and shall specifically relate to:

- the cost of import and export inspection of shipments of plants, plant products and other regulated items and accompanied baggages;
- the field certification fees;
- the costs related to pest risk analysis;
- the cost of appliance and equipment conformity testing;
- the import permit fees;
- the costs of licensing:
- the costs of plant protection treatments supervision and other activities;
- the costs for inspection of the means of transport and storage environment;
- the costs of issuing prior authorisations for the phytosanitary sub-sector;
- the costs for laboratory analysis of samples;
- the costs for technical audits of structures carrying out phytosanitary activities;
- the travel costs of the competent phytosanitary authority.

Article 2: The costs referred to in Article 1 paragraph 2 above are defined in Appendices I II, II, IV, V and VI which is an integral part of this Order.

Article 3: The provisions of this decree shall apply to all operations listed in Article 1 Paragraph 2 above, carried out by the competent phytosanitary authority at the level of the Department in charge of phytosanitary regulations, as well as at all phytosanitary control points within the national territory, that is, maritime, airport and land borders.

CHAPTER II: RECOVERING AND SECURING PHYTOSANITARY COSTS

Article 4: The costs of phytosanitary inspection, quality control and certification operations shall be paid into a treasury deposit account at the Specialised Paymaster's Office of the Ministry in charge of Agriculture and Rural Development entitled "**Phytosanitary Certification**".

Article 5: (1) The account shall be managed by:

- an authorising officer who is the Minister in charge of Agriculture;
- an accounting officer appointed by the Minister in charge of Finance.

The authorising officer shall implement the budget of this account. Therefore, he/she shall commit, liquidate and authorise expenditures in accordance with the provisions of this Order.

(2) He/she may delegate the management of the account to the Director in charge of phytosanitary regulations in accordance with the provisions in force.

Article 6: The authorising officer shall produce administrative accounting for each financial year showing all revenue and expenditure operations to be transmitted to the Ministry in charge of Finance and to any State body competent for the clearance of accounts.

Article 7: (1) The accounting officer, assisted, if necessary, by the appointed administrators, shall be responsible for collecting revenue and paying for expenditure, in accordance with the regulations in force.

For this purpose, he/she shall be solely responsible for the quality and accuracy of the entries in order to ensure:

- the management and safekeeping of such funds;
- all withdrawals on the basis of documents duly signed by the authorising officer.

(2) He/she shall be personally, financially and legally responsible for the financial and accounting operations. He/she shall provide a guarantee in accordance with the texts in force.

(3) He/she shall produce a management account for each financial year, showing all revenue and expenditure transactions.

CHAPTER III: MANAGEMENT OF INCOME GENERATED BY INSPECTION, CONTROL AND CERTIFICATION OPERATIONS

Article 8: (1) The bodies in charge of inspection, control and certification operations shall submit a statement of requirements to the Authorising Officer, as well as a statement of expenditure covering the last six months and copies of the relevant supporting documents, by the 15th of the month following the end of the six-month period. An Imprest Fund shall be opened for this purpose at the Department in charge of Phytosanitary Regulations to carry out the said inspection, control and certification operations, in line with the regulations in force.

(2) The Director in charge of Phytosanitary Regulations shall ensure the production and consolidation of statements of expenditure for the running of the bodies in charge of inspection, control and certification operations, to be submitted for clearance.

Article 9: (1) The phytosanitary inspectors, phytosanitary controllers and associated personnel, particularly the staff of regional services in charge of phytosanitary regulations, agricultural posts, phytosanitary bases and brigades involved in phytosanitary certification and surveillance, shall receive an allowance referred to as "share".

(2) On the proposal of the Director in charge of phytosanitary regulations, the share shall be paid quarterly to all the staff designated above in Paragraph 1 under the following conditions:

- Phytosanitary inspectors: 5 shares;
- Phytosanitary controllers: 3 shares;
- Associate staff: 2 shares.

The method of calculating the value of a share is as follows:

Total number of shares = (Number of inspectors x 5) + (Number of controllers x 3) + (Number of associated staff x 2)

$$\text{Value of a share} = \frac{\text{Total amount of allowances to be allocated}}{\text{Total number of shares}}$$

(3) For disciplinary purposes, the share of an agent may be reduced or withdrawn by decision of the Minister in charge of Agriculture and Rural Development on the proposal of the Director in charge of Phytosanitary Regulations.

Article 10: The revenue of the account shall be distributed as follows

- share referred to in Article 9 above = 20%;
- support for the development of phytosanitary surveillance systems, phytosanitary warning systems and the promotion of integrated pest management and plant health = 5%;
- support for the development of the phytosanitary certification system (equipment, training, laboratories, logistics, forms, functioning of the National Phytosanitary Council, etc.) = 25%;
- support for the running and supervision of bodies in charge of inspection, control and phytosanitary certification operations = 25%;
- Public Treasury = 25%.

CHAPTER IV: FINAL PROVISIONS

Article 11: The Director General of the Treasury and the Director in charge of Phytosanitary Regulations shall be responsible, each in their capacities, for the implementation of this decree, which shall be communicated wherever necessary.

Yaoundé, 4 March 2019
Signed by

**The Minister of Agriculture
and Rural Development
Gabriel MBAIROBE**

**The Minister of Finance
Louis Paul MOTAZE**

APPENDICES:

APPENDIX I: RATES FOR PHYTOSANITARY CONTROLS AND INSPECTIONS OF PLANTS, PLANT PRODUCTS, PLANT BY-PRODUCTS AND OTHER REGULATED PRODUCTS FOR IMPORT AND EXPORT, AS WELL AS OTHER PHYTOSANITARY ACTIVITIES

For documentary Control		Quantity		Rate (CFAF)
Documentary inspection	By shipment			11,500

A –MARITIME PLATFORMS

For physical controls	Quantity	Rates (in CFAF)
Young plant cuttings, vegetable seedlings except forest reproductive materials	By shipment: - Up to 10,000 - For 1,000 additional units.	11,500 500
Shrubs, trees, other woody nursery plants including forest reproductive materials except seeds	By shipment: - Up to 10,000 - For 1,000 additional units.	11,500 300
Bulbs, tuberous roots, rhizomes, tubers for planting other than potato tubers	By shipment: - Up to 200kg - For an additional 10kg	11,500 200
Seeds, Plant tissue culture	By shipment: - Up to 100kg - For an additional 10kg	11500 200
Other plants for planting, not mentioned in this table	By shipment: - Up to 100kg - For an additional 10kg	11,500 100
Fresh cut flowers	By shipment: - Up to 5,000 units - For an additional 10kg	11,500 100
Plant leaves such as herbs and spices or fresh leafy vegetables	By shipment: - Up to 100 kg - For an additional 10kg	11,500 1,150
Fresh or dried fruits, vegetables and fruit peels	By shipment: - Up to 10,000 kg - For an additional 100kg	11,500 500
Potato tubers per batch	By batch - Up to 25,000 kg - For an additional 25,000kg	34,450 34,450
Wood (except bark)	Per shipment - Up to 100 m3 - For an additional ...m3	11,500 200
Soil, growing medium, bark and fertilisers	By shipment: - Up to 10,000 kg - For an additional 100kg	11,500 500
Cereals	By shipment: - Up to 25,000 kg	11,500

	- For an additional 1,000kg	500
Fresh or dry vegetables	By shipment: - Up to 10,000 kg - For an additional 1,000kg	11,500 500
Oilseeds, vegetable oils and fats	By shipment: - Up to 10,000 litres - For 1,000 additional units.	11,500 500
Fresh and dried spices	By shipment: - Up to 10,000 kg - For an additional 1,000kg	11,500 500
Manufactured products	By shipment: - Up to 10,000 units - For an additional 1,000kg	11,500 500
Drugs and narcotics	By shipment: - Up to 10,000 kg - For an additional 1,000kg	11,500 500
Cocoa beans, coffee beans, tea leaves	By shipment: - Up to 10,000 tonnes - For 1,000 additional tonnes.	11,500 500
Plows, manure spreaders, fertiliser distributors, harrows, tractors and other spraying and dispersing devices used for agriculture, horticulture and public hygiene	By shipment: Or by transport folder	100,000

B- AIR, LAND, WATER, PARCEL CARRIER AND COURIER TRANSPORTATION PLATFORMS

For physical controls	Quantity	Rates (in CFAF)
Import Air Cargo Inspection	By shipment: Parcel of: 1-100 kg 101-500 kg 501-1000 kg Above 1000 kg	5,000 10,000 15,000 5,000/tonne and above
Air cargo inspection including warehouse inspections	By shipment: Parcel of: 1-100 kg 101-500 kg 501-1000 kg Above 1000 kg	2,000 3,000 4,000 5,000/tonne and above
Inspection of accompanied baggage		2,000
Hazardous products and pesticides		10kg
Goods exported to the Sub-Region by cabotage		50/bag of 100kg
Biological control agent		100,000/transport file
A shipment represents a quantity of goods covered by a single Phytosanitary Certificate. When a shipment is made up of products of more than one category, each one is treated as a separate shipment and is subject to a single rate calculation.		

C- SUPERVISION OF PHYTOSANITARY TREATMENTS AND OTHER ACTIVITIES

Activity	Description of the service	Rate (in CFAF)
Supervision of phytosanitary treatment operations:	Import shipments	60/tonne
	Export shipments	35/tonne
	Air and land freight import/export, courier	20,000/file
	Farm seedlings	2,000/ha
	Storage environment	15,000/warehouse
	Container	5,000/unit
	Ship	20,000/unit
	Aircraft	20,000/unit
	Train	5,000/wagon
	Vehicle	5,000/unit
	Standard 15 and stamping of packages	10,000/file
Supervision of other activities	Packaging	2CFAF/kg
	Processing	2CFAF/kg
	air, land and mail freight damages	200/kg
	Container stuffing	5,000/file
	Cutting	5,000/file
	Loading	5,000/file
	Unloading	5,000/file

APPENDIX II: RATES FOR PHYTOSANITARY INSPECTIONS AND CONTROLS OF MEANS OF TRANSPORT AND STORAGE ENVIRONMENTS DURING IMPORT AND EXPORT

No.	Area of intervention	Description	Billing rate (CFA F)
1	Ship, aircraft, train, vehicle and empty containers for import	Aircraft, aircraft Cargo, aircraft cabin, train wagons, empty containers and vehicles	500/m3
		Coastal trading vessel	25,000
		Bulk carrier	150,000
		Container ship	150,000
2	Ship, aircraft, train, vehicle and empty containers for export	Aircraft, aircraft Cargo, aircraft cabin, train wagons, empty containers and vehicles	500/m3 Minimum: 11,000f
		Coastal trading vessel	22,500
		Bulk carrier	135,000
		Container ship	90,000
3	Storage environment and packaging sites		200,000/trip two trips per year

APPENDIX III: RATES FOR PRE-APPROVAL AUTHORISATIONS

No.	Designation	Rates (CFAF)	Specifications
1	Phytosanitary risk analysis for the issuance of the seed import permit	300,000	File
2	Phytosanitary risk analysis for the issuance of the import permit of plants and plant products	200,000	Plants
3	Technical audit for the registration of operators in the fertiliser sub-sector	500,000	File/type
4	Test for the issuance of the certificate of conformity	150,000	File/type
5	Technical audit for the issuance of authorisations in the phytosanitary sector	200,000	Companies
6	Technical audit for the renewal of phytosanitary authorisation	300,000	
7	Technical audit for the renewal of standard 15 authorisations	700,000	

APPENDIX IV: AUDIT OF PHYTOSANITARY STRUCTURES

No.	Description	Rate (CFA F)	Frequency of inspections /year
1	Packaging/repackaging facility	200,000	2
2	Testing laboratory	200,000	2
3	Phytosanitary treatment company	200,000	2
4	Processing company	200,000	2
5	Input distribution company	200,000	2
6	Fertiliser import company	200,000	2
7	Pesticide import company	200,000	2
8	Treatment equipment import company	200,000	2
9	Company approved to standard 15	200,000	2

APPENDIX V: RATES FOR LABORATORY SAMPLE TESTING**A: DIAGNOSIS AND IDENTIFICATION OF PESTS**

Test Requested	Methodological approach	Rate per sample (CFAF)
Bacteriology		40,000
Entomology		10,000
Mycology		40,000
Nematology		40,000
Virology		40,000

B - TESTING OF PESTICIDE RESIDUES

Test Requested	Methodological approach	Rate per sample (CFAF)
TESTING OF PESTICIDE FORMULATIONS		
1 M.A		262,000
2 M.A		335,000
3 M.A		413,000
ABOVE 3 M.A		On quotation
RESEARCH OF PESTICIDE RESIDUES		
DETECTION		30,000
QUANTIFICATION		50,000/m.a
OTHER TESTS		On quotation
Numbering of colonies of organisms on bio-pesticides (potency, count)		150,000
Physico-chemical tests		10,000

C - SEED TESTING

Test Requested	Methodological approach	Rate (CFAF)
Water content		5,000
Specific purity (untreated seed)		2,000
Specific purity (treated seed)		5,000
Germination test		5,000
Weight of 1000 seeds		1,500
Viability test		10,000
Seed health status		25,000
GMO		On quotation
Other tests		

Varietal purity test		
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D. ANALYSIS OF FERTILISERS AND ADDITIVES

Pre-treatment of the sample	Methodological approach	Rate (CFA F)
Moisture		5,000
Water solubility		2,000
Total nitrogen		2,000
Total phosphorus		25,000
Phosphorus from mineral acids		20,000
Phosphorus soluble in neutral ammonium citrate		20,000
Other forms of phosphorus		On quotation
Potassium		20,000
Magnesium		20,000
Calcium		20,000
Sulphur		25,000
Chlorine		30,000
Oligo elements (Fe, Cu, Zn, Pb, etc.)		30,000
Boron, Mo, Mn		50,000
Organic carbon		20,000
Density		5,000
Particle size		2,000
Ammoniacal/nitric nitrogen		20,000
Other tests on fertilisers, soil additives and composts		On quotation

E. TESTING THE COMPOSITION OF AGRICULTURAL PRODUCTS

Research and determination	On quotation
Biochemical composition of foods	
GMO	
Heavy metals	
Contaminants	
Other tests	

F. SAMPLE PREPARATION, PACKAGING AND SHIPPING

The costs of sample preparation, packaging and shipping vary according to the size of the sample and the means of shipment. The amount shall be determined according to the conditions of each platform.

APPENDIX VI: RATES FOR PHYTOSANITARY CONTROLS AND INSPECTIONS OUT OF THE LEGAL WORKPLACE

A: BEYOND THE REGULATORY PHYTOSANITARY INSPECTION HOURS		
No.	Designation	Charges
1	Daytime hours	1,000 CFAF/person
2	Night hours	2,000 CFAF/person
B: OUT OF THE REGULATORY PHYTOSANITARY INSPECTION SITES		
1	Urban and peri-urban travel expenses	10,000 CFAF/person
2	Accommodation charges (if necessary)	25,000 CFAF/day

4.4.2. Order No. 00085/19/A/MINADER/CAB of 1 July 2019 to set the period of validity for sprayers certification orders

THE MINISTRY OF AGRICULTURE AND RURAL DEVELOPMENT,

Mindful of the Constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2018/190 of 2 March 2018 to supplement certain provisions of Decree No. 2011/408 of 9 December 2011 to organise the Government;

Mindful of Decree No. 2019/001 of 4 January 2019 to appoint a Prime Minister, Head of Government;

Mindful of Decree No. 2005/0772/PM of 6 April 2005, on the registration and protection of phytosanitary products;

Mindful of Decree No. 2005/0770/PM of 6 April 2005 on modalities for phytosanitary control operations,

HEREBY ORDERS AS FOLLOWS:

Article 1: (1) This Order sets the period of validity for sprayers certification orders.

(2) All certified sprayers in Cameroon shall be governed by the provisions referred to in paragraph (1) above.

Article 2: The certification of sprayers, referred to in this article, shall be for five (5) years, renewable by tacit agreement.

Article 3: The National Commission of Pesticide Registration and Certification of Sprayers (CNHPCAT) and the Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products (DRCQ) shall be responsible for the implementation of this decree, which shall be registered and communicated wherever necessary./ -

Yaoundé, 1 July 2019

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

4.4.3. Order No. 0699/A/MINADER/SG/CNHPCAT of 23 July 2013 prohibiting the use of carbofuran-based phytosanitary products

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No. 2005/0772/PM of 6 April 2005, on the control and registration of phytosanitary products;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018,

Mindful of Decree No. 2011/409 of 9 December 2011 to appoint a Prime Minister, Head of Government;

Mindful of Decree No. 2011/410 of 9 December 2011 to form the Government;

Mindful of Order No. 001/05/A/MINADER/SG/DRCQIPA/SDRPEAT of 23 January 2006 to establish the composition of the National Commission of Pesticide Registration and Certification of Sprayers. Considering the recommendations of the National Commission of Pesticide Registration and Certification of Sprayers which met in its Session of 22 April 2013,

HEREBY ORDERS AS FOLLOWS:

Article 1: Carbofuran-based phytosanitary products shall be prohibited from import, export, manufacture, packaging, storage, distribution and use in Cameroon, from the date of signature of this Order.

Article 2: The phytosanitary products referred to in Article 1 above shall include the following: BASTION 10 G, FURAPLANT 1- 0 G, SESAME 5 G, SESAME 10 G.

Article 3: (1) Any natural person or legal entity having stocks of the phytosanitary products referred to in Article 2 above shall report to the Regional Delegations of the Ministry in charge of Agriculture and Rural Development (Regional services in charge of quality control of agricultural inputs and products, regional phytosanitary bases) within three (3) months.

(2) The controlled use of the declared stocks shall take place within twelve (12) months following the entry into force of this ban.

Article 4: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products (DRCQ) and the Department in charge of Agricultural Development (DDA) shall be responsible for implementing this Order, which shall be registered and communicated wherever necessary.

Yaoundé, 23 July 2013

The Minister of Agriculture and Rural Development

Lazare ESSIMI MENYE

4.4.4. Order No. 00829/A/MINADER/SG/CNHPCAT of 30 July 2013 prohibiting the use of dimethoate-based phytosanitary products

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No. 2005/0772/PM of 6 April 2005, on the control and registration of phytosanitary products;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2011/409 of 9 December 2011 to appoint a Prime Minister, Head of Government;

Mindful of Decree No. 2011/410 of 9 December 2011 to form the Government;

Mindful of Order No. 001/05/A/MINADER/SG/DRCQIPA/SDRPEAT of 23 January 2006 to establish the composition of the National Commission of Pesticide Registration and Certification of Sprayers. Considering the recommendations of the National Commission of Pesticide Registration and Certification of Sprayers which met in its Session of 14 February 2011,

HEREBY ORDERS AS FOLLOWS:

Article 1: Dimethoate-based phytosanitary products shall be prohibited from import, export, manufacture, packaging, storage, distribution and use in Cameroon, from the date of signature of this Order.

Article 2: The phytosanitary products referred to in Article 1 above shall include the following:

- CALLIDIM 200 EC,
- CALLIDIM 400 EC,
- CYPERDIM 220 EC,
- CYPLANDIM 260 EC,
- DIMEX 400 EC,
- DIMEZYL 400 EC,
- METE.OR 400 EC
- PLANTHOATE 400 EC.

Article 3: (1) Any natural person or legal entity having stocks of the phytosanitary products referred to in Article 2 above shall report to the Regional Delegations of the Ministry in charge of Agriculture and Rural Development (Regional services of quality control of agricultural inputs and products, regional phytosanitary bases) within three (3) months.

(2) The controlled use of the declared stocks shall take place within twelve (12) months following the entry into force of this ban.

Article 4: The Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products (DRCQ) and the Department in charge of Agricultural Development (DDA) shall be responsible for implementing this Order, which shall be registered and communicated wherever necessary.

Yaoundé, 30 July 2013

The Minister of Agriculture and Rural Development

Lazare ESSIMI MENYE

4.5. DECISIONS

4.5.1. List of registered pesticides in Cameroon

The latest revision of the official list of registered pesticides dates back to March 2021 and can be accessed through the link below: [liste grand public 2021.pdf \(drcq-minader.org\)](#)

4.5.2. Decision No. 01465/D/MINADER/CAB of 4 October 2017 on the organisation of phytosanitary controls at regional level

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No. 2005/0772/PM of 6 April 2005, on the control and registration of phytosanitary products;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government, as amended and supplemented by Decree No. 2018/190 of 2 March 2018;

Mindful of Decree No. 2015/434 of 2 October 2015 to reshuffle the Government;

Considering service needs,

HEREBY DECIDES AS FOLLOWS:

Article 1: This decision organises phytosanitary controls at the level of various regions throughout the national territory.

Article 2: (1) Phytosanitary controls at the level of the Regions shall be initiated either by the territorially competent phytosanitary administration or by the natural person or legal entity carrying out any phytosanitary activity in the Region.

(2) They shall be organised and carried out by the territorially competent Phytosanitary Service, under the supervision of the Regional Delegates of MINADER.

(3) Phytosanitary controls shall be carried out either at the entry and exit points from the national territory, or where phytosanitary activities are carried out within the national territory.

(4) Phytosanitary controls shall be permanent activities of the phytosanitary administration, which, in order to achieve the objectives of plant protection, may schedule, additional specific control missions in the Region.

Article 3: The phytosanitary controls mentioned in article 2 paragraph 3 above shall be carried out, at the borders, by Phytosanitary Posts and, within the national territory, by Regional Services of quality control of agricultural inputs and products, with the assistance of the support services, at the initiative of the territorially competent DRADER Service or of any other phytosanitary structure created within the national territory.

Article 4: Within the national territory, the areas of competence of MINADER staff and all other designated structures shall be defined in line with the territorial deployment of the Customs administration, with a view to facilitating some joint controls required for foreign trade.

Article 5: Border phytosanitary controls

(1) Border controls shall be carried out mainly for phytosanitary activities having a direct impact on foreign trade as a result of import or export.

(2) Controls at the entry and exit points of the territory shall be carried out for phytosanitary surveillance and certification purposes, primarily at borders. They may also be carried out outside the border at the request of users.

(3) The control requested outside the border shall be carried out by the Phytosanitary Post that is responsible for the quality of the cargo in the customs clearance process. If the phytosanitary post has difficulties in carrying out its mission effectively, they shall refer the matter to the Regional Delegate territorially competent who shall set up, under his supervision, a relay mechanism.

(4) The relay work requested by the Phytosanitary Post shall aim at complying with the certification requirements.

(5) Relay activities shall result in the production of intermediate deliverables as defined in the Phytosanitary Inspection Manual. These deliverables shall be attached to the application for certification at the border.

Article 6: Phytosanitary controls outside the borders

Phytosanitary controls outside the borders shall be essentially done for surveillance in phytosanitary activities within the national territory. These controls can also be carried out to support the certification missions of phytosanitary posts at borders.

Phytosanitary controls outside the borders may be carried out permanently to support certification or in specific missions organised by territorially competent MINADER staff.

Article 7: Permanent controls.

Permanent controls shall be carried out on phytosanitary activities at the request of border posts or users to meet specific certification requirements. The staff responsible may be from the territorial control points, the regional quality control services, the phytosanitary brigades and bases, or the Sub-Divisional delegations.

Article 8: Control missions

They shall be initiated, organised and supervised by the MINADER Regional Delegates.

They shall be carried out by a team of MINADER staff as follows:

Regional mission team	Qualifications/Functions	Observation
Regional Supervision	Regional Delegate	Not sworn
Rapporteur	2 sworn officials in charge of quality control of agricultural inputs and products	Sworn
Members	Competent DDADR competent DAADR Competent CBP	Management staff

Article 9: (1) At the end of the phytosanitary control missions, a mission report, to which are attached reports on infringements, shall be prepared and transmitted to the phytosanitary protection authority, through hierarchy, as soon as possible.

(2) The latter shall decide on the need to refer the matter to the territorially competent courts where the offence was committed.

Article 10: (1) Control activities shall aim at ensuring compliance with conventional, legislative and regulatory provisions on plant health.

(2) Infringements shall be recorded until proven otherwise.

Article 11: All previous provisions contrary to the provisions of this Decision are hereby repealed.

Article 12: This Decision, which enters into force from its signature, shall be registered and published wherever necessary.

Yaoundé, 4 October 2017

The Minister of Agriculture and Rural Development

Henri EYEBE AYISSI

4.5.3. Framework Agreement between the Ministry of Agriculture and Rural Development (MINADER) and CROPLIFE Cameroon (CLC)

This agreement establishes a collaboration framework for the joint implementation of the conditions for agricultural development compliant with Phytosanitary Ethics.

FRAMEWORK AGREEMENT BETWEEN

The Ministry of Agriculture and Rural Development, hereinafter referred to as: "**MINADER**", represented by Mr. Gabriel MBAIROBE, in his capacity as Minister of Agriculture and Rural Development, on the one hand,

And

CROPLIFE CAMEROUN, hereinafter referred to as "**CLC**", PO Box: 3224 Douala, TELEPHONE: 233 39 23 74 / 699 24 52 38, E-mail: infos@croplife-cmr.org / hfosso@fimex-international.com, represented by Mr. Henri FOSSO, in his capacity as President of CROPLIFE Cameroon, on the other hand.

Collectively referred to as "the Parties" and individually as "the Party".

PREAMBLE

- Considering that Cameroon ratified the FAO International Plant Protection Convention on 5 April 2006;
- Considering Law No. 2003/003 of 21 April 2003 on phytosanitary protection, and subsequent implementing decrees;
- Considering the important contribution of CROPLIFE Cameroon to the training of farmers on the rational use of pesticides over the last ten years;
- Considering the common will to develop a phytosanitary sector that respects ethics and guarantees healthy and abundant food production;
- Considering the consensus on the need for a formal framework of collaboration to pursue and capitalise on the informal relationship maintained for more than ten years between both parties as part of the joint training of stakeholders in the phytosanitary sector,

The parties agree on the following:

CHAPTER 1: GENERAL PROVISIONS

Article 1: Objective of the Agreement

1.1 The purpose of this framework agreement is to define and specify the terms of collaboration between MINADER and CLC as part of implementing the conditions for agricultural development compliant with phytosanitary ethics.

1.2. The implementation of an activity selected by the parties shall be subject to specific negotiations.

Article 2: Definition of terms

For the Implementation of this agreement, the following definitions shall apply:

Pesticide: any substance or combination of substances intended to repel, destroy or control pests, disease vectors and undesirable species of plants or animals causing damage or otherwise causing harm during the production, processing, storage or marketing of food, agricultural products, wood and non-woodforest products;

Phytosanitary product: pesticides and other substances intended for use as plant growth regulators, defoliants, desiccants, fruit thinners, or to prevent premature fruit drop, as well as substances applied to crops either before or after harvest to protect the produce from deterioration during storage and transport.

Good phytosanitary practice: term regrouping control methods against organisms harmful to crops with a view to preserving the good health conditions of plants and plant products, human and animal health, and the environment against the risks arising from the use of plant protection products and other phytosanitary measures.

Article 3: Scope of Application

3.1 The activities envisaged under this Agreement shall include:

- Updating the legislation regulating the manufacture, import, distribution, handling and use of pesticides and biotechnology;
- Combating counterfeiting and illicit trade in Phytosanitary products;
- Reorganising the phytosanitary sector;
- Finding appropriate and efficient solutions to the phytosanitary challenges faced in Cameroon;
- Training in and promoting good agricultural and phytosanitary practices throughout the country;
- Discussing issues of national interest for "Agro-industries".
- Issues on the health and phytosanitary quality of food produced in Cameroon and in the Sub-Region.

In order to allow a better control of the range of phytosanitary protection tools, as well as solutions proposed to agricultural professionals, MINADER and the CLC shall:

- Improve the profile of molecules and formulations in agricultural production;
- Improve packaging, protective equipment and treatment application systems and develop new solutions in the use of phytosanitary products;
- Impart good phytosanitary practices in all agricultural sectors;
- Develop a surveillance system for the proper management of obsolete stocks;
- Contribute to scientific innovation and the development of systems capable of delaying soil erosion, limiting various types of pollution (soil, air, water, etc.) and strengthening biodiversity.

CHAPTER 2: OBLIGATIONS OF THE PARTIES

Article 4: Joint commitment

(1) MINADER and CLC shall collaborate to:

- Seek funding for the implementation of the selected projects and/or activities;
- Share technical expertise or any other contribution deemed relevant to the selected projects and/or activities.

(2) MINADER and CLC declare that this framework agreement has been established in good faith and, will consequently, ensure the successful implementation thereof.

CHAPTER 3: FINANCIAL PROVISIONS

Article 5: Sources of funding

The activities and projects carried out within this framework agreement shall be subject to a financial evaluation submitted to the appraisal of the parties;

The technical, material and financial resources shall be provided by either the signatories of this agreement or a third party/donor.

In any case, the expenditure process must comply with the standards of the donor.

CHAPTER 4: ASSESSMENT, DURATION AND AMENDMENT OF THE AGREEMENT

Article 6: Steering and Monitoring/Evaluation Committee

6.1 As part of the implementation of this framework agreement, a Steering and Monitoring/Evaluation Committee shall be set up, comprising DRCQ and DDA on behalf of MINADER and two (2) representatives of CROPLIFE. The Committee shall be responsible for guiding, monitoring and evaluating the implementation of the obligations of the Agreement.

To this end, the Committee shall:

- Ensure that the commitments made by the parties to this framework agreement are respected;
- Coordinate and take actions to resolve identified problems;

- Prepare the global and annual action plans and the related budgets;
- Carry out regular monitoring missions in the field to ensure proper implementation of the activities provided for in the action plan;
- Draw up annual reports and submit them to the various hierarchies.

The Committee shall meet twice (2) a year in ordinary session. However, it may meet as needed at the request of one of the parties.

The services of members are free of charge. However, members may receive session allowances and other benefits in accordance with the regulations in force.

Article 7: Duration and Amendment of the Agreement

This agreement shall be established for a period of five (05) years, renewable after a conclusive evaluation. It may be modified by amendment clause at the request of either party.

CHAPTER 5: COMMUNICATION

Article 8: Communication between the parties

All communication relating to the implementation of this Framework Agreement shall be in writing, with explicit reference to the Agreement, and sent to the following addresses:

For MINADER:

Ministry of Agriculture and Rural Development, Department in charge of Agricultural Development (DDA), or Department in charge of Regulations, Quality Control and Certification of Agricultural Inputs and Products (DRCQ) or the General Inspectorate of Agricultural Development (IGDA).

For Croplife Cameroon:

Croplife Cameroun, PO Box: 3224 Douala
 Phone: 233 39 23 74 / 697896109 / 699245238
 FAX: 233 39 23 75 / 233 39 23 74
 E-mail: infos@croplife-cmr.org

CHAPTER 6: MISCELLANEOUS AND FINAL PROVISIONS

Article 9: Settlement of disputes

Any dispute arising from the implementation of this Agreement shall be settled amicably within the Committee.

Otherwise, the dispute shall be referred to the Ministry in charge of Agriculture and Rural Development for arbitration.

Article 10: Entry into force This Agreement shall enter into force from the date of signature by the parties.

Article 11: This Agreement is established and signed by the parties in two (2) copies in French./.

For CROPLIFE CAMEROUN

Henri FOSSO

For MINADER

Gabriel MBAIROBE

4.5.4. Decision No. 01326/16/D/MINADER/SG/Q/SDRP/SRP of 25 November 2016 prohibiting the import and registration of metalaxyl-based pesticide formulations in Cameroon

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

Mindful of the Constitution;

Mindful of Law No. 2003/003 of 21 April 2003 on phytosanitary protection;

Mindful of Decree No. 2005/0772/PM of 6 April 2005, on the control and registration of phytosanitary products;

Mindful of Decree No. 2005/0770/PM of 6 April 2005 on modalities for phytosanitary control;

Mindful of Decree No. 2005/0771/PM of 6 April 2005, to lay down the conditions for plant quarantine operations;

Mindful of Decree No. 2005/118 of 15 April 2005 to organise the Ministry of Agriculture and Rural Development;

Mindful of Decree No. 2011/408 of 9 December 2011 to organise the Government;

Mindful of Decree No. 2011/409 of 9 December 2011 to appoint a Prime Minister, Head of Government;

Mindful of Decree No. 2015/434 of 02 October 2015 to reshuffle the Government;

Considering the need to contribute to the quality of Cameroon cocoa,

HEREBY DECIDES AS FOLLOWS:

Article 1: The import and registration of METALAXYL-based pesticide formulations into Cameroon shall be prohibited from the date of signature of this decision.

Article 2: All import and distribution facilities shall be required to declare within a period of three (3) months from the date of signature of this Decision their stocks of pesticides containing this molecule to the Ministry in charge of Agriculture and Rural Development.

Article 3: A transitional period of eighteen (18) months shall be granted for the marketing of stocks of the pesticides declared in Article 2, starting from the date of signature of this decision.

Article 4: The National Commission of Pesticide Registration and Certification of Sprayers (CNHPCAT) shall be responsible for the implementation of this decision, which shall be registered and communicated wherever necessary.

Yaoundé, 25 November 2016

The Minister of Agriculture and Rural Development

Henri EYEBE AYISSI

4.6. CIRCULARS

4.6.1. Circular letter No. 0915/LC/MINADER/SG/DRCQ/LNAD of 12 May 2015 addressed to Phytosanitary Posts in Cameroon

Subject: Sampling of pesticides for post-registration analysis.

It has been brought to my attention that the sampling of imported pesticides for compliance analysis at the laboratory are either not regularly carried out or carried out by laboratories not approved by MINADER; or sent very late at the National Laboratory for Diagnostic Analysis of MINADER. In a bid to end this practice, I have the honour to inform you that henceforth, the collection of pesticide samples will be systematically carried out at the time of import. In accordance with the relevant regulations in force, only the MINADER laboratory and laboratories approved by the latter are authorised to analyse these samples. Furthermore, the Department in charge of Regulations and Quality Control has set up a mechanism to facilitate the transportation of such samples through specialised services, to be communicated to you.

I attach great importance to the strict implementation of the provisions of this circular letter.

Yaoundé, 12 May 2015

The Minister of Agriculture and Rural Development

Lazare ESSIMI MENYE

4.6.2. Circular No. 3096/MINADER/SG/ORCQ/SDRP of 13 June 2017 on the use of Methyl Bromide for the treatment of export goods

**THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT
TO
ALL HEADS OF PHYTOSANITARY POSTS.**

Some trade union leaders in the timber sub-sector have applied for authorisation to use methyl bromide to treat goods to be exported, particularly to China and India.

As such, I wish to remind you that in 1985 the State of Cameroon ratified the Vienna Convention for the protection of the ozone layer and its Montreal Protocol on substances that deplete the ozone layer.

Our country has since then been actively involved in the implementation of related activities. Thus, based on an established timetable to eliminate the said substances, developing countries have eliminated the use of Methyl Bromide in quarantine and pre-shipment operations since 2015.

Henceforth, Cameroon has made its position known as a non-consumer of Methyl Bromide, a position adopted by all African countries and other developing countries including India and China.

Therefore, any use of this product is illegal and prohibited.

Yaoundé, 13 June 2017

The Minister of Agriculture and Rural Development

Henri EYEBE AYISSI

4.6.3. Circular letter No. 00005/LC/MINADER/SG/DRCQ/SDRP/SRP of 5 July 2019 to amend the provisions of circular letter No. 0001/19/LC/ MINADER/SG/DRCQ/SDRP/SRP of 15 January 2016 on the validity period of a phytosanitary product in Cameroon

**THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT
TO
ALL ECONOMIC OPERATORS IN THE PHYTOSANITARY SUB-SECTOR**

From the date of signature of this circular letter, the period of validity of all phytosanitary products formulated in Cameroon since July 2017 shall be three (3) years.

Holders of stocks of such products formulated before the specified period are invited, on the one hand, to declare their stocks to the services in charge of phytosanitary regulations within three (3) months following the date of signature of this circular letter and, on the other hand, to take all necessary measures to carry out a compliance test of the declared stock, after which appropriate measures shall be prescribed.

I attach great importance to the strict implementation of the provisions of this Circular. /-

Yaoundé, 5 July 2019

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

4.6.4. Circular letter No. 0000720/LC/MINADER/SG/DRCQ/SRP of 30 December 2020 prohibiting the import and registration of pesticide formulations based on chlorpyrifos, chlorpyrifos-ethyl and chlorpyrifos-methyl in Cameroon

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

TO

ALL OPERATORS IN THE PHYTOSANITARY SUB-SECTOR

The European Union (EU), Cameroon's strategic trading partner, has tightened the regulations on maximum residue limits of chlorpyrifos in agricultural products, including Arabica and Robusta coffee. These measures will therefore affect exports of these products to their markets.

In order to limit any possible prejudice of these measures to the Made in Cameroon label, I have the honour inform you that from the date of signature of this circular letter, the import and registration of pesticide formulations based on Chlorpyrifos, Chlorpyrifos ethyl and Chlorpyrifos methyl shall prohibited in Cameroon.

I attach great importance to the strict implementation of the provisions of this Circular. /

Yaoundé, 30 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

4.6.5. Circular letter No. 04434/16/L/MINADER/SG/DRCQ/SDRP/SRP of 25 November 2016 prohibiting the acquisition and distribution of Metalaxyl-based pesticide formulations within the framework of public contracts in Cameroon

THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT

TO

- DIRECTORS

- COORDINATORS OF PROJECTS AND PROGRAMMES IN THE COCOA SUB-SECTOR

SUBJECT: Prohibition of the acquisition and distribution of metalaxyl-based pesticide formulations within the framework of public contracts in Cameroon.

I have the honour to inform you that due to problems posed by the presence of Metalaxyl residues, above the maximum tolerable limits, in pesticide formulations the acquisition and distribution of pesticides based on this molecule shall be prohibited within the framework of public procurements for the treatment of cocoa orchards in Cameroon.

I attach great importance to the strict implementation of the provisions of this Circular. /-

Yaoundé, 25 November 2016

The Minister of Agriculture and Rural Development

Henri Eyebe Ayissi

4.6.6. Circular letter No. 00007/20/LC/MINADER/SG/DRCQ/SRP of 30 December 2020 prohibiting the importation and registration of pesticide formulations based on chlopyrifos, chlorpyrifos-ethyl and chlorpyrifos-methyl in Cameroon

**THE MINISTER OF AGRICULTURE AND RURAL DEVELOPMENT
TO**

ALL OPERATORS IN THE PHYTOSANITARY SUB-SECTOR

The European Union (EU), Cameroon's strategic trading partner, has tightened the regulations on maximum residue limits of chlorpyrifos in agricultural products, including Arabica and Robusta coffee. These measures will therefore affect exports of these products to their markets.

In order to limit any possible prejudice of these measures to the Made in Cameroon label, I have the honour inform you that from the date of signature of this circular letter, the import and registration of pesticide formulations based on Chlorpyrifos, Chlorpyrifos ethyl and Chlorpyrifos methyl shall prohibited in Cameroon.

I attach great importance to the strict implementation of the provisions of this circular.

Yaounde, 30 December 2020

The Minister of Agriculture and Rural Development

Gabriel MBAIROBE

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